



Crimes Act 1914

No. 12, 1914

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This compilation is in 3 volumes

- Volume 1:** Part I to Part IA
sections 1 to 15F
- Volume 2: Part IAB to Part IC
sections 15G to 23W
- Volume 3: Part ID to Part VIII
sections 23WA to 91
Schedule
Endnotes

Each volume has its own contents

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About this compilation

This compilation

This is a compilation of the *Crimes Act 1914* that shows the text of the law as amended and in force on 4 June 2026 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au).

Application, saving and transitional provisions

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Presentational changes

The *Legislation Act 2003* provides for First Parliamentary Counsel to make presentational changes to a compilation. Presentational changes are applied to give a more consistent look and feel to legislation published on the Register, and enable the user to more easily navigate those documents.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. Any modifications affecting the law are accessible on the Register.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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An Act relating to Offences against the Commonwealth

Part I—Preliminary

1 Short title

This Act may be cited as the *Crimes Act 1914*.

3 Interpretation

- (1) In this Act, unless the contrary intention appears:

Aboriginal person means a person of the Aboriginal race of Australia.

ACC means the Australian Crime Commission.

associated offence means:

- (a) in relation to an offence against section 233B of the *Customs Act 1901*—an ancillary offence (within the meaning of the *Criminal Code*) that relates to the offence; or
- (b) in relation to an offence against section 10, 11, 12, 13 or 14 of the *Crimes (Traffic in Narcotic Drugs and Psychotropic Substances) Act 1990*—an ancillary offence (within the meaning of the *Criminal Code*) that relates to the offence; or
- (c) in relation to an offence against a law of a State or Territory—an offence:
 - (i) under a provision of a law of that State or Territory that corresponds to a provision of Part 2.4 of the *Criminal Code*; and
 - (ii) that relates to the offence.

Australian law enforcement officer means a law enforcement officer other than a member of a police force, or other law enforcement agency, of a foreign country.

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bail authority means a court or person authorised to grant bail under a law of the Commonwealth, a State or a Territory.

child: without limiting who is a child of a person for the purposes of this Act, someone is the **child** of a person if he or she is a child of the person within the meaning of the *Family Law Act 1975*.

child abuse material has the same meaning as in Part 10.6 of the *Criminal Code*.

child sexual abuse offence means:

- (a) a Commonwealth child sex offence; or
- (b) an offence against section 273.5, 471.16, 471.17, 474.19 or 474.20 of the *Criminal Code* as in force at any time before the commencement of Schedule 7 to the *Combating Child Sexual Exploitation Legislation Amendment Act 2019*; or
- (c) an offence against Part IIIA of this Act as in force at any time before the commencement of Schedule 1 to the *Crimes Legislation Amendment (Sexual Offences Against Children) Act 2010*; or
- (d) a State or Territory registrable child sex offence.

Commissioner means the Commissioner of the Australian Federal Police.

Commonwealth child sex offence means:

- (a) an offence against any of the following provisions of the *Criminal Code*:
 - (i) Division 272 (Child sex offences outside Australia);
 - (ii) Division 273 (Offences involving child abuse material outside Australia);
 - (ia) Division 273A (Possession of child-like sex dolls etc.);
 - (iii) Subdivisions B and C of Division 471 (which create offences relating to use of postal or similar services in connection with child abuse material and sexual activity involving children);
 - (iv) Subdivisions D and F of Division 474 (which create offences relating to use of telecommunications in

Section 3

connection with child abuse material, sexual activity involving children and harm to children); or

- (b) an offence against section 11.1, 11.4 or 11.5 of the *Criminal Code* that relates to an offence described in paragraph (a) of this definition; or
- (c) an offence against a provision described in paragraph (a) of this definition that is taken to have been committed because of section 11.2, 11.2A or 11.3 of the *Criminal Code*.

Commonwealth child sexual abuse offence means a Commonwealth child sex offence, other than an offence against subsection 272.8(1) or (2), 272.9(1) or (2), section 272.10, 272.11, 272.18, 272.19, 273.7, 471.22, 474.23A or 474.24A, subsection 474.25A(1) or (2) or section 474.25B or 474.25C of the *Criminal Code*.

Commonwealth entity has the meaning given by section 10 of the *Public Governance, Performance and Accountability Act 2013*.

Commonwealth offence, except in Part IC, means an offence against a law of the Commonwealth.

Commonwealth officer means a person holding office under, or employed by, the Commonwealth, and includes:

- (a) a person appointed or engaged under the *Public Service Act 1999*;
- (aa) a person permanently or temporarily employed in the Public Service of a Territory or in, or in connection with, the Defence Force, or in the Service of a public authority under the Commonwealth;
- (b) the Commissioner of the Australian Federal Police, a Deputy Commissioner of the Australian Federal Police, an AFP employee or a special member of the Australian Federal Police (all within the meaning of the *Australian Federal Police Act 1979*).

confiscation proceedings has a meaning affected by subsection 16AC(5).

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constable means a member or special member of the Australian Federal Police or a member of the police force or police service of a State or Territory.

controlled substance means:

- (a) a controlled drug or border controlled drug within the meaning of Part 9.1 of the *Criminal Code*; or
- (b) a controlled plant or border controlled plant within the meaning of Part 9.1 of the *Criminal Code*; or
- (c) a controlled precursor or border controlled precursor within the meaning of Part 9.1 of the *Criminal Code*.

conveyance includes an aircraft, vehicle or vessel.

criminal detention has the meaning given by section 45A.

cultural heritage has the same meaning as in the *Environment Protection and Biodiversity Conservation Act 1999*, and includes sacred sites.

cultural heritage object means an object that is important for cultural, religious, ethnological, archaeological, historical, literary, artistic, scientific or technological reasons.

data includes:

- (a) information in any form; and
- (b) any program (or part of a program).

data storage device means a thing containing, or designed to contain, data for use by a computer.

de facto partner has the meaning given by the *Acts Interpretation Act 1901*.

Defence Department means the Department of State that deals with defence and that is administered by the Minister administering section 1 of the *Defence Act 1903*.

dentist means a dental practitioner within the meaning of the *Health Insurance Act 1973*.

Section 3

Deputy Commissioner means a Deputy Commissioner of the Australian Federal Police.

federal aspect, in relation to an offence against a law of a State or of the Australian Capital Territory, has the meaning given by subsection 3AA(1).

Note: This subsection defines ***State*** to include the Northern Territory.

federal court means the High Court or a court created by the Parliament, other than a court of a Territory.

federal criminal detention has the meaning given by section 45A.

federal judicial proceeding has the meaning given by section 31.

Foreign Affairs Department means the Department administered by the Minister administering the *Diplomatic Privileges and Immunities Act 1967*.

Foreign Affairs Minister means the Minister administering the *Diplomatic Privileges and Immunities Act 1967*.

have in possession includes having under control in any place whatever, whether for the use or benefit of the person of whom the term is used or of another person, and although another person has the actual possession or custody of the thing in question.

IGIS official (short for Inspector-General of Intelligence and Security official) means:

- (a) the Inspector-General of Intelligence and Security; or
- (b) any other person covered by subsection 32(1) of the *Inspector-General of Intelligence and Security Act 1986*.

illicit goods means goods the possession of which is a contravention of a law of the Commonwealth, a State or a Territory.

Immigration and Border Protection Department means the Department administered by the Minister administering the *Australian Border Force Act 2015*.

Section 3

Inspector of the National Anti-Corruption Commission means the Inspector within the meaning of the *National Anti-Corruption Commission Act 2022*.

integrity purpose means the purpose of preventing, detecting, investigating or dealing with any of the following:

- (a) misconduct (within the meaning of the *Privacy Act 1988*) of a serious nature by any of the following:
 - (i) an official (as defined in section 13 of the *Public Governance, Performance and Accountability Act 2013*) of a Commonwealth entity;
 - (ii) a person employed by, or in the service of, a Privacy Act agency or a wholly-owned Commonwealth company;
 - (iii) a person acting on behalf of, or for the purposes of activities of, a Privacy Act agency;
 - (iv) an officer of a wholly-owned Commonwealth company;
- (b) conduct that may have the purpose or effect of inducing misconduct described in paragraph (a);
- (c) fraud that has or may have a substantial adverse effect on the Commonwealth or a target entity;
- (d) an offence against Chapter 7 of the *Criminal Code* (which is about the proper administration of Government).

Note 1: An example of dealing with the matters described in paragraphs (a), (b), (c) and (d) is taking legal proceedings, disciplinary proceedings or other administrative action.

Note 2: An integrity purpose relating to misconduct of a person covered by a subparagraph of paragraph (a) does not cease to exist merely because the person ceases to be covered by that subparagraph after the misconduct occurs.

judicial proceeding has the meaning given by section 31 (other than in section 3L).

judicial tribunal has the meaning given by section 31.

law enforcement officer (except in Part IAAC) means any of the following:

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- (a) the Commissioner of the Australian Federal Police, a Deputy Commissioner of the Australian Federal Police, an AFP employee or a special member of the Australian Federal Police (all within the meaning of the *Australian Federal Police Act 1979*);
- (b) a member of the police force of a State or Territory;
- (ba) a staff member of the NACC;
- (c) a member of the staff of the ACC;
- (d) an officer of Customs;
- (e) a member of a police force, or other law enforcement agency, of a foreign country.

medical practitioner has the same meaning as in the *Health Insurance Act 1973*.

member of the staff of the ACC has the same meaning as in the *Australian Crime Commission Act 2002*.

narcotic goods has the same meaning as in the *Customs Act 1901*.

National Anti-Corruption Commissioner means the Commissioner within the meaning of the *National Anti-Corruption Commission Act 2022*.

National Anti-Corruption Deputy Commissioner means a Deputy Commissioner within the meaning of the *National Anti-Corruption Commission Act 2022*.

nurse means a registered nurse within the meaning of the *Health Insurance Act 1973*.

officer of Customs has the meaning given by subsection 4(1) of the *Customs Act 1901*.

Official Trustee means the Official Trustee in Bankruptcy.

parent: without limiting who is a parent of a person for the purposes of this Act, someone (the ***adult***) is the ***parent*** of a person if:

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- (a) the adult is legally entitled to, and has, custody of the person;
or
- (b) the adult is legally responsible for the day-to-day care,
welfare and development of the person and has the person in
his or her care.

participating State has the meaning given by subsection 3B(2).

participating Territory has the meaning given by subsection 3B(2).

personal information has the meaning given by section 6 of the
Privacy Act 1988.

person assisting the NACC Inspector means a person assisting the
Inspector within the meaning of the *National Anti-Corruption
Commission Act 2022*.

Privacy Act agency has the same meaning as agency has in the
Privacy Act 1988.

property includes money and every thing, animate or inanimate,
capable of being the subject of ownership.

public authority under the Commonwealth means any authority or
body constituted by or under a law of the Commonwealth or of a
Territory.

quarter means a period of 3 months ending on 31 March, 30 June,
30 September or 31 December.

relative has a meaning affected by subsection (3).

senior executive AFP employee has the same meaning as in the
Australian Federal Police Act 1979.

sensitive information has the meaning given by section 6 of the
Privacy Act 1988.

staff member of the NACC has the same meaning as in the
National Anti-Corruption Commission Act 2022.

State includes the Northern Territory.

State offence means an offence against a law of a State or the Australian Capital Territory.

State or Territory registrable child sex offence means an offence:

- (a) that a person becomes, or may at any time have become, a person whose name is entered on a child protection offender register (however described) of a State or Territory for committing; and
- (b) in respect of which:
 - (i) a child was a victim or an intended victim; or
 - (ii) the offending involved child abuse material.

substantial adverse effect means an effect that is adverse and not insubstantial, insignificant or trivial.

target entity means:

- (a) a Privacy Act agency; or
- (b) a wholly-owned Commonwealth company.

Note: A target entity is an APP entity as defined in section 6 of the *Privacy Act 1988*, because it is either an agency or an organisation for the purposes of that Act (as a wholly-owned Commonwealth company is an organisation as defined in section 6C of that Act).

Territory does not include the Northern Territory.

terrorism offence means:

- (a) an offence against Subdivision A of Division 72 of the *Criminal Code*; or
- (aa) an offence against Subdivision B of Division 80 of the *Criminal Code*; or
- (b) an offence against Part 5.3, 5.3A or 5.5 of the *Criminal Code*; or
- (ba) an offence against Subdivision HA of Division 474 of the *Criminal Code*; or
- (c) an offence against either of the following provisions of the *Charter of the United Nations Act 1945*:
 - (i) Part 4 of that Act;

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- (ii) Part 5 of that Act, to the extent that it relates to the *Charter of the United Nations (Sanctions—Al-Qaida) Regulations 2008*.

terrorist act means:

- (a) a terrorist act within the meaning of subsection 100.1(1) of the *Criminal Code*; or
- (b) a state terrorist act within the meaning of the *Criminal Code*.

thing relevant to an indictable offence means:

- (a) either of the following:
 - (i) anything with respect to which an indictable offence against any law of the Commonwealth or of a Territory has been committed or is suspected, on reasonable grounds, to have been committed;
 - (ii) anything with respect to which a State offence that has a federal aspect, and that is an indictable offence against the law of that State, has been committed or is suspected, on reasonable grounds, to have been committed; or
- (b) anything as to which there are reasonable grounds for suspecting that it will afford evidence as to the commission of any such offence; or
- (c) anything as to which there are reasonable grounds for suspecting that it is intended to be used for the purpose of committing any such offence.

thing relevant to a summary offence means:

- (a) either of the following:
 - (i) anything with respect to which a summary offence against any law of the Commonwealth or of a Territory has been committed or is suspected, on reasonable grounds, to have been committed;
 - (ii) anything with respect to which a State offence that has a federal aspect, and that is a summary or simple offence against the law of that State, has been committed or is

Section 3

suspected, on reasonable grounds, to have been committed; or

- (b) anything as to which there are reasonable grounds for suspecting that it will afford evidence as to the commission of any such offence; or
- (c) anything as to which there are reasonable grounds for suspecting that it is intended to be used for the purpose of committing any such offence.

Torres Strait Islander means a descendent of an indigenous inhabitant of the Torres Strait Islands.

wholly-owned Commonwealth company has the meaning given by section 90 of the *Public Governance, Performance and Accountability Act 2013*.

- (2) In this Act, a reference to a fine includes a reference:
 - (a) to a pecuniary penalty other than a pecuniary penalty imposed:
 - (i) under Division 3 of Part XIII of the *Customs Act 1901*; or
 - (ii) by a pecuniary penalty order, a literary proceeds order or an unexplained wealth order made under the *Proceeds of Crime Act 2002*; or
 - (ia) by a pecuniary penalty order made under the *Proceeds of Crime Act 1987*; or
 - (iii) by a superannuation order made under the *Australian Federal Police Act 1979*; or
 - (iv) by a superannuation order made under the *Crimes (Superannuation Benefits) Act 1989*; or
 - (b) to costs or other amounts ordered to be paid by offenders.
- (3) For the purposes of this Act, the relatives of a person are taken to include the following (without limitation):
 - (a) a de facto partner of the person;

Section 3AA

- (b) someone who is the child of the person, or of whom the person is the child, because of the definition of *child* in this section;
- (c) anyone else who would be a relative of the person if someone mentioned in paragraph (a) or (b) is taken to be a relative of the person.

3AA State offences that have a federal aspect

Object

- (1A) The object of this section is to identify State offences that have a federal aspect because:
- (a) they potentially fall within Commonwealth legislative power because of the elements of the State offence; or
 - (b) they potentially fall within Commonwealth legislative power because of the circumstances in which the State offence was committed (whether or not those circumstances are expressed to be acts or omissions involved in committing the offence); or
 - (c) the Australian Federal Police investigating them is incidental to the Australian Federal Police investigating an offence against a law of the Commonwealth or a Territory.

State offences that have a federal aspect

- (1) For the purposes of this Act, a State offence has a *federal aspect* if, and only if:
- (a) both:
 - (i) the State offence is not an ancillary offence; and
 - (ii) assuming that the provision creating the State offence had been enacted by the Parliament of the Commonwealth instead of by the Parliament of the State—the provision would have been a valid law of the Commonwealth; or
 - (b) both:

Section 3AA

- (i) the State offence is an ancillary offence that relates to a particular primary offence; and
- (ii) assuming that the provision creating the primary offence had been enacted by the Parliament of the Commonwealth instead of by the Parliament of the State—the provision would have been a valid law of the Commonwealth; or
- (c) assuming that the Parliament of the Commonwealth had enacted a provision that created an offence penalising the specific acts or omissions involved in committing the State offence—that provision would have been a valid law of the Commonwealth; or
- (d) both:
 - (i) the Australian Federal Police is investigating an offence against a law of the Commonwealth or a Territory; and
 - (ii) if the Australian Federal Police is investigating, or were to investigate, the State offence—that investigation is, or would be, incidental to the investigation mentioned in subparagraph (i).

Specificity of acts or omissions

- (2) For the purposes of paragraph (1)(c), the specificity of the acts or omissions involved in committing a State offence is to be determined having regard to the circumstances in which the offence was committed (whether or not those circumstances are expressed to be elements of the offence).

State offences covered by paragraph (1)(c)

- (3) A State offence is taken to be covered by paragraph (1)(c) if the conduct constituting the State offence:
 - (a) affects the interests of:
 - (i) the Commonwealth; or
 - (ii) an authority of the Commonwealth; or
 - (iii) a constitutional corporation; or
 - (b) was engaged in by a constitutional corporation; or

Section 3AA

- (c) was engaged in in a Commonwealth place; or
 - (d) involved the use of a postal service or other like service; or
 - (e) involved an electronic communication; or
 - (f) involved trade or commerce:
 - (i) between Australia and places outside Australia; or
 - (ii) among the States; or
 - (iii) within a Territory, between a State and a Territory or between 2 Territories; or
 - (g) involved:
 - (i) banking (other than State banking not extending beyond the limits of the State concerned); or
 - (ii) insurance (other than State insurance not extending beyond the limits of the State concerned); or
 - (h) relates to a matter outside Australia; or
 - (i) relates to a matter in respect of which an international agreement to which Australia is a party imposes obligations to which effect could be given by the creation of an offence against the domestic laws of the parties to the agreement; or
 - (j) relates to a matter that affects the relations between Australia and another country or countries or is otherwise a subject of international concern.
- (4) Subsection (3) does not limit paragraph (1)(c).

Definitions

- (5) In this section:

ancillary offence, in relation to an offence (the ***primary offence***), means:

- (a) an offence of conspiring to commit the primary offence; or
- (b) an offence of aiding, abetting, counselling or procuring, or being in any way knowingly concerned in, the commission of the primary offence; or
- (c) an offence of attempting to commit the primary offence.

Section 3A

Commonwealth place has the same meaning as in the *Commonwealth Places (Application of Laws) Act 1970*.

conduct has the same meaning as in the *Criminal Code*.

constitutional corporation means a corporation to which paragraph 51(xx) of the Constitution applies.

electronic communication means a communication of information:

- (a) whether in the form of text; or
- (b) whether in the form of data; or
- (c) whether in the form of speech, music or other sounds; or
- (d) whether in the form of visual images (animated or otherwise); or
- (e) whether in any other form; or
- (f) whether in any combination of forms;

by means of guided and/or unguided electromagnetic energy.

engage in conduct has the same meaning as in the *Criminal Code*.

State includes the Australian Capital Territory and the Northern Territory.

State offence means an offence against a law of a State.

Note: Subsection 3(1) defines **State** to include the Northern Territory.

3A Operation of Act

This Act applies throughout the whole of the Commonwealth and the Territories and also applies beyond the Commonwealth and the Territories.

3B Arrangements with States, Australian Capital Territory and Northern Territory

- (1) The Governor-General may make arrangements with the Governor of a State, the Government of the Australian Capital Territory or the Administrator of the Northern Territory for:

Section 3BA

- (a) officers of the State or Territory to exercise powers and perform functions; and
 - (b) facilities and procedures of the State or Territory to be made available;
- in relation to the carrying out or enforcement under this Act of orders made under this Act or another Act.
- (2) In this Act:
 - (a) a reference to a participating State is a reference to a State in relation to which an arrangement is in force under subsection (1) of this section; and
 - (b) a reference to a participating Territory:
 - (i) is a reference to a Territory other than the Australian Capital Territory or the Northern Territory; and
 - (ii) if an arrangement is in force under subsection (1) of this section in relation to the Australian Capital Territory—includes a reference to the Australian Capital Territory; and
 - (iii) if an arrangement is in force under subsection (1) of this section in relation to the Northern Territory—includes a reference to the Northern Territory.

- (3) In this section:

order includes a sentence.

State does not include the Australian Capital Territory or the Northern Territory.

3BA Application of the *Criminal Code*

Chapter 2 of the *Criminal Code* applies to all offences against this Act.

Note: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.

Part IAA—Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

Division 1—Preliminary

3C Interpretation

- (1) In this Part, unless the contrary intention appears:

account-based data has the meaning given by section 3CAA.

carrier means:

- (a) a carrier within the meaning of the *Telecommunications Act 1997*; or
- (b) a carriage service provider within the meaning of that Act.

communication in transit means a communication (within the meaning of the *Telecommunications Act 1997*) passing over a telecommunications network (within the meaning of that Act).

constable assisting, in relation to a warrant, means:

- (a) a person who is a constable and who is assisting in executing the warrant; or
- (b) a person who is not a constable and who has been authorised by the relevant executing officer to assist in executing the warrant.

data held in a computer includes:

- (a) data held in any removable data storage device for the time being held in a computer; or
- (b) data held in a data storage device on a computer network of which the computer forms a part.

Section 3C

digital asset means:

- (a) a digital representation of value or rights (including rights to property), the ownership of which is evidenced cryptographically and that is held and transferred electronically by:
 - (i) a type of distributed ledger technology; or
 - (ii) another distributed cryptographically verifiable data structure; or
 - (b) a right or thing prescribed by the regulations;
- but does not include any right or thing that, under the regulations, is taken not to be a digital asset for the purposes of this Part.

electronic service has the same meaning as in the *Online Safety Act 2021*.

emergency situation, in relation to the execution of a warrant in relation to premises, means a situation that the executing officer or a constable assisting believes, on reasonable grounds, involves a serious and imminent threat to a person's life, health or safety that requires the executing officer and constables assisting to leave the premises.

evidential material means a thing relevant to an indictable offence or a thing relevant to a summary offence, including such a thing in electronic form.

executing officer, in relation to a warrant, means:

- (a) the constable named in the warrant by the issuing officer as being responsible for executing the warrant; or
- (b) if that constable does not intend to be present at the execution of the warrant—another constable whose name has been written in the warrant by the constable so named; or
- (c) another constable whose name has been written in the warrant by the constable last named in the warrant.

frisk search means:

- (a) a search of a person conducted by quickly running the hands over the person's outer garments; and

Section 3C

- (b) an examination of anything worn or carried by the person that is conveniently and voluntarily removed by the person.

issuing officer, in relation to a warrant to search premises or a person or a warrant for arrest under this Part, means:

- (a) a magistrate; or
- (b) a justice of the peace or other person employed in a court of a State or Territory who is authorised to issue search warrants or warrants for arrest, as the case may be.

Note: Under section 3ZZBJ, an eligible issuing officer (within the meaning of Part IAAA) may, as specified in that section, consider and deal with an application for a warrant as if the eligible issuing officer were an issuing officer within the meaning of this Part.

magistrate, in sections 3ZI, 3ZJ, 3ZK, 3ZN and 3ZQZB, has a meaning affected by section 3CA.

offence means:

- (a) an offence against a law of the Commonwealth (other than the *Defence Force Discipline Act 1982*); or
- (b) an offence against a law of a Territory; or
- (c) a State offence that has a federal aspect.

ordinary search means a search of a person or of articles in the possession of a person that may include:

- (a) requiring the person to remove his or her overcoat, coat or jacket and any gloves, shoes and hat; and
- (b) an examination of those items.

police station includes:

- (a) a police station of a State or Territory; and
- (b) a building occupied by the Australian Federal Police.

premises includes a place and a conveyance.

recently used conveyance, in relation to a search of a person, means a conveyance that the person had operated or occupied at any time within 24 hours before the search commenced.

Section 3C

seizable item means anything that would present a danger to a person or that could be used to assist a person to escape from lawful custody.

seize, for a digital asset, has a meaning affected by subsection 3FA(8).

serious offence means an offence:

- (a) that is punishable by imprisonment for 2 years or more; and
- (b) that is one of the following:
 - (i) a Commonwealth offence;
 - (ii) an offence against a law of a State that has a federal aspect;
 - (iii) an offence against a law of a Territory; and
- (c) that is not a serious terrorism offence.

serious terrorism offence means:

- (a) a terrorism offence (other than offence against section 102.8, Division 104, Division 105 or section 112.7 of the *Criminal Code*); or
- (b) an offence against a law of a State:
 - (i) that has a federal aspect; and
 - (ii) that has the characteristics of a terrorism offence (other than such an offence that has the characteristics of an offence against section 102.8, Division 104, Division 105 or section 112.7 of the *Criminal Code*); or
- (c) an offence against a law of a Territory that has the characteristics of a terrorism offence (other than such an offence that has the characteristics of an offence against section 102.8, Division 104, Division 105 or section 112.7 of the *Criminal Code*).

strip search means a search of a person or of articles in the possession of a person that may include:

- (a) requiring the person to remove all of his or her garments; and
- (b) an examination of the person's body (but not of the person's body cavities) and of those garments.

Section 3CAA

telecommunications facility means a facility within the meaning of the *Telecommunications Act 1997*.

warrant means a warrant under this Part.

warrant premises means premises in relation to which a warrant is in force.

- (2) A person referred to in paragraph (b) of the definition of **constable assisting** in subsection (1) must not take part in searching or arresting a person.

3CAA Account-based data

- (1) For the purposes of this Part, if:
- (a) an electronic service has accounts for end-users; and
 - (b) either:
 - (i) a person holds an account with the electronic service; or
 - (ii) a person is, or is likely to be, a user of an account with the electronic service; and
 - (c) the person can (with the use of appropriate equipment) access particular data provided by the service;
- the data is **account-based data** in relation to the person.
- (2) For the purposes of this Part, if:
- (a) an electronic service has accounts for end-users; and
 - (b) either:
 - (i) a deceased person held, before the person's death, an account with the electronic service; or
 - (ii) a deceased person, before the person's death, was, or was likely to be, a user of an account with the electronic service; and
 - (c) the deceased person could, before the person's death (with the use of appropriate equipment), access particular data provided by the service;
- the data is **account-based data** in relation to the deceased person.

Section 3CA

- (3) For the purposes of this section, ***account*** has the same meaning as in the *Online Safety Act 2021*.

3CA Nature of functions of magistrate

- (1) A function of making an order conferred on a magistrate by section 3ZI, 3ZJ, 3ZK, 3ZN or 3ZQZB is conferred on the magistrate in a personal capacity and not as a court or a member of a court.
- (2) Without limiting the generality of subsection (1), an order made by a magistrate under section 3ZI, 3ZJ, 3ZK, 3ZN or 3ZQZB has effect only by virtue of this Act and is not to be taken by implication to be made by a court.
- (3) A magistrate performing a function of, or connected with, making an order under section 3ZI, 3ZJ, 3ZK, 3ZN or 3ZQZB has the same protection and immunity as if he or she were performing that function as, or as a member of, a court (being the court of which the magistrate is a member).
- (4) The Governor-General may make arrangements with the Governor of a State, the Chief Minister of the Australian Capital Territory or the Administrator of the Northern Territory for the performance, by all or any of the persons who from time to time hold office as magistrates in that State or Territory, of the function of making orders under sections 3ZI, 3ZJ, 3ZK, 3ZN and 3ZQZB.

3D Application of Part

- (1) This Part is not intended to limit or exclude the operation of another law of the Commonwealth (including other provisions of this Act) relating to:
 - (a) the search of premises; or
 - (b) arrest and related matters; or
 - (c) the stopping, detaining or searching of conveyances or persons; or
 - (d) the seizure of things; or

Section 3D

- (e) the requesting of information or documents from persons.
- (2) To avoid any doubt, it is declared that even though another law of the Commonwealth (including other provisions of this Act) provides power to do one or more of the things referred to in subsection (1), a similar power conferred by this Part may be used despite the existence of the power under the other law.
- (4) This Part is not intended to limit or exclude the operation of a law of a Territory relating to:
 - (a) the search of premises; or
 - (b) arrest and related matters; or
 - (c) the stopping, detaining or searching of conveyances or persons; or
 - (d) the seizure of things; or
 - (e) the requesting of information or documents from persons;in relation to offences against a law of that Territory.
- (5) This Part does not apply to the exercise by a constable of powers under the *Defence Force Discipline Act 1982*.
- (6) The application of this Part in relation to State offences that have a federal aspect is not intended to limit or exclude the concurrent operation of any law of a State or of the Australian Capital Territory.

Note 1: Subsection 3(1) defines **State** to include the Northern Territory.

Note 2: Section 3AA has the effect that an offence against the law of the Australian Capital Territory is a State offence that has a federal aspect.

Division 2—Search warrants

3E When search warrants can be issued

- (1) An issuing officer may issue a warrant to search premises if the officer is satisfied, by information on oath or affirmation, that there are reasonable grounds for suspecting that there is, or there will be within the next 72 hours, any evidential material at the premises.

Note: For the issue of delayed notification search warrants, see Part IAAA.

- (2) An issuing officer may issue a warrant authorising an ordinary search or a frisk search of a person if the officer is satisfied, by information on oath or affirmation, that there are reasonable grounds for suspecting that the person has in his or her possession, or will within the next 72 hours have in his or her possession, any evidential material.
- (3) If the person applying for the warrant suspects that, in executing the warrant, it will be necessary to use firearms, the person must state that suspicion, and the grounds for that suspicion, in the information.
- (4) If the person applying for the warrant is a member or special member of the Australian Federal Police and has, at any time previously, applied for a warrant relating to the same person or premises the person must state particulars of those applications and their outcome in the information.
- (5) If an issuing officer issues a warrant, the officer is to state in the warrant:
 - (a) the offence to which the warrant relates; and
 - (b) a description of the premises to which the warrant relates or the name or description of the person to whom it relates; and
 - (c) the kinds of evidential material that are to be searched for under the warrant; and

Section 3E

- (d) the name of the constable who, unless he or she inserts the name of another constable in the warrant, is to be responsible for executing the warrant; and
- (e) the time at which the warrant expires (see subsection (5A)); and

Note: The power to seize a digital asset under the warrant and certain other powers may be exercised after the warrant expires: see subsection 3FA(10).

- (f) whether the warrant may be executed at any time or only during particular hours.

(5A) The time stated in the warrant under paragraph 3E(5)(e) as the time at which the warrant expires must be a time that is not later than the end of the seventh day after the day on which the warrant is issued.

Example: If a warrant is issued at 3 pm on a Monday, the expiry time specified must not be later than midnight on Monday in the following week.

- (6) The issuing officer is also to state, in a warrant in relation to premises:
 - (a) that the warrant authorises the seizure of a thing (other than evidential material of the kind referred to in paragraph (5)(c)) found at the premises in the course of the search that the executing officer or a constable assisting believes on reasonable grounds to be:
 - (i) evidential material in relation to an offence to which the warrant relates; or
 - (ii) a thing relevant to another offence that is an indictable offence; or
 - (iii) evidential material (within the meaning of the *Proceeds of Crime Act 2002*) or tainted property (within the meaning of that Act);if the executing officer or a constable assisting believes on reasonable grounds that seizure of the thing is necessary to prevent its concealment, loss or destruction or its use in committing an offence; and

Section 3E

- (aa) that the warrant authorises the seizure of a digital asset if paragraphs 3FA(1)(a) to (c) are satisfied; and
 - (b) whether the warrant authorises an ordinary search or a frisk search of a person who is at or near the premises when the warrant is executed if the executing officer or a constable assisting suspects on reasonable grounds that the person has any evidential material or seizable items in his or her possession.
- (7) The issuing officer is also to state, in a warrant in relation to a person:
 - (a) that the warrant authorises the seizure of a thing (other than evidential material of the kind referred to in paragraph (5)(c)) found, in the course of the search, on or in the possession of the person or in a recently used conveyance, being a thing that the executing officer or a constable assisting believes on reasonable grounds to be:
 - (i) evidential material in relation to an offence to which the warrant relates; or
 - (ii) a thing relevant to another offence that is an indictable offence; or
 - (iii) evidential material (within the meaning of the *Proceeds of Crime Act 2002*) or tainted property (within the meaning of that Act);if the executing officer or a constable assisting believes on reasonable grounds that seizure of the thing is necessary to prevent its concealment, loss or destruction or its use in committing an offence; and
 - (aa) that the warrant authorises the seizure of a digital asset if paragraphs 3FA(2)(a) to (c) are satisfied; and
 - (b) the kind of search of a person that the warrant authorises.
- (8) Paragraph (5)(e) and subsection (5A) do not prevent the issue of successive warrants in relation to the same premises or person.
- (9) If the application for the warrant is made under section 3R, this section (other than subsection (5A)) applies as if:

Section 3F

- (a) subsections (1) and (2) referred to 48 hours rather than 72 hours; and
 - (b) paragraph (5)(e) required the issuing officer to state in the warrant the period for which the warrant is to remain in force, which must not be more than 48 hours.
- (10) An issuing officer in New South Wales or the Australian Capital Territory may issue a warrant in relation to premises or a person in the Jervis Bay Territory.
- (11) An issuing officer in a State or internal Territory may:
 - (a) issue a warrant in relation to premises or a person in that State or Territory; or
 - (b) issue a warrant in relation to premises or a person in an external Territory; or
 - (c) issue a warrant in relation to premises or a person in another State or internal Territory (including the Jervis Bay Territory) if he or she is satisfied that there are special circumstances that make the issue of the warrant appropriate; or
 - (d) issue a warrant in relation to a person wherever the person is in Australia or in an external Territory if he or she is satisfied that it is not possible to predict where the person may be.

3F The things authorised by a search warrant—general

- (1) A warrant that is in force in relation to premises authorises the executing officer or a constable assisting:
 - (a) to enter the warrant premises and, if the premises are a conveyance, to enter the conveyance, wherever it is; and
 - (b) to search for and record fingerprints found at the premises and to take samples of things found at the premises for forensic purposes; and
 - (c) to search the premises for the kinds of evidential material specified in the warrant, and to seize things of that kind found at the premises; and

Section 3F

- (d) to seize other things found at the premises in the course of the search that the executing officer or a constable assisting believes on reasonable grounds to be:
 - (i) evidential material in relation to an offence to which the warrant relates; or
 - (ii) evidential material in relation to another offence that is an indictable offence; or
 - (iii) evidential material (within the meaning of the *Proceeds of Crime Act 2002*) or tainted property (within the meaning of that Act);if the executing officer or a constable assisting believes on reasonable grounds that seizure of the things is necessary to prevent their concealment, loss or destruction or their use in committing an offence; and
 - (e) to seize other things found at the premises in the course of the search that the executing officer or a constable assisting believes on reasonable grounds to be seizable items; and
 - (f) if the warrant so allows—to conduct an ordinary search or a frisk search of a person at or near the premises if the executing officer or a constable assisting suspects on reasonable grounds that the person has any evidential material or seizable items in his or her possession.
- (2) A warrant that is in force in relation to a person authorises the executing officer or a constable assisting:
- (a) to search the person as specified in the warrant and things found in the possession of the person and any recently used conveyance for things of the kind specified in the warrant; and
 - (b) to:
 - (i) seize things of that kind; or
 - (ii) record fingerprints from things; or
 - (iii) to take forensic samples from things; found in the course of the search; and
 - (c) to seize other things found on or in the possession of the person or in the conveyance in the course of the search that

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the executing officer or a constable assisting believes on reasonable grounds to be:

- (i) evidential material in relation to an offence to which the warrant relates; or
- (ii) a thing relevant to another offence that is an indictable offence; or
- (iii) evidential material (within the meaning of the *Proceeds of Crime Act 2002*) or tainted property (within the meaning of that Act);

if the executing officer or a constable assisting believes on reasonable grounds that seizure of the things is necessary to prevent their concealment, loss or destruction or their use in committing an offence; and

- (d) to seize other things found in the course of the search that the executing officer or a constable assisting believes on reasonable grounds to be seizable items.

(2A) A warrant that is in force authorises the executing officer or a constable assisting:

(a) to use:

- (i) a computer, or data storage device, found in the course of a search authorised under the warrant; or
- (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
- (iii) any other electronic equipment; or
- (iv) a data storage device;

for the purpose of obtaining access to data (the **relevant data**) that is held in the computer or device mentioned in subparagraph (i) at any time when the warrant is in force, in order to determine whether the relevant data is evidential material of a kind specified in the warrant; and

- (b) if necessary to achieve the purpose mentioned in paragraph (a)—to add, copy, delete or alter other data in the computer or device mentioned in subparagraph (a)(i); and

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- (c) if, having regard to other methods (if any) of obtaining access to the relevant data which are likely to be as effective, it is reasonable in all the circumstances to do so:
 - (i) to use any other computer or a communication in transit to access the relevant data; and
 - (ii) if necessary to achieve that purpose—to add, copy, delete or alter other data in the computer or the communication in transit; and
- (d) to copy any data to which access has been obtained, and that:
 - (i) appears to be relevant for the purposes of determining whether the relevant data is evidential material of a kind specified in the warrant; or
 - (ii) is evidential material of a kind specified in the warrant; and
- (e) to do any other thing reasonably incidental to any of the above.

Note: As a result of the warrant, a person who, by means of a telecommunications facility, obtains access to data stored in a computer etc. will not commit an offence under Part 10.7 of the *Criminal Code* or equivalent State or Territory laws (provided that the person acts within the authority of the warrant).

(2B) A warrant that is in force authorises the executing officer or a constable assisting:

- (a) to use:
 - (i) a computer found in the course of a search authorised under the warrant; or
 - (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
 - (iii) any other electronic equipment;for the purpose of obtaining access to data (the ***relevant account-based data***) that is account-based data in relation to:
 - (iv) a person who is the owner or lessee of the computer mentioned in subparagraph (i); or
 - (v) a person who uses or has used the computer mentioned in subparagraph (i); or

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- (vi) a deceased person who, before the person's death, was the owner or lessee of the computer mentioned in subparagraph (i); or
 - (vii) a deceased person who, before the person's death, used the computer mentioned in subparagraph (i);
in order to determine whether the relevant account-based data is evidential material of a kind specified in the warrant; and
 - (b) if necessary to achieve the purpose mentioned in paragraph (a)—to add, copy, delete or alter other data in the computer mentioned in subparagraph (a)(i); and
 - (c) if, having regard to other methods (if any) of obtaining access to the relevant account-based data which are likely to be as effective, it is reasonable in all the circumstances to do so:
 - (i) to use any other computer or a communication in transit to access the relevant account-based data; and
 - (ii) if necessary to achieve that purpose—to add, copy, delete or alter other data in the computer or the communication in transit; and
 - (d) to copy any data to which access has been obtained, and that:
 - (i) appears to be relevant for the purposes of determining whether the relevant account-based data is evidential material of a kind specified in the warrant; or
 - (ii) is evidential material of a kind specified in the warrant; and
 - (e) to do any other thing reasonably incidental to any of the above.
- (2C) Subsections (2A) and (2B) do not authorise the addition, deletion or alteration of data, or the doing of any thing, that is likely to:
- (a) materially interfere with, interrupt or obstruct:
 - (i) a communication in transit; or
 - (ii) the lawful use by other persons of a computer;unless the addition, deletion or alteration, or the doing of the thing, is necessary to do one or more of the things specified in the warrant; or

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- (b) cause any other material loss or damage to other persons lawfully using a computer.
- (2D) In the case of a warrant that is in force in relation to premises, it is immaterial whether a thing mentioned in subsection (2A) or (2B) is done:
 - (a) at the premises; or
 - (b) at any other place.
- (2E) In the case of a warrant that is in force in relation to a person, it is immaterial whether a thing mentioned in subsection (2A) or (2B) is done:
 - (a) in the presence of the person; or
 - (b) at any other place.
- (3) If the warrant states that it may be executed only during particular hours, the warrant must not be executed outside those hours.
- (4) If the warrant authorises an ordinary search or a frisk search of a person, a search of the person different to that so authorised must not be done under the warrant.

3FA The things authorised by a search warrant—additional things for digital assets

Warrant in relation to premises—authority to seize digital assets

- (1) A warrant that is in force in relation to premises authorises the executing officer or a constable assisting to seize a digital asset if:
 - (a) in the course of exercising powers under this Part, the executing officer or a constable assisting finds one or more things that suggest the existence of the digital asset; and
 - (b) the executing officer or a constable assisting reasonably suspects the digital asset to be:
 - (i) evidential material in relation to an offence to which the warrant relates; or
 - (ii) evidential material in relation to another offence that is an indictable offence; or

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- (iii) evidential material (within the meaning of the *Proceeds of Crime Act 2002*) or tainted property (within the meaning of that Act); and
- (c) the executing officer or a constable assisting reasonably suspects that seizing the digital asset is necessary to prevent the digital asset's concealment, loss or destruction or its use in committing an offence.

Note: For the purposes of paragraph (a), the digital asset need not be found at the premises. Data accessed using powers under this Part may suggest the existence of the digital asset. For example, a thing suggesting the existence of the digital asset could be found by accessing data using electronic equipment moved from the premises: see section 3LAA.

Warrant in relation to person—authority to seize digital assets

- (2) A warrant that is in force in relation to a person authorises the executing officer or a constable assisting to seize a digital asset if:
 - (a) in the course of exercising powers under this Part, the executing officer or a constable assisting finds one or more things that suggest the existence of the digital asset; and
 - (b) the executing officer or a constable assisting reasonably suspects the digital asset to be:
 - (i) evidential material in relation to an offence to which the warrant relates; or
 - (ii) evidential material in relation to another offence that is an indictable offence; or
 - (iii) evidential material (within the meaning of the *Proceeds of Crime Act 2002*) or tainted property (within the meaning of that Act); and
 - (c) the executing officer or a constable assisting reasonably suspects that seizing the digital asset is necessary to prevent the digital asset's concealment, loss or destruction or its use in committing an offence.

Note: For the purposes of paragraph (a), the digital asset need not be found in the person's possession. Data accessed using powers under this Part may suggest the existence of the digital asset. For example, a thing suggesting the existence of the digital asset could be found by

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accessing data using electronic equipment moved from the person's possession: see section 3LAA.

Use of electronic equipment etc. to seize a digital asset etc.

- (3) A warrant that is in force authorises the executing officer or a constable assisting:
- (a) to use:
 - (i) a computer, or data storage device, found in the course of a search authorised under the warrant; or
 - (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
 - (iii) any other electronic equipment; or
 - (iv) a data storage device;for the purpose of seizing a digital asset under the warrant; and
 - (b) if necessary to achieve that purpose—to add, copy, delete or alter data in the computer or device mentioned in subparagraph (a)(i); and
 - (c) if it is reasonable in all the circumstances to do so for the purpose of seizing a digital asset under the warrant:
 - (i) to use any other computer or a communication in transit; and
 - (ii) if necessary to achieve that purpose—to add, copy, delete or alter data in the other computer or the communication in transit; and
 - (d) to do any other thing reasonably incidental to any of the above.

Use of electronic equipment etc. to access data to determine the existence of a digital asset that may be seized etc.

- (4) A warrant that is in force authorises the executing officer or a constable assisting:
- (a) to use:
 - (i) a computer, or data storage device, found in the course of a search authorised under the warrant; or
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- (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
 - (iii) any other electronic equipment; or
 - (iv) a data storage device;
- for the purpose of obtaining access to data (the **relevant data**) that is held in the computer or device mentioned in subparagraph (i) at any time when the warrant is in force, in order to determine whether the relevant data suggests the existence of a digital asset that may be seized under the warrant; and
- (b) if necessary to achieve that purpose—to add, copy, delete or alter other data in the computer or device mentioned in subparagraph (a)(i); and
 - (c) if, having regard to other methods (if any) of obtaining access to the relevant data which are likely to be as effective, it is reasonable in all the circumstances to do so:
 - (i) to use any other computer or a communication in transit to access the relevant data; and
 - (ii) if necessary to achieve that purpose—to add, copy, delete or alter other data in the other computer or the communication in transit; and
 - (d) to copy any data to which access has been obtained, and that:
 - (i) appears to be relevant for the purposes of determining whether the relevant data suggests the existence of a digital asset that may be seized under the warrant; or
 - (ii) suggests the existence of a digital asset that may be seized under the warrant; and
 - (e) to do any other thing reasonably incidental to any of the above.

Note: As a result of the warrant, a person who, by means of a telecommunications facility, obtains access to data stored in a computer etc. will not commit an offence under Part 10.7 of the *Criminal Code* or equivalent State or Territory laws (provided that the person acts within the authority of the warrant).

- (5) A warrant that is in force authorises the executing officer or a constable assisting:
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- (a) to use:
 - (i) a computer found in the course of a search authorised under the warrant; or
 - (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
 - (iii) any other electronic equipment;for the purpose of obtaining access to data (the **relevant account-based data**) that is account-based data in relation to:
 - (iv) a person who is the owner or lessee of the computer mentioned in subparagraph (i); or
 - (v) a person who uses or has used the computer mentioned in subparagraph (i); or
 - (vi) a deceased person who, before the person's death, was the owner or lessee of the computer mentioned in subparagraph (i); or
 - (vii) a deceased person who, before the person's death, used the computer mentioned in subparagraph (i);in order to determine whether the relevant account-based data suggests the existence of a digital asset that may be seized under the warrant; and
- (b) if necessary to achieve the purpose mentioned in paragraph (a)—to add, copy, delete or alter other data in the computer mentioned in subparagraph (a)(i); and
- (c) if, having regard to other methods (if any) of obtaining access to the relevant account-based data which are likely to be as effective, it is reasonable in all the circumstances to do so:
 - (i) to use any other computer or a communication in transit to access the relevant account-based data; and
 - (ii) if necessary to achieve that purpose—to add, copy, delete or alter other data in the other computer or the communication in transit; and
- (d) to copy any data to which access has been obtained, and that:
 - (i) appears to be relevant for the purposes of determining whether the relevant account-based data suggests the

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- existence of a digital asset that may be seized under the warrant; or
- (ii) suggests the existence of a digital asset that may be seized under the warrant; and
- (e) to do any other thing reasonably incidental to any of the above.

Limitation

- (6) Subsections (3), (4) and (5) do not authorise the addition, deletion or alteration of data, or the doing of any thing, that is likely to:
 - (a) materially interfere with, interrupt or obstruct:
 - (i) a communication in transit; or
 - (ii) the lawful use by other persons of a computer;unless the addition, deletion or alteration, or the doing of the thing, is necessary to do one or more of the things specified in the warrant; or
 - (b) cause any other material loss or damage to other persons lawfully using a computer.

Operation of electronic equipment to seize a digital asset

- (7) A warrant that is in force also authorises the executing officer or a constable assisting:
 - (a) for a warrant in relation to premises—to operate electronic equipment at the premises for the purpose of seizing a digital asset under the warrant; and
 - (b) if electronic equipment is moved to another place under subsection 3K(2)—to operate the equipment for the purpose of seizing a digital asset under the warrant.

Additional ways of seizing digital assets

- (8) **Seizing** a digital asset under a warrant includes any of the following:
 - (a) transferring the digital asset from an existing digital wallet (or some other thing) to a digital wallet (or other thing)

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controlled by the Australian Federal Police or a police force or police service of a State or Territory;

- (b) transferring the digital asset:
 - (i) from a digital wallet (or some other thing) recreated or recovered by the Australian Federal Police or a police force or police service of a State or Territory using things found in the course of the search authorised by the warrant; and
 - (ii) to a digital wallet (or other thing) controlled by the Australian Federal Police or a police force or police service of a State or Territory;
- (c) transferring the digital asset in circumstances prescribed by regulations made for the purposes of this paragraph.

Note: The ordinary meaning of seizing a digital asset is extended by the additional ways mentioned in this subsection.

Time limit for seizing digital assets etc.

- (9) The power to seize a digital asset under the warrant, or a power covered by subsection (3) or paragraph (7)(b) relating to seizing a digital asset under the warrant, may be exercised, to the extent that the exercise of the power relates to a thing referred to in paragraph (1)(a) or (2)(a) for the warrant, only during the period starting when the warrant is issued and ending at:
 - (a) if the thing is moved to another place under subsection 3K(2)—the time applicable under subsection 3K(3A) or that time as previously extended as described in subsection 3K(3B); or
 - (b) if the thing is seized under this Division—any time that the thing must be returned as described in Subdivision B of Division 4C of this Part; or
 - (c) if the thing is data that is copied under this Division—the time the Commissioner is satisfied that the data is not required (or is no longer required):
 - (i) for a purpose mentioned in section 3ZQU; or

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- (ii) for other judicial or administrative review proceedings;
or
- (d) otherwise—the end of the period of 30 days starting on the
day the warrant is issued.

Note: This means the power to seize the digital asset may be exercised at
different times if there is more than one thing referred to in
paragraph (1)(a) or (2)(a) that suggests the existence of the digital
asset.

For example, if 2 or more things referred to in paragraph (1)(a) or
(2)(a) suggest the existence of the digital asset, seizure of the digital
asset may occur during the longest period that applies to the digital
asset as a result of the application of this subsection in relation to each
of those things.

- (10) If the period applicable under subsection (9) ends after the warrant
expires, the powers referred to in that subsection may be exercised
during that period as if the warrant were still in force.

Things done in relation to warrants may be done remotely etc.

- (11) For a warrant related to premises, it is immaterial whether:
 - (a) a digital asset is seized, as described in this section, at the
premises or at any other place; or
 - (b) a thing mentioned in subsection (3), (4) or (5) is done at the
premises or at any other place.
- (12) For a warrant related to a person, it is immaterial whether:
 - (a) a digital asset is seized, as described in this section, in the
presence of the person or at any other place; or
 - (b) a thing mentioned in subsection (3), (4) or (5) is done in the
presence of the person or at any other place.

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3G Availability of assistance and use of force in executing a warrant

In executing a warrant:

- (a) the executing officer may obtain such assistance; and
- (b) the executing officer, or a person who is a constable and who is assisting in executing the warrant may use such force against persons and things; and
- (c) a person who is not a constable and who has been authorised to assist in executing the warrant may use such force against things;

as is necessary and reasonable in the circumstances.

3H Details of warrant to be given to occupier etc.

- (1) If a warrant in relation to premises is being executed and the occupier of the premises or another person who apparently represents the occupier is present at the premises, the executing officer or a constable assisting must make available to that person a copy of the warrant.
- (2) If a warrant in relation to a person is being executed, the executing officer or a constable assisting must make available to that person a copy of the warrant.
- (3) If a person is searched under a warrant in relation to premises, the executing officer or a constable assisting must show the person a copy of the warrant.
- (4) The executing officer must identify himself or herself to the person at the premises or the person being searched, as the case may be.
- (5) The copy of the warrant referred to in subsections (1) and (2) need not include the signature of the issuing officer or the seal of the relevant court.

3J Specific powers available to constables executing warrant

- (1) In executing a warrant in relation to premises, the executing officer or a constable assisting may:
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- (a) for a purpose incidental to the execution of the warrant; or
 - (b) if the occupier of the premises consents in writing;take photographs (including video recordings) of the premises or of things at the premises.
- (2) If a warrant in relation to premises is being executed, the executing officer and the constables assisting may, if the warrant is still in force, complete the execution of the warrant after all of them temporarily cease its execution and leave the premises:
 - (a) for not more than one hour; or
 - (aa) if there is an emergency situation, for not more than 12 hours or such longer period as allowed by an issuing officer under section 3JA; or
 - (b) for a longer period if the occupier of the premises consents in writing.
- (3) If:
 - (a) the execution of a warrant is stopped by an order of a court; and
 - (b) the order is later revoked or reversed on appeal; and
 - (c) the warrant is still in force;the execution of the warrant may be completed.

3JA Extension of time to re-enter premises in emergency situations

- (1) If:
 - (a) a warrant in relation to premises is being executed; and
 - (b) there is an emergency situation; and
 - (c) the executing officer or a constable assisting believes on reasonable grounds that the executing officer and the constables assisting will not be able to return to the premises within the 12 hour period mentioned in paragraph 3J(2)(aa);he or she may apply to an issuing officer for an extension of that period.
- (2) Before making the application, the executing officer or a constable assisting must, if it is practicable to do so, give notice to the

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occupier of the premises of his or her intention to apply for an extension.

- (3) If an application mentioned in subsection (1) has been made, an issuing officer may extend the period during which the executing officer and constables assisting may be away from the premises if:
- (a) the issuing officer is satisfied, by information on oath or affirmation, that there are exceptional circumstances that justify the extension; and
 - (b) the extension would not result in the period ending after the expiry of the warrant.

3K Use of equipment to examine or process things

Equipment may be brought to warrant premises

- (1) The executing officer of a warrant in relation to premises, or constable assisting, may bring to the warrant premises any equipment reasonably necessary for the examination or processing of a thing found at the premises in order to determine whether it is a thing that may be seized under the warrant or a thing that suggests the existence of a digital asset that may be seized under the warrant.

Thing may be moved for examination or processing

- (2) A thing found at warrant premises, or a thing found during a search under a warrant that is in force in relation to a person, may be moved to another place for examination or processing in order to determine whether the thing may be seized under a warrant, or the thing suggests the existence of a digital asset that may be seized under a warrant, if:
- (a) both of the following apply:
 - (i) it is significantly more practicable to do so having regard to the timeliness and cost of examining or processing the thing at another place and the availability of expert assistance;

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- (ii) the executing officer or constable assisting suspects on reasonable grounds that the thing contains or constitutes evidential material or the thing suggests the existence of a digital asset that may be seized under a warrant; or
- (b) for a thing found at warrant premises—the occupier of the premises consents in writing; or
- (c) for a thing found during a search under a warrant that is in force in relation to a person—the person consents in writing.

Notification of examination or processing and right to be present

- (3) If a thing is moved to another place for the purpose of examination or processing under subsection (2), the executing officer must, if it is practicable to do so:
 - (a) inform the person referred to in paragraph (2)(b) or (c) (as the case requires) of the address of the place and the time at which the examination or processing will be carried out; and
 - (b) allow that person or his or her representative to be present during the examination or processing.
- (3AA) The executing officer need not comply with paragraph (3)(a) or (b) if he or she believes on reasonable grounds that to do so might:
 - (a) endanger the safety of a person; or
 - (b) prejudice an investigation or prosecution.

Time limit on moving a thing

- (3A) The thing may be moved to another place for examination or processing for no longer than whichever of the following is applicable:
 - (a) if the thing is a computer or data storage device—30 days;
 - (b) otherwise—14 days.
- (3B) An executing officer may apply to an issuing officer for one or more extensions of that time if the executing officer believes on reasonable grounds that the thing cannot be examined or processed within the time applicable under subsection (3A) or that time as previously extended.

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- (3C) The executing officer must give notice of the application to the person referred to in paragraph (2)(b) or (c) (as the case requires), and that person is entitled to be heard in relation to the application.
- (3D) A single extension cannot exceed whichever of the following is applicable:
 - (a) if the thing is a computer or data storage device—14 days;
 - (b) otherwise—7 days.

Equipment at warrant premises may be operated

- (4) The executing officer of a warrant in relation to premises, or a constable assisting, may operate equipment already at the warrant premises to carry out the examination or processing of a thing found at the premises in order to determine whether it is a thing that may be seized under the warrant, or a thing that suggests the existence of a digital asset that may be seized under the warrant, if the executing officer or constable believes on reasonable grounds that:
 - (a) the equipment is suitable for the examination or processing; and
 - (b) the examination or processing can be carried out without damage to the equipment or the thing.

Extended powers of examination and processing

- (5) For the purposes of this section, if a computer or data storage device (the **relevant computer or device**) was found in the course of a search authorised under a warrant, the examination or processing of the relevant computer or device may include:
 - (a) using:
 - (i) the relevant computer or device; or
 - (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
 - (iii) any other electronic equipment; or
 - (iv) a data storage device;

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- for the purpose of obtaining access to data (the **relevant data**) that is held in the relevant computer or device in order to determine whether the relevant computer or device is a thing that may be seized under the warrant or a thing that suggests the existence of a digital asset that may be seized under the warrant; and
- (b) if necessary to achieve the purpose mentioned in paragraph (a)—to add, copy, delete or alter other data in the relevant computer or device; and
 - (c) if, having regard to other methods (if any) of obtaining access to the relevant data which are likely to be as effective, it is reasonable in all the circumstances to do so:
 - (i) to use any other computer or a communication in transit to access the relevant data; and
 - (ii) if necessary to achieve that purpose—to add, copy, delete or alter other data in the computer or the communication in transit; and
 - (d) to copy any data to which access has been obtained, and that appears to be relevant for the purposes of determining whether the relevant computer or device is a thing that may be seized under the warrant or a thing that suggests the existence of a digital asset that may be seized under the warrant; and
 - (e) to do any other thing reasonably incidental to any of the above.
- (6) For the purposes of this section, if a computer (the **relevant computer**) was found in the course of a search authorised under a warrant, the examination or processing of the relevant computer may include:
- (a) using:
 - (i) the relevant computer; or
 - (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
 - (iii) any other electronic equipment;

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for the purpose of obtaining access to data (the ***relevant account-based data***) that is account-based data in relation to:

- (iv) a person who is the owner or lessee of the relevant computer; or
- (v) a person who uses or has used the relevant computer; or
- (vi) a deceased person who, before the person's death, was the owner or lessee of the relevant computer; or
- (vii) a deceased person who, before the person's death, used the relevant computer;

in order to determine whether the relevant computer is a thing that may be seized under the warrant or a thing that suggests the existence of a digital asset that may be seized under the warrant; and

- (b) if necessary to achieve the purpose mentioned in paragraph (a)—to add, copy, delete or alter other data in the relevant computer; and
- (c) if, having regard to other methods (if any) of obtaining access to the relevant account-based data which are likely to be as effective, it is reasonable in all the circumstances to do so:
 - (i) to use any other computer or a communication in transit to access the relevant account-based data; and
 - (ii) if necessary to achieve that purpose—to add, copy, delete or alter other data in the computer or the communication in transit; and
- (d) to copy any data to which access has been obtained, and that appears to be relevant for the purposes of determining whether the relevant computer is a thing that may be seized under the warrant or a thing that suggests the existence of a digital asset that may be seized under the warrant; and
- (e) to do any other thing reasonably incidental to any of the above.

- (7) Subsections (5) and (6) do not authorise the addition, deletion or alteration of data, or the doing of any thing, that is likely to:

- (a) materially interfere with, interrupt or obstruct:

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- (i) a communication in transit; or
 - (ii) the lawful use by other persons of a computer;
unless the addition, deletion or alteration, or the doing of the thing, is necessary to determine:
 - (iii) in the case of subsection (5)—whether the relevant computer or device is a thing that may be seized under the warrant, or a thing that suggests the existence of a digital asset that may be seized under the warrant, referred to in that subsection; or
 - (iv) in the case of subsection (6)—whether the relevant computer is a thing that may be seized under the warrant, or a thing that suggests the existence of a digital asset that may be seized under the warrant, referred to in that subsection; or
 - (b) cause any other material loss or damage to other persons lawfully using a computer.
- (8) In the case of a warrant that was in force in relation to premises, it is immaterial whether a thing mentioned in subsection (5) or (6) is done:
- (a) at the premises; or
 - (b) at any other place.
- (9) In the case of a warrant that was in force in relation to a person, it is immaterial whether a thing mentioned in subsection (5) or (6) is done:
- (a) in the presence of the person; or
 - (b) at any other place.

3L Use of electronic equipment at premises

- (1) The executing officer of a warrant in relation to premises, or a constable assisting, may operate electronic equipment at the warrant premises to access data (including data not held at the premises) if he or she suspects on reasonable grounds that the data constitutes evidential material or suggests the existence of a digital asset that may be seized under the warrant.

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Note: A constable can obtain an order requiring a person with knowledge of a computer or computer system to provide assistance: see section 3LA.

- (1A) If the executing officer or constable assisting suspects on reasonable grounds that any data accessed by operating the electronic equipment constitutes evidential material or suggests the existence of a digital asset that may be seized under the warrant, he or she may:
- (a) copy any or all of the data accessed by operating the electronic equipment to a disk, tape or other associated device brought to the premises; or
 - (b) if the occupier of the premises agrees in writing—copy any or all of the data accessed by operating the electronic equipment to a disk, tape or other associated device at the premises;
- and take the device from the premises.
- (1B) If:
- (a) the executing officer or constable assisting takes the device from the premises; and
 - (b) the Commissioner is satisfied that the data is not required (or is no longer required) for a purpose mentioned in section 3ZQU or for other judicial or administrative review proceedings;
- the Commissioner must arrange for:
- (c) the removal of the data from any device in the control of the Australian Federal Police; and
 - (d) the destruction of any other reproduction of the data in the control of the Australian Federal Police.
- (2) If the executing officer or a constable assisting, after operating the equipment, finds that evidential material is accessible by doing so or finds a thing (whether or not held on the equipment) that suggests the existence of a digital asset that may be seized under the warrant, he or she may:
- (a) seize the equipment and any disk, tape or other associated device; or
-

Section 3L

- (b) if the material or thing can, by using facilities at the premises, be put in documentary form—operate the facilities to put the material or thing in that form and seize the documents so produced.
- (3) A constable may seize equipment under paragraph (2)(a) only if:
 - (a) it is not practicable to copy the data as mentioned in subsection (1A) or to put the material or thing in documentary form as mentioned in paragraph (2)(b); or
 - (b) possession by the occupier of the equipment could constitute an offence.
- (4) If the executing officer or a constable assisting suspects on reasonable grounds that:
 - (a) evidential material may be accessible by operating electronic equipment at the premises; and
 - (b) expert assistance is required to operate the equipment; and
 - (c) if he or she does not take action under this subsection, the material may be destroyed, altered or otherwise interfered with;he or she may do whatever is necessary to secure the equipment, whether by locking it up, placing a guard or otherwise.
- (5) The executing officer or a constable assisting must give notice to the occupier of the premises of his or her intention to secure equipment and of the fact that the equipment may be secured for up to 24 hours.
- (6) The equipment may be secured:
 - (a) for a period not exceeding 24 hours; or
 - (b) until the equipment has been operated by the expert;whichever happens first.
- (7) If the executing officer or a constable assisting believes on reasonable grounds that the expert assistance will not be available within 24 hours, he or she may apply to an issuing officer for an extension of that period.

Section 3LAA

- (8) The executing officer or a constable assisting must give notice to the occupier of the premises of his or her intention to apply for an extension, and the occupier is entitled to be heard in relation to the application.
- (9) The provisions of this Division relating to the issue of warrants apply, with such modifications as are necessary, to the issuing of an extension.

3LAA Use of electronic equipment at other place

- (1) If electronic equipment is moved to another place under subsection 3K(2), the executing officer or a constable assisting may operate the equipment to:
 - (a) access data (including data held at another place); or
 - (b) access account-based data.
- (2) If the executing officer or constable assisting suspects on reasonable grounds that any data accessed by operating the electronic equipment constitutes evidential material, or suggests the existence of a digital asset that may be seized under a warrant, he or she may copy any or all of the data accessed by operating the electronic equipment to a disk, tape or other associated device.
- (3) If the Commissioner is satisfied that the data is not required (or is no longer required) for a purpose mentioned in section 3ZQU or for other judicial or administrative review proceedings, the Commissioner must arrange for:
 - (a) the removal of the data from any device in the control of the Australian Federal Police; and
 - (b) the destruction of any other reproduction of the data in the control of the Australian Federal Police.
- (4) If the executing officer or a constable assisting, after operating the equipment, finds that evidential material is accessible by doing so or finds a thing (whether or not held on the equipment) that suggests the existence of a digital asset that may be seized under a warrant, he or she may:

Section 3LA

- (a) seize the equipment and any disk, tape or other associated device; or
 - (b) if the material or thing can be put in documentary form—put the material or thing in that form and seize the documents so produced.
- (5) A constable may seize equipment under paragraph (4)(a) only if:
- (a) it is not practicable to copy the data as mentioned in subsection (2) or to put the material or thing in documentary form as mentioned in paragraph (4)(b); or
 - (b) possession of the equipment, by the person referred to in paragraph 3K(2)(b) or (c) (as the case requires), could constitute an offence.

3LA Person with knowledge of a computer or a computer system to assist access etc.

- (1) A constable may apply to a magistrate for an order requiring a specified person to provide any information or assistance that is reasonable and necessary to allow a constable to do one or more of the following:
- (a) access data held in, or accessible from, a computer or data storage device that:
 - (i) is on warrant premises; or
 - (ia) is found in the course of an ordinary search of a person, or a frisk search of a person, authorised by a warrant under section 3E; or
 - (ii) has been moved under subsection 3K(2) and is at a place for examination or processing; or
 - (iii) has been seized under this Division;
 - (b) copy data held in, or accessible from, a computer, or data storage device, described in paragraph (a) to another data storage device;
 - (c) convert into documentary form or another form intelligible to a constable:

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- (i) data held in, or accessible from, a computer, or data storage device, described in paragraph (a); or
 - (ii) data held in a data storage device to which the data was copied as described in paragraph (b); or
 - (iii) data held in a data storage device removed from warrant premises under subsection 3L(1A).
- (2) The magistrate may grant the order if the magistrate is satisfied that:
 - (a) there are reasonable grounds for suspecting that evidential material is held in, or is accessible from, the computer or data storage device; and
 - (b) the specified person is:
 - (i) reasonably suspected of having committed the offence stated in the relevant warrant; or
 - (ii) the owner or lessee of the computer or device; or
 - (iii) an employee of the owner or lessee of the computer or device; or
 - (iv) a person engaged under a contract for services by the owner or lessee of the computer or device; or
 - (v) a person who uses or has used the computer or device; or
 - (vi) a person who is or was a system administrator for the system including the computer or device; and
 - (c) the specified person has relevant knowledge of:
 - (i) the computer or device or a computer network of which the computer or device forms or formed a part; or
 - (ii) measures applied to protect data held in, or accessible from, the computer or device.
- (3) If:
 - (a) the computer or data storage device that is the subject of the order is seized under this Division; and
 - (b) the order was granted on the basis of an application made before the seizure;the order does not have effect on or after the seizure.

Section 3LA

Note: An application for another order under this section relating to the computer or data storage device may be made after the seizure.

- (4) If the computer or data storage device is not on warrant premises, the order must:
- (a) specify the period within which the person must provide the information or assistance; and
 - (b) specify the place at which the person must provide the information or assistance; and
 - (c) specify the conditions (if any) determined by the magistrate as the conditions to which the requirement on the person to provide the information or assistance is subject.

Offences

- (5) A person commits an offence if:
- (a) the person is subject to an order under this section; and
 - (b) the person is capable of complying with a requirement in the order; and
 - (c) the person omits to do an act; and
 - (d) the omission contravenes the requirement.

Penalty: Imprisonment for 5 years or 300 penalty units, or both.

- (6) A person commits an offence if:
- (a) the person is subject to an order under this section; and
 - (b) the person is capable of complying with a requirement in the order; and
 - (c) the person omits to do an act; and
 - (d) the omission contravenes the requirement; and
 - (e) the offence to which the relevant warrant relates is:
 - (i) a serious offence; or
 - (ii) a serious terrorism offence.

Penalty: Imprisonment for 10 years or 600 penalty units, or both.

Section 3LB

Additional use of information etc.

- (7) If information or assistance is provided under this section in connection with an investigation into one or more alleged offences, this Act does not, by implication, prevent the information or assistance from being used in connection with the execution of an account takeover warrant (within the meaning of Part IAAC) that relates to that investigation.

3LB Accessing data held on certain premises—notification to occupier of that premises

- (1) If:
- (a) data is accessed, in relation to a warrant, under subsection 3L(1) or 3LAA(1); and
 - (aa) either:
 - (i) if the warrant is in relation to premises—the data is held on premises other than the warrant premises; or
 - (ii) if the warrant is in relation to a person—the data is held on any premises; and
 - (b) it is practicable to notify the occupier of the premises on which the data is held that the data has been accessed under a warrant;
- the executing officer must:
- (c) do so as soon as practicable; and
 - (d) if the executing officer has arranged, or intends to arrange, for continued access to the data under subsection 3L(1A) or (2) or 3LAA(2) or (4)—include that information in the notification.
- (2) A notification under subsection (1) must include sufficient information to allow the occupier of the premises on which the data is held to contact the executing officer.

3M Compensation for damage to equipment

- (1) This section applies if:
-

Section 3M

- (a) as a result of equipment being operated as mentioned in subsection 3FA(7) or section 3K, 3L or 3LAA:
 - (i) damage is caused to the equipment; or
 - (ii) damage is caused to data recorded on the equipment or data access to which was obtained from the operation of the equipment; or
 - (iii) programs associated with the use of the equipment, or with the use of the data, are damaged or corrupted; and
 - (b) the damage or corruption occurs because:
 - (i) insufficient care was exercised in selecting the person who was to operate the equipment; or
 - (ii) insufficient care was exercised by the person operating the equipment.
- (2) The Commonwealth must pay the owner of the equipment, or the user of the data or programs, such reasonable compensation for the damage or corruption as the Commonwealth and the owner or user agree on.
- (3) However, if the owner or user and the Commonwealth fail to agree, the owner or user may institute proceedings in a court of competent jurisdiction for such reasonable amount of compensation as the court determines.
- (4) In determining the amount of compensation payable, regard is to be had to whether any of the following persons, if they were available at the time, provided any appropriate warning or guidance on the operation of the equipment:
- (a) if the equipment was operated under a warrant issued in relation to premises—the occupier of the premises, or the occupier’s employees or agents;
 - (b) if the equipment was operated under a warrant issued in relation to a person—that person, or that person’s agents.
- (5) Compensation is payable out of money appropriated by the Parliament.
- (6) For the purposes of subsection (1):
-

Section 3N

damage, in relation to data, includes damage by erasure of data or addition of other data.

3N Copies of seized things to be provided

- (1) Subject to subsection (2), if a constable seizes, under a warrant relating to premises:

- (a) a document, film, computer file or other thing that can be readily copied; or
- (b) a storage device the information in which can be readily copied;

the constable must, if requested to do so by the occupier of the premises or another person who apparently represents the occupier and who is present when the warrant is executed, give a copy of the thing or the information to that person as soon as practicable after the seizure.

- (2) Subsection (1) does not apply if:

- (a) the thing that has been seized was seized under subsection 3L(1A) or paragraph 3L(2)(b) or 3LAA(4)(b); or
- (aaa) the thing that has been seized is a digital asset or a thing that suggests the existence of a digital asset; or
- (aa) the thing embodies data that was accessed under the warrant at a place other than the premises; or
- (b) possession by the occupier of the document, film, computer file, thing or information could constitute an offence.

3P Occupier entitled to be present during search

- (1) If a warrant in relation to premises is being executed and the occupier of the premises or another person who apparently represents the occupier is present at the premises, the person is, subject to Part IC, entitled to observe the search being conducted.
- (2) The right to observe the search being conducted ceases if the person impedes the search.

Section 3Q

- (3) This section does not prevent 2 or more areas of the premises being searched at the same time.

3Q Receipts for things seized under warrant or moved

- (1) If a thing is seized under a warrant or moved under subsection 3K(2), the executing officer or a constable assisting must provide a receipt for the thing.
- (2) If 2 or more things are seized or moved, they may be covered in the one receipt.

3R Warrants by telephone or other electronic means

- (1) A constable may make an application to an issuing officer for a warrant by telephone, telex, fax or other electronic means:
- (a) in an urgent case; or
 - (b) if the delay that would occur if an application were made in person would frustrate the effective execution of the warrant.
- (2) The issuing officer:
- (a) may require communication by voice to the extent that it is practicable in the circumstances; and
 - (b) may make a recording of the whole or any part of any such communication by voice.
- (3) An application under this section must include all information required to be provided in an ordinary application for a warrant, but the application may, if necessary, be made before the information is sworn.
- (4) If an application is made to an issuing officer under this section and the issuing officer, after considering the information and having received and considered such further information (if any) as the issuing officer required, is satisfied that:
- (a) a warrant in the terms of the application should be issued urgently; or

Section 3S

- (b) the delay that would occur if an application were made in person would frustrate the effective execution of the warrant; the issuing officer may complete and sign the same form of warrant that would be issued under section 3E.
- (5) If the issuing officer decides to issue the warrant, the issuing officer is to inform the applicant, by telephone, telex, fax or other electronic means, of the terms of the warrant and the day on which and the time at which it was signed.
- (6) The applicant must then complete a form of warrant in terms substantially corresponding to those given by the issuing officer, stating on the form the name of the issuing officer and the day on which and the time at which the warrant was signed.
- (7) The applicant must, not later than the day after the day of expiry of the warrant or the day after the day on which the warrant was executed, whichever is the earlier, give or transmit to the issuing officer the form of warrant completed by the applicant and, if the information referred to in subsection (3) was not sworn, that information duly sworn.
- (8) The issuing officer is to attach to the documents provided under subsection (7) the form of warrant completed by the issuing officer.
- (9) If:
- (a) it is material, in any proceedings, for a court to be satisfied that the exercise of a power under a warrant issued under this section was duly authorised; and
 - (b) the form of warrant signed by the issuing officer is not produced in evidence;
- the court is to assume, unless the contrary is proved, that the exercise of the power was not duly authorised.

3S Restrictions on personal searches

A warrant cannot authorise a strip search or a search of a person's body cavities.

Section 3SA

3SA Relationship of this Division to parliamentary privileges and immunities

To avoid doubt, this Division does not affect the law relating to the powers, privileges and immunities of any of the following:

- (a) each House of the Parliament;
- (b) the members of each House of the Parliament;
- (c) the committees of each House of the Parliament and joint committees of both Houses of the Parliament.

Section 3T

Division 3—Stopping and searching conveyances

3T Searches without warrant in emergency situations

- (1) This section applies if a constable suspects, on reasonable grounds, that:
 - (a) a thing relevant to an indictable offence is in or on a conveyance; and
 - (b) it is necessary to exercise a power under subsection (2) in order to prevent the thing from being concealed, lost or destroyed; and
 - (c) it is necessary to exercise the power without the authority of a search warrant because the circumstances are serious and urgent.
- (2) The constable may:
 - (a) stop and detain the conveyance; and
 - (b) search the conveyance and any container in or on the conveyance, for the thing; and
 - (c) seize the thing if he or she finds it there.
- (3) If, in the course of searching for the thing, the constable finds another thing relevant to an indictable offence or a thing relevant to a summary offence, the constable may seize that thing if he or she suspects, on reasonable grounds, that:
 - (a) it is necessary to seize it in order to prevent its concealment, loss or destruction; and
 - (b) it is necessary to seize it without the authority of a search warrant because the circumstances are serious and urgent.
- (4) The constable must exercise his or her powers subject to section 3U.

3U How a constable exercises a power under section 3T

When a constable exercises a power under section 3T in relation to a conveyance, he or she:

- (a) may use such assistance as is necessary; and
- (b) must search the conveyance in a public place or in some other place to which members of the public have ready access; and
- (c) must not detain the conveyance for longer than is necessary and reasonable to search it and any container found in or on the conveyance; and
- (d) may use such force as is necessary and reasonable in the circumstances, but must not damage the conveyance or any container found in or on the conveyance by forcing open a part of the conveyance or container unless:
 - (i) the person (if any) apparently in charge of the conveyance has been given a reasonable opportunity to open that part or container; or
 - (ii) it is not possible to give that person such an opportunity.

Part IAA Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

Division 3A Powers in relation to terrorist acts and terrorism offences

Section 3UA

Division 3A—Powers in relation to terrorist acts and terrorism offences

Subdivision A—Definitions

3UA Definitions

In this Division:

assessment officer: see subsection 3UJC(1).

Commonwealth place means a Commonwealth place within the meaning of the *Commonwealth Places (Application of Laws) Act 1970*.

nominated ART member means a person in relation to whom a nomination is in force under section 3UJE.

police officer means:

- (a) a member of the Australian Federal Police (within the meaning of the *Australian Federal Police Act 1979*); or
- (b) a special member (within the meaning of that Act); or
- (c) a member, however described, of a police force of a State or Territory.

post-entry warrant: see subsection 3UEB(1).

prescribed security zone means a zone in respect of which a declaration under section 3UJ is in force.

serious offence related item means a thing that a police officer conducting a search under section 3UD reasonably suspects:

- (a) may be used in a serious offence; or
- (b) is connected with the preparation for, or the engagement of a person in, a serious offence; or
- (c) is evidence of, or relating to, a serious offence.

State or Territory police oversight body means:

Section 3UB

- (a) an agency, body or authority that; or
- (b) a person who;
under a law of a State or Territory, has functions relating to the investigation of complaints about the conduct of members of the police force of the State or Territory.

terrorism related item means a thing that a police officer conducting a search under section 3UD reasonably suspects:

- (a) may be used in a terrorist act; or
- (b) is connected with the preparation for, or the engagement of a person in, a terrorist act; or
- (c) is evidence of, or relating to, a terrorist act.

vehicle includes any means of transport (and, without limitation, includes a vessel and an aircraft).

Subdivision B—Powers

3UB Application of Subdivision

- (1) A police officer may exercise the powers under this Subdivision in relation to a person if:
 - (a) the person is in a Commonwealth place (other than a prescribed security zone) and the officer suspects on reasonable grounds that the person might have just committed, might be committing or might be about to commit, a terrorist act; or
 - (b) the person is in a Commonwealth place in a prescribed security zone.
- (2) This section does not limit the operation of section 3UEA.

3UC Requirement to provide name etc.

- (1) A police officer may request the person to provide the officer with the following details:
 - (a) the person's name;

Part IAA Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

Division 3A Powers in relation to terrorist acts and terrorism offences

Section 3UD

- (b) the person's residential address;
 - (c) the person's reason for being in that particular Commonwealth place;
 - (d) evidence of the person's identity.
- (2) If a police officer:
 - (a) makes a request under subsection (1); and
 - (b) informs the person:
 - (i) of the officer's authority to make the request; and
 - (ii) that it may be an offence not to comply with the request;the person commits an offence if:
 - (c) the person fails to comply with the request; or
 - (d) the person gives a name or address that is false in a material particular.

Penalty: 20 penalty units.

Note: A more serious offence of obstructing a Commonwealth public official may also apply (see section 149.1 of the *Criminal Code*).

- (3) Subsection (2) does not apply if the person has a reasonable excuse.

Note: A defendant bears an evidential burden in relation to the matter in subsection (3) (see subsection 13.3(3) of the *Criminal Code*).

3UD Stopping and searching

- (1) A police officer may:
 - (a) stop and detain the person for the purpose of conducting a search under paragraph (b); and
 - (b) conduct one of the following searches for a terrorism related item:
 - (i) an ordinary search or a frisk search of the person;
 - (ii) a search of any thing that is, or that the officer suspects on reasonable grounds to be, under the person's immediate control;

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- (iii) a search of any vehicle that is operated or occupied by the person;
- (iv) a search of any thing that the person has, or that the officer suspects on reasonable grounds that the person has, brought into the Commonwealth place.

Informing a person of a right to make a complaint

- (1A) A police officer who stops and detains a person under this section must inform the person of any right the person has to make a complaint to:
- (a) the Commonwealth Ombudsman; or
 - (b) a State or Territory police oversight body;
- about the conduct of the police officer in exercising the powers conferred by this section.
- (1B) Subsection (1A) does not require a police officer to inform a person of a right if it is not reasonably practicable to do so because of circumstances of urgency.

Conditions relating to conduct of search of person

- (2) A police officer who conducts a search of a person under this section must not use more force, or subject the person to greater indignity, than is reasonable and necessary in order to conduct the search.
- (3) A person must not be detained under this section for longer than is reasonably necessary for a search to be conducted under this section.

Other conditions relating to conduct of search of person or thing

- (4) In searching a thing (including a vehicle) under subsection (1), a police officer may use such force as is reasonable and necessary in the circumstances, but must not damage the thing by forcing it, or a part of it, open unless:

Part IAA Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

Division 3A Powers in relation to terrorist acts and terrorism offences

Section 3UE

- (a) the person has been given a reasonable opportunity to open the thing or part of it; or
- (b) it is not possible to give that opportunity.

3UE Seizure of terrorism related items and serious offence related items

If a police officer:

- (a) conducts a search under section 3UD; and
- (b) finds, in the course of the search, a thing that is:
 - (i) a terrorism related item; or
 - (ii) a serious offence related item;

the officer may seize the thing.

3UEA Emergency entry to premises without warrant

- (1) A police officer may enter premises in accordance with this section if the police officer suspects, on reasonable grounds, that:
 - (a) it is necessary to exercise a power under subsection (2) in order to prevent a thing that is on the premises from being used in connection with a terrorism offence; and
 - (b) it is necessary to exercise the power without the authority of a search warrant because there is a serious and imminent threat to a person's life, health or safety.
- (2) The police officer may:
 - (a) search the premises for the thing; and
 - (b) seize the thing if he or she finds it there.
- (3) If, in the course of searching for the thing, the police officer finds another thing that the police officer suspects, on reasonable grounds, to be relevant to an indictable offence or a summary offence, the police officer may secure the premises pending the obtaining of a warrant under Part IAA in relation to the premises.
- (4) Premises must not be secured under subsection (3) for longer than is reasonably necessary to obtain the warrant.

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- (5) In the course of searching for the thing, the police officer may also seize any other thing, or do anything to make the premises safe, if the police officer suspects, on reasonable grounds, that it is necessary to do so:
- (a) in order to protect a person's life, health or safety; and
 - (b) without the authority of a search warrant because the circumstances are serious and urgent.
- (6) In exercising powers under this section:
- (a) the police officer may use such assistance; and
 - (b) the police officer, or a person who is also a police officer and who is assisting the police officer, may use such force against persons and things; and
 - (c) a person (other than a police officer) who is authorised by the police officer to assist the police officer may use such force against things;
- as is necessary and reasonable in the circumstances.

Notification

- (7) If one or more police officers have entered premises in accordance with this section, a police officer must, within 24 hours after the entry:
- (a) notify the occupier of the premises that the entry has taken place; or
 - (b) if it is not practicable so to notify the occupier—leave a written notice of the entry at the premises.

3UEB Emergency entry to premises without warrant—post-entry warrants

Requirement to apply for post-entry warrant

- (1) A police officer who has entered premises under, or purportedly under, subsection 3UEA(1) must:

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- (a) apply to an assessment officer for a warrant (a ***post-entry warrant***) under this section in relation to the entry to the premises; and
 - (b) do so as soon as practicable after the exercise, or purported exercise, of powers under section 3UEA in relation to the premises.
- (2) The application must:
- (a) be in writing; and
 - (b) set out:
 - (i) the nature of the matters suspected by the police officer for the purposes of paragraphs 3UEA(1)(a) and (b); and
 - (ii) the grounds on which the police officer held the suspicion; and
 - (c) state whether the police officer is:
 - (i) a member of the Australian Federal Police (within the meaning of the *Australian Federal Police Act 1979*); or
 - (ii) a special member (within the meaning of that Act); or
 - (iii) a member, however described, of a police force of a State or Territory; and
 - (d) if the police officer is a member mentioned in subparagraph (c)(iii) of this subsection—identify the relevant State or Territory; and
 - (e) state the police officer's name, rank, identification number (however described) and police station (if applicable and necessary); and
 - (f) state the police officer's contact details, including details of how the assessment officer may give to the police officer the following:
 - (i) any request in writing under subsection (4) of this section for information or documents;
 - (ii) the post-entry warrant or a notice of refusal to issue the warrant; and
 - (g) if the police officer is a member, or special member, mentioned in subparagraph (c)(i) or (ii) of this subsection—include details of how the assessment officer may give to the

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- Commissioner the post-entry warrant or a notice of refusal to issue the warrant; and
- (h) if the police officer is a member mentioned in subparagraph (c)(iii) of this subsection—include details of how the assessment officer may give to the Commissioner of Police in the police force of the relevant State or Territory, or the person holding equivalent rank, the post-entry warrant or a notice of refusal to issue the warrant; and
 - (i) set out any information that:
 - (i) is known to the police officer; and
 - (ii) the police officer considers may assist the assessment officer to give, to any current or former owners or occupiers of the premises who have been affected by the exercise, or purported exercise, of the powers under section 3UEA in relation to the premises, the post-entry warrant or a notice of refusal to issue the warrant; and
 - (j) set out the time, date and place of the entry; and
 - (k) set out any other information, and be accompanied by any documents, the police officer considers relevant to the application.
- (3) The information in the application must be sworn or affirmed by the police officer.

Requesting further information or documents

- (4) The assessment officer may request, in writing, that the police officer provide further information or documents relating to the application, and that the police officer do so in a particular way.
- (5) If the police officer is unable to provide some or all of the further information or documents requested, the police officer must, within a reasonable period, notify the assessment officer:
 - (a) of the information or documents that cannot be provided; and
 - (b) of the reasons why the information or documents cannot be provided.

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- (6) If the assessment officer is notified in accordance with subsection (5) that some or all of the further information or documents cannot be provided, the assessment officer must (unless there is another reason not to) continue to consider the application despite having not received the further information or documents.

Issue of warrant

- (7) The assessment officer must:
- (a) issue the post-entry warrant if, and only if, the assessment officer is satisfied, on the balance of probabilities, that in entering the premises the police officer suspected, on reasonable grounds, the matters mentioned in paragraphs 3UEA(1)(a) and (b); and
 - (b) otherwise, refuse to issue the post-entry warrant.
- (8) The issue of, or refusal to issue, the post-entry warrant does not affect whether or not the exercise, or purported exercise, of powers under section 3UEA was valid.

Note: Section 138 of the *Evidence Act 1995* (discretion to exclude improperly or illegally obtained evidence) may apply to evidence obtained as a result of the exercise, or purported exercise, of powers under section 3UEA of this Act.

Content of warrant

- (9) The post-entry warrant, if issued, must include the following:
- (a) the information mentioned in paragraphs (2)(c), (d), (e) and (j);
 - (b) a statement of the reasons for issuing the warrant;
 - (c) a statement that the warrant has been issued under this section.

Notification requirements

- (10) If the assessment officer issues the post-entry warrant, the assessment officer must give a copy of the warrant to the persons

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mentioned in subsection (12) as soon as reasonably practicable
after issuing the warrant.

- (11) If the assessment officer refuses to issue the post-entry warrant:
- (a) the assessment officer must give written notice of the refusal to the persons mentioned in subsection (12) as soon as reasonably practicable after refusing to issue the warrant; and
 - (b) the notice must include a statement of reasons for refusing to issue the warrant; and
 - (c) in the case of a notice given to a person mentioned in paragraph (12)(d)—the notice must also contain information about any right the person may have to:
 - (i) make a complaint to the Commonwealth Ombudsman under the *Ombudsman Act 1976*; or
 - (ii) take civil or other action;in relation to the entry to the premises or the exercise, or purported exercise, of powers under section 3UEA in relation to the premises.
- (12) For the purposes of subsections (10) and (11), the persons are the following:
- (a) the police officer;
 - (b) if the police officer is a member of the Australian Federal Police (within the meaning of the *Australian Federal Police Act 1979*) or a special member (within the meaning of that Act)—the Commissioner;
 - (c) if the police officer is a member, however described, of a police force of a State or Territory—the Commissioner of Police in that police force or the person holding equivalent rank;
 - (d) any current or former owners or occupiers of the premises:
 - (i) whom the assessment officer considers have been affected by the exercise, or purported exercise, of the powers under section 3UEA in relation to the premises; and

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- (ii) to whom the assessment officer considers it is practicable to give the post-entry warrant or notice of refusal (as the case requires).

Protection of information

- (13) Despite subsections (9) and (11), a post-entry warrant or notice of refusal must not include information if disclosure of that information is likely to prejudice national security (within the meaning of the *National Security Information (Criminal and Civil Proceedings) Act 2004*).

3UF Seizure notices

Seizure notice to be served

- (1) A police officer who is for the time being responsible for a thing seized under section 3UE or 3UEA must, within 7 days after the day on which the thing was seized, serve a seizure notice on:
 - (a) the owner of the thing; or
 - (b) if the owner of the thing cannot be identified after reasonable inquiries—the person from whom the thing was seized.
- (2) Subsection (1) does not apply if:
 - (a) both:
 - (i) the owner of the thing cannot be identified after reasonable inquiries; and
 - (ii) the thing was not seized from a person; or
 - (b) it is not possible to serve the person required to be served under subsection (1).
- (3) A seizure notice must:
 - (a) identify the thing; and
 - (b) state the date on which the thing was seized; and
 - (c) state the ground or grounds on which the thing was seized; and

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- (d) state that, if the owner does not request the return of the thing within 90 days after the date of the notice, the thing is forfeited to the Commonwealth.

Forfeiture of thing seized

- (8) A thing is forfeited to the Commonwealth if the owner of the thing does not request its return:
- (a) before the end of the 90th day after the date of the seizure notice in relation to the thing; or
 - (b) if subsection (2) applied in relation to the thing so that a seizure notice was not served—before the end of the 90th day after the day on which the thing was seized.

3UH Relationship of Subdivision to other laws

- (1) The powers conferred, and duties imposed, by this Subdivision on police officers are in addition to, and not in derogation of, any other powers conferred, or duties imposed, by any other law of the Commonwealth or the law of a State or Territory.
- (2) This Division is not intended to exclude or limit the operation of any other law of the Commonwealth or the law of a State or Territory in so far as it is capable of operating concurrently with this Subdivision.

Subdivision C—Prescribed security zones

3UI Applications for declarations

A police officer may apply to the Minister for a declaration that a Commonwealth place be declared as a prescribed security zone.

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3UJ Minister may make declarations

Declaration

- (1) The Minister may declare, in writing, a Commonwealth place to be a prescribed security zone if he or she considers that a declaration would assist:
 - (a) in preventing a terrorist act occurring; or
 - (b) in responding to a terrorist act that has occurred.
- (1A) In deciding whether to make a declaration under subsection (1) in relation to a Commonwealth place on the ground mentioned in paragraph (1)(a) or (b), the Minister must have regard to:
 - (a) whether the impact of the declaration on the rights of persons in the Commonwealth place would be:
 - (i) reasonable; and
 - (ii) proportionate to that ground; and
 - (b) the appropriate duration of the declaration; and
 - (c) in the case of a declaration made on the ground mentioned in paragraph (1)(a)—the availability and effectiveness of any powers that:
 - (i) are conferred by a law of the Commonwealth (other than this Division) or a law of a State or Territory; and
 - (ii) would assist in preventing a terrorist act occurring; and
 - (d) in the case of a declaration made on the ground mentioned in paragraph (1)(b)—the availability and effectiveness of any powers that:
 - (i) are conferred by a law of the Commonwealth (other than this Division) or a law of a State or Territory; and
 - (ii) would assist in responding to a terrorist act that has occurred; and
 - (e) in the case of a declaration that is one of a series of successive declarations under subsection (1) in relation to the Commonwealth place—the impact and proportionality of that series of successive declarations; and
 - (f) such other matters (if any) as the Minister considers relevant.

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Declaration has effect

- (2) A declaration under this section has effect accordingly.

Duration of declaration

- (3) A declaration ceases to have effect:
- (a) at the end of 28 days after it is made; or
 - (b) if a shorter period is specified in the declaration—at the end of the shorter period;
- unless the declaration is revoked by the Minister before then.

Revocation of declaration

- (4) The Minister must revoke a declaration, in writing, if he or she is satisfied that:
- (a) in the case of a declaration made on the ground mentioned in paragraph (1)(a)—there is no longer a terrorism threat that justifies the declaration being continued; or
 - (b) in the case of a declaration made on the ground mentioned in paragraph (1)(b)—the declaration is no longer required.

Gazettal and publication of declaration

- (5) If a declaration of a Commonwealth place as a prescribed security zone under this section is made or revoked, the Minister must arrange for:
- (a) a statement to be prepared that:
 - (i) states that the declaration has been made or revoked, as the case may be; and
 - (ii) identifies the prescribed security zone; and
 - (b) the statement to be:
 - (i) broadcast by a television or radio station so as to be capable of being received within the place; and
 - (ii) published in the *Gazette*; and
 - (iii) published on the internet.

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Notification of declaration

- (5A) If a declaration of a Commonwealth place as a prescribed security zone under this section is made at a particular time, the Commissioner must:
- (a) as soon as practicable after that time; and
 - (b) in any event, within 72 hours after that time;
- arrange for:
- (c) a statement to be prepared that:
 - (i) states that the declaration has been made; and
 - (ii) identifies the prescribed security zone; and
 - (d) the statement to be given to:
 - (i) the Commonwealth Ombudsman; and
 - (ii) the Independent National Security Legislation Monitor; and
 - (iii) the Parliamentary Joint Committee on Intelligence and Security.

Reasons for making determination

- (5B) If a declaration was made under this section in relation to a Commonwealth place, the Minister must:
- (a) give the Parliamentary Joint Committee on Intelligence and Security a written statement setting out the reasons for the making of the declaration; and
 - (b) do so as soon as practicable after the declaration was made.

Effect of failure to publish or notify

- (6) A failure to comply with subsection (5) or (5A) does not make the declaration or its revocation ineffective to any extent.

Effect of failure to give statement of reasons

- (6A) A failure to comply with subsection (5B) does not make the declaration ineffective to any extent.

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Declaration or revocation not legislative instruments

- (7) A declaration or revocation made under this section is not a legislative instrument.

Subdivision CA—Reporting on exercise of powers under this Division

3UJA Report after powers are exercised

- (1) As soon as practicable after the exercise of a power or powers by an AFP police officer (or officers) under Subdivision B in relation to an incident, the Commissioner must give a report to the following:
- (a) the Minister;
 - (b) the Independent National Security Legislation Monitor;
 - (c) the Parliamentary Joint Committee on Intelligence and Security.
- (2) The report must state, in relation to the incident:
- (a) the number of instances when an AFP police officer (or officers) exercised a power under section 3UE, 3UEA or 3UF; and
 - (b) the circumstances in which an AFP police officer (or officers) exercised powers under section 3UC or 3UD.

- Note: The nature of these powers is as follows:
- (a) for section 3UC—requirement to provide names etc.;
 - (b) for section 3UD—stopping and searching;
 - (c) for section 3UE—seizure of terrorism related items and serious offence related items;
 - (d) for section 3UEA—emergency entry to premises without a warrant;
 - (e) for section 3UF—seizure notices.

- (3) An **AFP police officer** is a member or a special member of the Australian Federal Police (within the meaning of the *Australian Federal Police Act 1979*).

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Note: AFP police officers are police officers within the meaning of this Division (see section 3UA).

3UJB Annual report on exercise of powers

- (1) The Minister must, as soon as practicable after each 30 June, cause to be prepared a report about the exercise of powers under this Division, during the year ended on that 30 June.
- (2) Without limiting subsection (1), a report relating to a year must include the following matters:
 - (a) the number of instances when an AFP police officer (or officers) exercised a power under section 3UE, 3UEA or 3UF;
 - (b) the number of incidents when an AFP police officer (or officers) exercised powers under section 3UC or 3UD;
 - (c) the number of applications made under section 3UI for declarations that Commonwealth places are prescribed security zones;
 - (d) the number of declarations made under section 3UJ that Commonwealth places are prescribed security zones;
 - (e) the number of applications made by AFP police officers under section 3UEB for post-entry warrants;
 - (f) the number of post-entry warrants issued under section 3UEB in response to applications made by AFP police officers;
 - (g) the number of refusals to issue a post-entry warrant under section 3UEB in response to applications made by AFP police officers.
- (3) The Minister must cause copies of the report to be laid before each House of the Parliament within 15 sitting days of that House after the report is completed.
- (4) An **AFP police officer** is a member or a special member of the Australian Federal Police (within the meaning of the *Australian Federal Police Act 1979*).

Note: AFP police officers are police officers within the meaning of this Division (see section 3UA).

Subdivision CB—Matters relating to post-entry warrants

3UJC Assessment officers

- (1) An *assessment officer* is:
 - (a) a person:
 - (i) who is a Judge of the Federal Court of Australia, or a Judge of the Supreme Court of a State or Territory; and
 - (ii) in relation to whom a consent under subsection 3UJD(1), and a declaration under subsection 3UJD(2), are in force; or
 - (b) a nominated ART member.
- (2) A function or power conferred on a Judge by this Division is conferred on the Judge in a personal capacity and not as a court or a member of a court.
- (3) A Judge has, in relation to the performance or exercise of a function or power conferred on an assessment officer by this Division, the same protection and immunity as if the Judge were performing that function, or exercising that power, as, or as a member of, a court (being the court of which the Judge is a member).
- (4) A nominated ART member has, in relation to the performance or exercise of a function or power conferred on an assessment officer by this Division, the same protection and immunity as a Justice of the High Court has in relation to proceedings in the High Court.

3UJD Consent of Judges

- (1) A Judge of the Federal Court of Australia, or of the Supreme Court of a State or Territory, may, by writing, consent to be declared an assessment officer by the Minister administering the *Judiciary Act 1903* under subsection (2).
- (2) The Minister administering the *Judiciary Act 1903* may, by writing, declare a Judge in relation to whom a consent under

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subsection (1) is in force to be an assessment officer for the purposes of this Division.

- (3) A consent or declaration under this section is not a legislative instrument.

3UJE Nominated ART members

- (1) The Minister administering the *Administrative Review Tribunal Act 2024* (the **ART Minister**) may, by writing, nominate a person who holds one of the following appointments to the Administrative Review Tribunal to issue post-entry warrants and perform related functions under this Act:
- (a) Deputy President;
 - (b) a senior member appointed on a salaried basis.
- (2) Despite subsection (1), the ART Minister must not nominate a person who holds an appointment as a senior member on a salaried basis of the Tribunal unless the person:
- (a) is enrolled as a legal practitioner of the High Court, of another federal court or of the Supreme Court of a State or of the Australian Capital Territory; and
 - (b) has been so enrolled for not less than 5 years.
- (3) A nomination ceases to be in force if:
- (a) the nominated ART member ceases to hold an appointment described in subsection (1); or
 - (b) the ART Minister, by writing, withdraws the nomination.

Subdivision D—Sunset provision

3UK Sunset provision

- (1) A police officer must not exercise powers or perform duties under this Division (other than under section 3UEB or 3UF) after 7 December 2026.

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- (2) A declaration under section 3UJ that is in force at the end of 7 December 2026 ceases to be in force at that time.
- (3) A police officer cannot apply for, and the Minister cannot make, a declaration under section 3UJ after 7 December 2026.

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Division 3B Identity information requirements, and move-on powers, at airports

Section 3UL

Division 3B—Identity information requirements, and move-on powers, at airports

3UL Definitions—Division 3B

In this Division:

government photographic identity document means an identity document providing photographic identification of a person that is issued by:

- (a) the government of the Commonwealth or a State or Territory;
or
- (b) the government of a foreign country or part of a foreign country.

identity document:

- (a) means a document (such as a driver's licence, birth certificate, credit card or identity card) that evidences or indicates, or can be used to evidence or indicate, a person's identity or any aspect of a person's identity; but
- (b) does not include a document prescribed by regulation for the purposes of this definition.

major airport: see section 3UM.

protective service officer means a protective service officer within the meaning of the *Australian Federal Police Act 1979*.

public order and safe operation of a major airport: see section 3UN.

relevant criminal activity: see section 3UQ.

senior police officer: see section 3UQ.

3UM Meaning of *major airport*

- (1) For the purposes of this Division, each of the following airports is a *major airport*:
- (a) Adelaide Airport;
 - (b) Alice Springs Airport;
 - (c) Brisbane Airport;
 - (d) Canberra Airport;
 - (e) Darwin International Airport;
 - (f) Gold Coast Airport;
 - (g) Hobart International Airport;
 - (h) Launceston Airport;
 - (i) Melbourne (Tullamarine) Airport;
 - (j) Perth Airport;
 - (k) Sydney (Kingsford-Smith) Airport;
 - (l) Townsville Airport;
 - (m) an airport determined by the Minister under section 3UO.
- (2) A reference in this Division to a *major airport* includes a reference to:
- (a) for an airport mentioned in paragraphs (1)(a) to (l)—the place made up of the land described in relation to the airport in regulations made for the purposes of the definition of *airport site* in section 5 of the *Airports Act 1996*; and
 - (b) for an airport determined by the Minister under section 3UO—the place made up of the land described in the determination in relation to the airport; and
 - (c) for any airport mentioned in subsection (1)—any building, structure, installation or equipment situated on the relevant land mentioned in paragraph (a) or (b) of this subsection.

3UN Meaning of *public order and safe operation*

- (1) In this Division, the *public order and safe operation* of a major airport means:

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- (a) the public order of the airport, or flights to and from the airport; or
 - (b) the safety of persons at the airport, or on flights to and from the airport; or
 - (c) the safe operation of the airport, or flights to and from the airport.
- (2) However, the exercise of a person's right to engage lawfully in advocacy, protest, dissent or industrial action is not, by itself, to be regarded as prejudicial to the public order and safe operation of a major airport.

3UO Determination of airports

- (1) The Minister may, by legislative instrument, determine an airport for the purposes of the definition of *major airport* in section 3UM.
- (2) A determination of an airport under subsection (1) must include a description of land in relation to the airport for the purposes of paragraph 3UM(2)(b).
- (3) This Division applies in relation to an airport determined under subsection (1) only if the airport is ordinarily used for the purposes of any of the following:
 - (a) flights that start or end in a Territory;
 - (b) flights between Australia and a foreign country in which aircraft are used in the course of trade or commerce, for the carriage of passengers;
 - (c) flights between one State and another State in which aircraft are used in the course of trade or commerce, for the carriage of passengers.
- (4) This Division may apply in relation to an airport determined under subsection (1) even if the airport is also used for a purpose other than a purpose mentioned in subsection (3).

Note: See also section 3UR (move-on directions at airports—alternative constitutional scope).

3UP Identity information at airports

Direction to give identity information

- (1) A constable or a protective service officer may direct a person to give the constable or officer evidence of the person's identity if:
 - (a) the direction is given at a major airport; and
 - (b) the constable or officer:
 - (i) suspects on reasonable grounds that the person has committed, is committing, or intends to commit an offence against a law of the Commonwealth or a Territory, or a law of a State having a federal aspect, punishable by imprisonment for 12 months or more; or
 - (ii) considers on reasonable grounds that it is necessary to give the direction to safeguard the public order and safe operation of that airport or another major airport.

Evidence of identity

- (2) A person must comply with a direction under subsection (1) by:
 - (a) producing a government photographic identity document issued in relation to the person; or
 - (b) if the person does not produce such a document—producing:
 - (i) another identity document in relation to the person; or
 - (ii) if so directed by the constable or officer—2 different identity documents in relation to the person; or
 - (c) if the person does not produce an identity document (or documents) under paragraph (a) or (b)—giving the constable or officer the person's name, address and date of birth.

3UQ Move-on directions at airports

When may a direction be given?

- (1) A constable or a protective service officer may give a person a direction under this section if:
 - (a) the direction is given at a major airport; and

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- (b) one or more of the following applies:
 - (i) the constable or officer considers on reasonable grounds that the person has contravened a direction given at that airport under section 3UP (identity information at airports) or section 3US (stop and directions powers at airports), and the constable or officer is not reasonably satisfied of the person's identity;
 - (ii) the constable or officer suspects on reasonable grounds that it is necessary to give the direction to prevent or disrupt relevant criminal activity occurring at any major airport, or in relation to a flight to or from any major airport;
 - (iii) the constable or officer considers on reasonable grounds that it is necessary to give the direction to safeguard the public order and safe operation of that airport or another major airport.
- (2) **Relevant criminal activity** is criminal activity involving the commission of an offence that is punishable by imprisonment for 12 months or more, against either of the following:
 - (a) a law of the Commonwealth or a Territory;
 - (b) a law of a State having a federal aspect.

What type of direction may be given?

- (3) The constable or officer may give a written direction to the person requiring the person to do either or both of the following:
 - (a) not to take a specified flight, or any flight, to or from that airport, or any specified major airport, for a specified period of no more than 24 hours after the direction is given;
 - (b) to leave the airport as soon as practicable, and not enter that airport, or any other specified major airport, for a specified period of no more than 24 hours after the direction is given.
- (4) However, a direction covering a period of more than 12 hours must be given, or authorised (orally or in writing), by a senior police officer.

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Note: In addition, if, before a direction (the **later direction**) is given to a person, a direction had already been given to the same person within a period of 7 days before the later direction is given, the later direction must be given or authorised by a senior police officer even if the period covered by the later direction is 12 hours or less (see subsection (9)).

- (5) If a senior police officer orally authorises a direction under subsection (4), the senior police officer must record the authorisation in writing as soon as practicable afterwards.
- (6) A **senior police officer** is a constable:
 - (a) having the rank of sergeant or an equivalent rank, or higher; or
 - (b) with formal authorisation to act as a constable having such a rank.
- (7) A direction given to a person under this section must be in a form approved in writing by the Minister.
- (8) A form approved for the purposes of subsection (7) must, without limitation, include the following to assist a person to whom a direction is given to apply for judicial review, or interlocutory orders, in relation to the giving of the direction:
 - (a) details to enable the person to contact a Federal Court registry in the State or Territory in which the direction is given, or a requirement for the constable or officer giving the direction to include such details;
 - (b) any other information the Minister considers appropriate to assist the person to make such applications, for example information relating to the procedure for urgent or expedited applications.

Restriction on later directions within 7 days

- (9) After a direction (the **earlier direction**) is given to a person under this section, a later direction under this section may be given to a person within 7 days after the earlier direction was given only if:

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- (a) subsection (1) applies (or continues to apply) in relation to the person at the time the later direction is given; and
- (b) the later direction is given, or authorised (orally or in writing), by a senior police officer; and
- (c) no more than one later direction under this section is given within that 7-day period; and
- (d) the later direction covers a period that would end no later than 7 days after the earlier direction was given, at the same time of day at the place at which the earlier direction was given.

3UR Move-on directions at airports—alternative constitutional scope

Without limiting its effect apart from this section, section 3UQ also has the effect it would have if the definition of *major airport* in section 3UM did not include an airport determined by the Minister under section 3UO.

3US Stop and directions powers at airports

- (1) A constable or a protective service officer may give a person a direction under this section if:
 - (a) the direction is given at a major airport; and
 - (b) the constable or officer considers on reasonable grounds that it is necessary to give the direction to facilitate the exercise of a power under section 3UP (identity information at airports) or section 3UQ (move-on directions at airports).
- (2) The constable or officer may direct the person:
 - (a) to stop; or
 - (b) to do anything else the constable or officer considers on reasonable grounds to be necessary to facilitate the exercise of a power under section 3UP or 3UQ.

3UT Constables' and protective service officers' duties at airports

Scope of section

- (1) A constable or protective service officer must comply with this section in relation to a direction given to a person under:
 - (a) section 3UP (identity information at airports); or
 - (b) section 3UQ (move-on directions at airports).

Evidence of constable's or protective service officer's status or identity etc.

- (2) The constable or officer must:
 - (a) if not in uniform—before the direction is given, show the person evidence that the constable is a constable, or that the officer is an officer; and
 - (b) if the person so requests before or after the direction is given—comply with subsection (3); and
 - (c) in any case—before the direction is given, inform the person that it may be an offence not to comply with the direction, or to give the constable or officer a false or misleading document, or false or misleading information, in response to the direction.
- (3) The constable or officer must give the person any of the following information if requested by the person:
 - (a) the constable's or officer's name;
 - (b) the address of the constable's or officer's place of duty;
 - (c) the constable's or officer's identification number (if any);
 - (d) if the constable or officer has no identification number—the constable's or officer's rank.

3UU Directions at airports—offences

Contravening directions

- (1) A person commits an offence if:

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- (a) the person is given a direction by a constable or protective service officer under:
 - (i) section 3UP (identity information at airports); or
 - (ii) section 3UQ (move-on directions at airports); or
 - (iii) section 3US (stop and directions powers at airports);and
- (b) the person engages in conduct; and
- (c) the conduct contravenes the direction; and
- (d) in the case of a direction given under section 3UP or 3UQ—the constable or officer complies with section 3UT (constables' and protective service officers' duties at airports).

Penalty: 20 penalty units.

(2) Absolute liability applies to paragraph (1)(d).

Note 1: For absolute liability, see section 6.2 of the *Criminal Code*.

Note 2: For subsection (1), a person may contravene a direction by failing to comply with the direction (see the definition of *contravene* in section 2B of the *Acts Interpretation Act 1901*).

Note 3: The following offences more serious than the offence under subsection (1) may also apply:

- (a) giving false or misleading information (see section 137.1 of the *Criminal Code*);
- (b) producing a false or misleading document (see section 137.2 of the *Criminal Code*);
- (c) obstructing a Commonwealth public official (see section 149.1 of the *Criminal Code*).

Failure by constable or protective service officer to give status or identity information etc.

(3) A person commits an offence if:

- (a) the person is subject to a requirement under section 3UT (constables' and protective service officers' duties at airports); and
- (b) the person engages in conduct; and
- (c) the conduct breaches the requirement.

Penalty: 5 penalty units.

(4) In this section:

engage in conduct means:

- (a) do an act; or
- (b) omit to perform an act.

3UV Review of Division

- (1) The Parliamentary Joint Committee on Intelligence and Security must review:
 - (a) the operation, effectiveness and implications of this Division; and
 - (b) security matters relating to major airports.
- (2) The Committee must begin the review before the end of the period of 3 years beginning on the day the *Crimes Legislation Amendment (Police Powers at Airports) Act 2019* commenced.
- (3) The Committee must report on the review to each House of the Parliament before the end of the period of 9 months beginning on the day the review commences.

Division 4—Arrest and related matters

3V Requirement to furnish name etc.

- (1) If a constable believes on reasonable grounds that a person whose name or address is, or whose name and address are, unknown to the constable may be able to assist the constable in inquiries in relation to an indictable offence that the constable has reason to believe has been or may have been committed, the constable may request the person to provide his or her name or address, or name and address, to the constable.

- (2) If a constable:
- (a) makes a request of a person under subsection (1); and
 - (b) informs the person of the reason for the request; and
 - (c) complies with subsection (3) if the person makes a request under that subsection;
- the person must not:
- (d) refuse or fail to comply with the request; or
 - (e) give a name or address that is false in a material particular.

- (2A) Subsection (2) does not apply if the person has a reasonable excuse.

Note: A defendant bears an evidential burden in relation to the matter in subsection (2A) (see subsection 13.3(3) of the *Criminal Code*).

- (3) If a constable who makes a request of a person under subsection (1) is requested by the person to provide to the person:
- (a) his or her name or the address of his or her place of duty; or
 - (b) his or her name and that address; or
 - (c) if he or she is not in uniform and it is practicable for the constable to provide the evidence—evidence that he or she is a constable;
- the constable must not:
- (d) refuse or fail to comply with the request; or

Section 3W

- (e) give a name or address that is false in a material particular.

Penalty: 5 penalty units.

3W Power of arrest without warrant by constables

- (1) A constable may, without warrant, arrest a person for an offence (other than a terrorism offence and an offence against section 80.2C of the *Criminal Code*) if the constable believes on reasonable grounds that:
- (a) the person has committed or is committing the offence; and
 - (b) proceedings by summons against the person would not achieve one or more of the following purposes:
 - (i) ensuring the appearance of the person before a court in respect of the offence;
 - (ii) preventing a repetition or continuation of the offence or the commission of another offence;
 - (iii) preventing the concealment, loss or destruction of evidence relating to the offence;
 - (iv) preventing harassment of, or interference with, a person who may be required to give evidence in proceedings in respect of the offence;
 - (v) preventing the fabrication of evidence in respect of the offence;
 - (vi) preserving the safety or welfare of the person.
- (2) If:
- (a) a person has been arrested for an offence under subsection (1); and
 - (b) before the person is charged with the offence, the constable in charge of the investigation ceases to believe on reasonable grounds:
 - (i) that the person committed the offence; or
 - (ii) that holding the person in custody is necessary to achieve a purpose referred to in paragraph (1)(b);
- the person must be released.

Section 3WA

- (3) A constable may, without warrant, arrest a person whom he or she believes on reasonable grounds has escaped from lawful custody to which the person is still liable in respect of an offence.

3WA Constables' power of arrest without warrant for a terrorism offence or offence of advocating terrorism

- (1) A constable may, without warrant, arrest a person for a terrorism offence or an offence against section 80.2C of the *Criminal Code* if the constable suspects on reasonable grounds that:
- (a) the person has committed or is committing the offence; and
 - (b) proceedings by summons against the person would not achieve one or more of the following purposes:
 - (i) ensuring the appearance of the person before a court in respect of the offence;
 - (ii) preventing a repetition or continuation of the offence or the commission of another offence;
 - (iii) preventing the concealment, loss or destruction of evidence relating to the offence;
 - (iv) preventing harassment of, or interference with, a person who may be required to give evidence in proceedings in respect of the offence;
 - (v) preventing the fabrication of evidence in respect of the offence;
 - (vi) preserving the safety or welfare of the person.
- (2) If:
- (a) a person has been arrested for an offence under subsection (1); and
 - (b) before the person is charged with the offence, the constable in charge of the investigation ceases to suspect on reasonable grounds:
 - (i) that the person committed the offence; or
 - (ii) that holding the person in custody is necessary to achieve a purpose referred to in paragraph (1)(b);
- the person must be released.
-

Section 3X

3X Arrest of prisoner unlawfully at large

- (1) A constable may, without warrant, arrest a person whom the constable believes on reasonable grounds to be a prisoner unlawfully at large.
- (2) The constable must, as soon as practicable, take the person before a Magistrate.
- (3) If the Magistrate is satisfied that the person is a prisoner unlawfully at large, the Magistrate may issue a warrant:
 - (a) authorising any constable to convey the person to a prison or other place of detention specified in the warrant; and
 - (b) directing that the person, having been conveyed to that place in accordance with the warrant, be detained there to undergo the term of imprisonment or other detention that the person is required by law to undergo.
- (4) In this section:

prisoner unlawfully at large means a person who is at large (otherwise than because the person has escaped from lawful custody) at a time when the person is required by law to be detained under a provision of a law of the Commonwealth, including Divisions 6 to 9, inclusive, of Part IB.

3Y Power of arrest without warrant of person on bail

- (1) A constable may, without warrant, arrest a person who has been released on bail if the constable believes on reasonable grounds that the person has contravened or is about to contravene a condition of a recognisance on which bail was granted to the person in respect of an offence, even though the condition was imposed in a State or Territory other than the one in which the person is.
- (2) Subject to subsection (3), if a constable arrests a person under subsection (1), the constable must cause the person to be brought before a magistrate as soon as is practicable.

Section 3Z

- (3) If a constable arrests a person under subsection (1) in the State or Territory in which the condition was imposed, the person is to be dealt with according to relevant laws of that State or Territory applied by section 68 of the *Judiciary Act 1903*.
- (4) When a person arrested under subsection (1) in a State or Territory other than the one in which the condition was imposed is brought before a magistrate in the State or Territory in which the arrest took place, the court may:
 - (a) release the person unconditionally; or
 - (b) admit the person to bail on such recognisances as the court thinks fit to appear again before the same court at such time as the court orders; or
 - (c) if the condition was not imposed by the Federal Court of Australia—remand the person in custody for a reasonable time pending the obtaining of a warrant for the apprehension of the person from the State or Territory in which the condition was imposed; or
 - (d) if the condition was imposed by the Federal Court of Australia—remand the person in custody for a reasonable time pending the obtaining of a warrant for the apprehension of the person from that Court.
- (5) A release referred to in paragraph (4)(a) does not affect the operation of the bail order or the conditions of the bail imposed in the other State or Territory.

3Z Power of arrest without warrant by other persons

- (1) A person who is not a constable may, without warrant, arrest another person if he or she believes on reasonable grounds that:
 - (a) the other person is committing or has just committed an indictable offence; and
 - (b) proceedings by summons against the other person would not achieve one or more of the purposes referred to in paragraph 3W(1)(b).

Section 3ZA

- (2) A person who arrests another person under subsection (1) must, as soon as practicable after the arrest, arrange for the other person, and any property found on the other person, to be delivered into the custody of a constable.

3ZA Warrants for arrest

- (1) An issuing officer must not, under a law of a State or Territory applied by section 68 of the *Judiciary Act 1903*, issue a warrant for the arrest of a person for an offence as a result of an information laid before the officer unless:
- (a) the information is on oath; and
 - (b) except where the issuing officer is informed that the warrant is sought for the purpose of making a request for the extradition of a person from a foreign country—the informant has given the issuing officer an affidavit setting out the reasons why the warrant is sought, including:
 - (i) the reasons why it is believed that the person committed the offence; and
 - (ii) the reasons why it is claimed that proceedings by summons would not achieve one or more of the purposes set out in paragraph 3W(1)(b); and
 - (c) if the issuing officer has requested further information concerning the reasons for which the issue of the warrant is sought—that information has been provided to the officer; and
 - (d) the issuing officer is satisfied that there are reasonable grounds for the issue of the warrant.
- (2) If an issuing officer issues such a warrant, the officer must write on the affidavit which of the reasons specified in the affidavit, and any other reasons, he or she has relied on as justifying the issue of the warrant.

3ZB Power to enter premises to arrest offender

- (1) Subject to subsection (3), if:
-

Section 3ZB

- (a) a constable has, under a warrant, power to arrest a person for an offence; and
 - (b) the constable believes on reasonable grounds that the person is on any premises;

the constable may enter the premises, using such force as is necessary and reasonable in the circumstances, at any time of the day or night for the purpose of searching the premises for the person or arresting the person.
- (2) Subject to subsection (3), if:
 - (a) a constable may, under section 3W or 3WA, arrest a person without warrant for an offence; and
 - (b) the offence is an indictable offence; and
 - (c) the constable believes on reasonable grounds that the person is on any premises;

the constable may enter the premises, using such force as is necessary and reasonable in the circumstances, at any time of the day or night for the purpose of searching the premises for the person or arresting the person.
- (3) A constable must not enter a dwelling house under subsection (1) or (2) at any time during the period commencing at 9 p.m. on a day and ending at 6 a.m. on the following day unless the constable believes on reasonable grounds that:
 - (a) it would not be practicable to arrest the person, either at the dwelling house or elsewhere, at another time; or
 - (b) it is necessary to do so in order to prevent the concealment, loss or destruction of evidence relating to the offence.
- (4) In subsection (3):

dwelling house includes a conveyance, and a room in a hotel, motel, boarding house or club, in which people ordinarily retire for the night.

Section 3ZC

3ZC Use of force in making arrest

- (1) A person must not, in the course of arresting another person for an offence, use more force, or subject the other person to greater indignity, than is necessary and reasonable to make the arrest or to prevent the escape of the other person after the arrest.
- (2) Without limiting the operation of subsection (1), a constable must not, in the course of arresting a person for an offence:
 - (a) do anything that is likely to cause the death of, or grievous bodily harm to, the person unless the constable believes on reasonable grounds that doing that thing is necessary to protect life or to prevent serious injury to another person (including the constable); or
 - (b) if the person is attempting to escape arrest by fleeing—do such a thing unless:
 - (i) the constable believes on reasonable grounds that doing that thing is necessary to protect life or to prevent serious injury to another person (including the constable); and
 - (ii) the person has, if practicable, been called on to surrender and the constable believes on reasonable grounds that the person cannot be apprehended in any other manner.

3ZD Persons to be informed of grounds of arrest

- (1) A person who arrests another person for an offence must inform the other person, at the time of the arrest, of the offence for which the other person is being arrested.
- (2) It is sufficient if the other person is informed of the substance of the offence, and it is not necessary that this be done in language of a precise or technical nature.
- (3) Subsection (1) does not apply to the arrest of the other person if:

Section 3ZE

- (a) the other person should, in the circumstances, know the substance of the offence for which he or she is being arrested; or
- (b) the other person's actions make it impracticable for the person making the arrest to inform the other person of the offence for which he or she is being arrested.

3ZE Power to conduct a frisk search of an arrested person

A constable who arrests a person for an offence, or who is present at such an arrest, may, if the constable suspects on reasonable grounds that it is prudent to do so in order to ascertain whether the person is carrying any seizable items:

- (a) conduct a frisk search of the person at or soon after the time of arrest; and
- (b) seize any seizable items found as a result of the search.

3ZF Power to conduct an ordinary search of an arrested person

A constable who arrests a person for an offence, or who is present at such an arrest, may, if the constable suspects on reasonable grounds that the person is carrying:

- (a) evidential material in relation to that or another offence; or
- (b) a seizable item;

conduct an ordinary search of the person at or soon after the time of arrest, and seize any such thing found as a result of the search.

3ZG Power to conduct search of arrested person's premises

A constable who arrests a person at premises for an offence, or who is present at such an arrest, may seize things in plain view at those premises that the constable believes on reasonable grounds to be:

- (a) evidential material in relation to that or another offence; or
- (b) seizable items.

3ZH Power to conduct an ordinary search or a strip search

- (1) If a person who has been arrested for an offence is brought to a police station, a constable may:
 - (a) if an ordinary search of the person has not been conducted—conduct an ordinary search of the person; or
 - (b) subject to this section, conduct a strip search of the person.
- (2) A strip search may be conducted if:
 - (a) a constable suspects on reasonable grounds that the person has in his or her possession:
 - (i) a seizable item; or
 - (ii) evidential material (other than forensic material as defined in Part ID) in relation to that or another offence; and
 - (b) the constable suspects on reasonable grounds that it is necessary to conduct a strip search of the person in order to recover that item or evidential material; and
 - (c) a constable of the rank of superintendent or higher has approved the conduct of the search.
- (2A) If:
 - (a) in the course of carrying out a strip search, the constable comes to believe on reasonable grounds that the carrying out of a forensic procedure would be likely to produce evidence relating to the offence for which the person has been arrested or any other offence; and
 - (b) Part ID provides for the carrying out of such a forensic procedure;the forensic procedure must not be carried out except in accordance with Part ID.
- (2B) The conducting of a strip search may include taking photographs of evidential material found on the person, whether or not taking photographs is a forensic procedure provided for by Part ID.

Part IAA Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

Division 4 Arrest and related matters

Section 3ZI

- (3) Subject to section 3ZI, a strip search may also be conducted if the person consents in writing.
- (3A) Subsection (3) does not authorise the conduct of a strip search for the purpose of obtaining forensic material as defined in Part ID. Such a search must not be conducted except in accordance with Part ID.
- (4) Subject to section 3ZI, a strip search may be conducted in the presence of a medical practitioner who may assist in the search.
- (5) The approval may be obtained by telephone, telex, fax or other electronic means.
- (6) A constable who gives or refuses to give an approval for the purposes of paragraph (2)(c) must make a record of the decision and of the reasons for the decision.
- (7) Such force as is necessary and reasonable in the circumstances may be used to conduct a strip search under subsection (2).
- (8) Any item of a kind referred to in paragraph (2)(a) that is found during a strip search may be seized.

3ZI Rules for conduct of strip search

- (1) A strip search:
 - (a) must be conducted in a private area; and
 - (b) must be conducted by a constable who is of the same sex as the person being searched; and
 - (c) subject to subsections (3) and (4), must not be conducted in the presence or view of a person who is of the opposite sex to the person being searched; and
 - (d) must not be conducted in the presence or view of a person whose presence is not necessary for the purposes of the search; and
 - (e) must not be conducted on a person who is under 10; and
 - (f) if the person being searched is at least 10 but under 18, or is incapable of managing his or her affairs:

Section 3ZI

- (i) may only be conducted if the person has been arrested and charged or if a magistrate orders that it be conducted; and
 - (ii) must be conducted in the presence of a parent or guardian of the person being searched or, if that is not acceptable to the person, in the presence of another person (other than a constable) who is capable of representing the interests of the person and who, as far as is practicable in the circumstances, is acceptable to the person; and
 - (g) must not involve a search of a person's body cavities; and
 - (h) must not involve the removal of more garments than the constable conducting the search believes on reasonable grounds to be necessary to determine whether the person has in his or her possession the item searched for or to establish the person's involvement in the offence; and
 - (i) must not involve more visual inspection than the constable believes on reasonable grounds to be necessary to establish the person's involvement in the offence.
- (2) In deciding whether to make an order referred to in paragraph (1)(f), the magistrate must have regard to:
 - (a) the seriousness of the offence; and
 - (b) the age or any disability of the person; and
 - (c) such other matters as the magistrate thinks fit.
- (3) A strip search may be conducted in the presence of a medical practitioner of the opposite sex to the person searched if a medical practitioner of the same sex as the person being searched is not available within a reasonable time.
- (4) Paragraph (1)(c) does not apply to a parent, guardian or personal representative of the person being searched if the person being searched has no objection to the person being present.
- (5) If any of a person's garments are seized as a result of a strip search, the person must be provided with adequate clothing.

Section 3ZJ

3ZJ Taking fingerprints, recordings, samples of handwriting or photographs

- (1) In this section and in sections 3ZK and 3ZL:

identification material, in relation to a person, means prints of the person's hands, fingers, feet or toes, recordings of the person's voice, samples of the person's handwriting or photographs (including video recordings) of the person, but does not include tape recordings made for the purposes of section 23U or 23V.

- (2) A constable must not:

- (a) take identification material from a person who is in lawful custody in respect of an offence except in accordance with this section; or
- (b) require any other person to submit to the taking of identification material, but nothing in this paragraph prevents such a person consenting to the taking of identification material.

- (3) If a person is in lawful custody in respect of an offence, a constable who is of the rank of sergeant or higher or who is for the time being in charge of a police station may take identification material from the person, or cause identification material from the person to be taken, if:

- (a) the person consents in writing; or
- (b) the constable believes on reasonable grounds that it is necessary to do so to:
 - (i) establish who the person is; or
 - (ii) identify the person as the person who committed the offence; or
 - (iii) provide evidence of, or relating to, the offence; or
- (ba) both of the following apply:
 - (i) the identification material taken, or caused to be taken, is fingerprints or photographs (including video recordings) of the person;

Section 3ZJ

- (ii) the offence is punishable by imprisonment for a period of 12 months or more; or
 - (c) the constable suspects on reasonable grounds that the person has committed another offence and the identification material is to be taken for the purpose of identifying the person as the person who committed the other offence or of providing evidence of, or relating to, the other offence.
- (4) A constable may use such force as is necessary and reasonable in the circumstances to take identification material from a person under this section.
- (5) Subject to subsection (9), a constable must not take identification material from a person who is under 10.
- (6) Subject to this section, a constable must not take identification material (other than hand prints, finger prints, foot prints or toe prints) from a suspect who:
 - (a) is at least 10 but under 18, or is incapable of managing his or her affairs; and
 - (b) has not been arrested and charged;unless a magistrate orders that the material be taken.
- (6A) A constable must not take hand prints, finger prints, foot prints or toe prints from a suspect who:
 - (a) is at least 10 but under 18, or is incapable of managing his or her affairs; and
 - (b) has not been arrested and charged;except in accordance with Part ID.
- (7) In deciding whether to make such an order, the magistrate must have regard to:
 - (a) the seriousness of the offence; and
 - (b) the age or any disability of the person; and
 - (c) such other matters as the magistrate thinks fit.
- (8) The taking of identification material from a person who:
 - (a) is under 18; or

Section 3ZJ

- (b) is incapable of managing his or her affairs;
must be done in the presence of:
 - (c) a parent or guardian of the person; or
 - (d) if the parent or guardian of the person is not acceptable to the person, another person (other than a constable) who is capable of representing the interests of the person and who, as far as is practicable in the circumstances, is acceptable to the person.
- (9) Despite this section, identification material may be taken from a person who:
 - (a) is not a suspect; and
 - (b) is under 10 or is incapable of managing his or her affairs;if a magistrate orders that the material be taken.
- (10) Despite this section, identification material may be taken from a person who:
 - (a) is not a suspect; and
 - (b) is at least 10 but under 18; and
 - (c) is capable of managing his or her affairs;if one of the following paragraphs applies:
 - (d) the person agrees in writing to the taking of the material and a parent or guardian of the person also agrees in writing or, if a parent or guardian is not acceptable to the person, another person (other than a constable) who is capable of representing the interests of the person and who, as far as is practicable in the circumstances, is acceptable to the person also agrees in writing;
 - (e) if:
 - (i) one of those persons agrees in writing to the taking of the material but the other does not; and
 - (ii) a magistrate orders that the material be taken.
- (11) In deciding whether to make such an order, the magistrate must have regard to the matters set out in subsection (7).

Section 3ZK

- (12) Despite this section, identification material may be taken from a person who:
- (a) is at least 18; and
 - (b) is capable of managing his or her affairs; and
 - (c) is not a suspect;
- if the person consents in writing.

3ZK Destruction of identification material

- (1) If:
- (a) identification material has been taken from a person under section 3ZJ; and
 - (b) a period of 12 months has elapsed since the identification material was taken; and
 - (c) proceedings in respect of an offence to which the investigation material relates have not been instituted or have been discontinued;
- the identification material must be destroyed as soon as practicable.
- (2) If identification material has been taken from a person under section 3ZJ and:
- (a) the person is found to have committed an offence to which the identification material relates but no conviction is recorded; or
 - (b) the person is acquitted of such an offence and:
 - (i) no appeal is lodged against the acquittal; or
 - (ii) an appeal is lodged against the acquittal and the acquittal is confirmed or the appeal is withdrawn;
- the identification material must be destroyed as soon as practicable unless an investigation into, or a proceeding against the person for, another offence to which the identification material relates is pending.
- (3) A magistrate may, on application by a constable, extend the period of 12 months referred to in subsection (1) or that period as previously extended under this subsection in relation to particular

Section 3ZL

identification material if the magistrate is satisfied that there are special reasons for doing so.

3ZL Offence of refusing to allow identification material to be taken

- (1) If a person is convicted of an offence, the judge or magistrate presiding at the proceedings at which the person was convicted may order:
- (a) the person to attend a police station; or
 - (b) that a constable be permitted to attend on the person in a place of detention;
- within one month after the conviction to allow impressions of the person's fingerprints and/or a photograph of the person to be taken in accordance with the order.

- (2) A person must not refuse or fail to allow those impressions or a photograph of the person to be taken.

Penalty: Imprisonment for 12 months.

- (3) Subsection (2) does not apply if the person has a reasonable excuse.

Note: A defendant bears an evidential burden in relation to the matter in subsection (3) (see subsection 13.3(3) of the *Criminal Code*).

- (3A) The judge or magistrate may also make any other orders that are reasonably necessary for ensuring that the impressions of the person's fingerprints and/or a photograph of the person are taken in accordance with the order under subsection (1). For example, the judge or magistrate may order the person to attend a specified police station at a specified time.

- (3B) A person commits an offence if:
- (a) the person is subject to an order under subsection (3A); and
 - (b) the person engages in conduct; and
 - (c) the person's conduct contravenes the order.

Penalty: Imprisonment for 12 months.

Section 3ZM

(3C) In this section:

engage in conduct means:

- (a) do an act; or
 - (b) omit to perform an act.
- (4) Nothing in this section derogates from the right to use the provisions of Part ID as authority for the taking of fingerprints from a prescribed offender or a serious offender.
- (5) In subsection (4), ***prescribed offender*** and ***serious offender*** have the meanings given in subsection 23WA(1).

3ZM Identification parades

- (1) This section applies to identification parades held in relation to offences.
- (2) Subject to subsection (3) and to section 3ZN, an identification parade:
- (a) may be held if the suspect agrees; or
 - (b) must be held if:
 - (i) the suspect has requested that an identification parade be held; and
 - (ii) it is reasonable in the circumstances to do so.
- (2A) Without limiting the matters that may be taken into account in determining whether it is reasonable in the circumstances to hold an identification parade, the following must be taken into account:
- (a) the kind of offence, and the gravity of the offence, concerned;
 - (b) the likely importance in the circumstances of the evidence of identification;
 - (c) the practicality of holding an identification parade, having regard, among other things:
 - (i) if the suspect fails to cooperate in the conduct of the parade—to the manner and extent of, and the reason (if any) for, the failure; and

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- (ii) in any case—to whether an identification was made at or about the time of the commission of the offence; and
 - (d) the appropriateness of holding an identification parade, having regard, among other things, to the relationship (if any) between the suspect and the person who may make an identification at the identification parade.
- (3) An identification parade must not be held unless the suspect has been informed that:
 - (a) he or she is entitled to refuse to take part in the parade; and
 - (b) if he or she refuses to take part in the parade:
 - (i) evidence of the refusal may be given in later proceedings relating to an offence, for the purpose of explaining why an identification parade was not held; and
 - (ii) evidence may be given in such proceedings of any identification of the suspect by a witness as a result of having seen a photograph or having seen the suspect otherwise than during an identification parade; and
 - (c) in addition to any requirement under section 3ZN, a legal representative or other person of the suspect's choice may be present while the person is deciding whether to take part in the parade, and during the holding of the parade, if arrangements for that person to be present can be made within a reasonable time.
- (4) The giving of the information referred to in subsection (3) must be recorded by a video recording or an audio recording.
- (5) An identification parade must be arranged and conducted in a manner that will not unfairly prejudice the suspect.
- (6) Without limiting the intent of subsection (5), an identification parade must be arranged and conducted in accordance with the following rules:
 - (a) the parade must consist of at least 9 persons;
 - (b) each of the persons who is not the suspect must:

Section 3ZM

- (i) resemble the suspect in age, height and general appearance; and
- (ii) not have features that will be visible during the parade that are markedly different from those of the suspect as described by the witness before viewing the parade;
- (c) unless it is impracticable for another constable to arrange or conduct the parade, no constable who has taken part in the investigation relating to the offence may take part in the arrangements for, or the conduct of, the parade;
- (d) no person in the parade is to be dressed in a way that would obviously distinguish him or her from the other participants;
- (e) if it is practicable to do so, numbers should be placed next to each participant in order to allow the witness to make an identification by indicating the number of the person identified;
- (f) the parade may take place so that the witness can view the parade without being seen if the witness requests that it take place in such a manner and:
 - (i) a legal representative or other person of the suspect's choice is present with the witness; or
 - (ii) the parade is recorded by a video recording;
- (g) nothing is to be done that suggests or is likely to suggest to a witness which member of the parade is the suspect;
- (h) if the witness so requests, members of the parade may be required to speak, move or adopt a specified posture but, if this happens, the witness must be reminded that the members of the parade have been chosen on the basis of physical appearance only;
- (i) the suspect may select where he or she wishes to stand in the parade;
- (j) if more than one witness is to view the parade:
 - (i) each witness must view the parade alone; and
 - (ii) the witnesses are not to communicate with each other at a time after arrangements for the parade have commenced and before each of them has viewed the parade; and

Section 3ZM

- (iii) the suspect may change places in the parade after each viewing;
 - (k) each witness must be told that:
 - (i) the suspect may not be in the parade; and
 - (ii) if he or she is unable to identify the suspect with reasonable certainty he or she must say so;
 - (l) the parade must be recorded by a video recording if it is practicable to do so and, if that is done, a copy of the video recording must be made available to the suspect or his or her legal representative as soon as it is practicable to do so;
 - (m) if the parade is not recorded by a video recording:
 - (i) the parade must be photographed in colour; and
 - (ii) a print of a photograph of the parade that is at least 250mm × 200mm in size must be made available to the suspect or his or her legal representative; and
 - (iii) the constable in charge of the parade must take all reasonable steps to record everything said and done at the parade and must make a copy of the record available to the suspect or his or her legal representative;
 - (n) the suspect may have present during the holding of the parade a legal representative or other person of his or her choice if arrangements for that person to be present can be made within a reasonable time.
- (7) Nothing in this Act affects the determination of the following questions:
- (a) whether or not evidence of a suspect having refused to take part in an identification parade is admissible;
 - (b) if evidence of such a refusal is admissible, what inferences (if any) may be drawn by a court or jury from the refusal;
 - (c) whether, after such a refusal, evidence of alternative methods of identification is admissible.
- (8) If a witness is, under the supervision of a constable, to attempt to identify a suspect otherwise than during an identification parade,

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the constable must ensure that the attempted identification is done
in a manner that is fair to the suspect.

3ZN Identification parades for suspects under 18 etc.

- (1) An identification parade must not be held for a suspect who is under 10.
- (2) An identification parade must not be held for a suspect who is incapable of managing his or her affairs unless a magistrate orders that it be held.
- (3) An identification parade must not be held for a suspect who:
 - (a) is at least 10 but under 18; and
 - (b) is capable of managing his or her affairs;unless one of the following paragraphs applies:
 - (c) the suspect agrees to or requests in writing the holding of the parade and a parent or guardian of the suspect agrees in writing to the holding of the parade or, if the parent or guardian is not acceptable to the suspect, another person (other than a constable) who is capable of representing the interests of the suspect and who, as far as is practicable in the circumstances, is acceptable to the suspect agrees in writing to the holding of the parade;
 - (d) if:
 - (i) one of those persons agrees in writing to the holding of the parade but the other does not; and
 - (ii) a magistrate orders that the parade be held.
- (4) In deciding whether to make such an order, the magistrate must have regard to:
 - (a) the seriousness of the offence; and
 - (b) the age or any disability of the person; and
 - (c) such other matters as the magistrate thinks fit.

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- (5) An identification parade for a suspect who is under 18 or is incapable of managing his or her affairs must be held in the presence of:
- (a) a parent or guardian of the suspect; or
 - (b) if the parent or guardian is not acceptable to the suspect, another person (other than a constable) who is capable of representing the interests of the suspect and who, as far as is practicable in the circumstances, is acceptable to the suspect.

3ZO Identification by means of photographs

- (1) If a suspect is in custody in respect of an offence or is otherwise available to take part in an identification parade, a constable investigating the offence must not show photographs, or composite pictures or pictures of a similar kind, to a witness for the purpose of establishing, or obtaining evidence of, the identity of the suspect unless:
- (a) the suspect has refused to take part in an identification parade; or
 - (aa) the suspect's appearance has changed significantly since the offence was committed; or
 - (b) the holding of an identification parade would be:
 - (i) unfair to the suspect; or
 - (ii) unreasonable in the circumstances.
- (1A) Without limiting the matters that may be taken into account in determining whether it would be unreasonable in the circumstances to hold an identification parade, the following must be taken into account:
- (a) the kind of offence, and the gravity of the offence, concerned;
 - (b) the likely importance in the circumstances of the evidence of identification;
 - (c) the practicality of holding an identification parade, having regard, among other things:

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- (i) if the suspect fails to cooperate in the conduct of the parade—to the manner and extent of, and the reason (if any) for, the failure; and
 - (ii) in any case—to whether an identification was made at or about the time of the commission of the offence; and
 - (d) the appropriateness of holding an identification parade, having regard, among other things, to the relationship (if any) between the suspect and the person who may make an identification at the identification parade.
- (2) If a constable investigating an offence shows photographs or pictures to a witness for the purpose of establishing, or obtaining evidence of, the identity of a suspect, whether or not the suspect is in custody, the following rules apply:
- (a) the constable must show to the witness photographs or pictures of at least 9 different persons;
 - (b) each photograph or picture of a person who is not the suspect must be of a person who:
 - (i) resembles the suspect in age and general appearance; and
 - (ii) does not have features visible in the photograph or picture that are markedly different from those of the suspect as described by the witness before viewing the photographs or pictures;
 - (ba) the photographs or pictures shown to the witness must not suggest that they are photographs or pictures of persons in police custody;
 - (c) the constable must not, in doing so, act unfairly towards the suspect or suggest to the witness that a particular photograph or picture is the photograph or picture of the suspect or of a person who is being sought by the police in respect of an offence;
 - (d) if practicable, the photograph or picture of the suspect must have been taken or made after he or she was arrested or was considered as a suspect;

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- (e) the witness must be told that a photograph or picture of the suspect may not be amongst those being seen by the witness;
 - (f) the constable must keep, or cause to be kept, a record identifying each photograph or picture that is shown to the witness;
 - (g) the constable must notify the suspect or his or her legal representative in writing that a copy of the record is available for the suspect;
 - (h) the constable must retain the photographs or pictures shown, and must allow the suspect or his or her legal representative, upon application, an opportunity to inspect the photographs or pictures.
- (3) If:
- (a) a photograph or picture of a person who is suspected in relation to the commission of an offence is shown to a witness; and
 - (b) the photograph was taken or the picture made after the suspect was arrested or was considered to be a suspect; and
 - (c) proceedings in relation to the offence referred to in paragraph (a) or another offence arising out of the same course of conduct for which the photograph was taken or picture made are brought against the suspect before a jury; and
 - (d) the photograph or picture is admitted into evidence;
- the jury must be informed that the photograph was taken or the picture made after the suspect was arrested or was considered as a suspect.
- (4) If a suspect is in custody in respect of an offence, a constable investigating the offence must not show a composite picture or a picture of a similar kind to a witness for the purpose of assisting the witness to describe the features of the suspect.
- (5) If, after a constable investigating an offence has shown to a witness a composite picture or a picture of a similar kind for the purpose referred to in subsection (4):
-

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- (a) a suspect comes into custody in respect of the offence; and
 - (b) an identification parade is to be held in relation to the suspect;
- the constable in charge of the investigation of the offence may, unless doing so would be unfair to the suspect or be unreasonable in the circumstances, request the witness to attend the identification parade and make the necessary arrangements for the witness to attend.
- (6) If, after the witness has been shown a composite picture or a picture of a similar kind for the purpose referred to in subsection (4), a person is charged with the offence, the constable in charge of investigating the offence must, upon application by that person or his or her legal representative, provide him or her with particulars of any such picture shown to the witness and the comments (if any) of the witness concerning the picture.
 - (7) If a suspect is in custody in respect of an offence and a constable investigating the offence wishes to investigate the possibility that a person other than the suspect committed the offence, subsection (4) does not prevent a constable from taking action referred to in that subsection for the purpose of assisting a witness to describe the features of a person other than the suspect.

3ZP Identification procedures where there is more than one suspect

If:

- (a) a constable is attempting to ascertain:
 - (i) which of 2 or more suspects committed an offence; or
 - (ii) the identities of 2 or more suspects who may have been jointly involved in an offence; and
 - (b) for that purpose, the constable intends to conduct an identification parade or to identify a person by showing a photograph or a picture of a suspect to a person;
- the constable must undertake a separate identification process for each of the suspects.

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3ZQ Descriptions

- (1) If a description of a suspect is given to a constable in relation to an offence, the constable must ensure that a record of the description is made and that the record is retained until any proceedings in respect of the offence are completed.
- (2) Subject to subsection (4), a constable must, if requested to do so by a person who has been charged with an offence, provide the person with the name of every person who, to the knowledge of the constable, claims to have seen, at or about the time of the commission of the offence, a person who is suspected of being involved in its commission.
- (3) If:
 - (a) a record of a description of a person is made under subsection (1); and
 - (b) the person is charged with an offence to which the description relates;a constable must notify the person or his or her legal representative in writing that a copy of the record, and of any other record of a description that the constable knows about of a person who is suspected of being involved in the commission of the offence, is available for the person.
- (4) If the constable suspects on reasonable grounds that providing the name of a person under subsection (2) could:
 - (a) place the person in danger; or
 - (b) expose the person to harassment or unreasonable interference;the constable is not required to provide the name of the person.

Division 4A—Determining a person's age

Subdivision A—Preliminary

3ZQA Definitions

(1) In this Division:

age determination information means a record, or information, relating to a person that is obtained by carrying out a prescribed procedure.

appropriately qualified, in relation to the carrying out of a prescribed procedure, means:

- (a) having suitable professional qualifications or experience to carry out the prescribed procedure; or
- (b) qualified under the regulations to carry out the prescribed procedure.

Commonwealth offence means:

- (a) an offence against a law of the Commonwealth, other than an offence that is a service offence for the purposes of the *Defence Force Discipline Act 1982*; or
- (b) a State offence that has a federal aspect.

investigating official means:

- (a) a member or special member of the Australian Federal Police; or
- (b) a member of the police force of a State or Territory; or
- (c) a person who holds an office the functions of which include the investigation of Commonwealth offences and who is empowered by a law of the Commonwealth because of the holding of that office to make arrests in respect of such offences.

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prescribed procedure means a procedure specified by regulations made for the purposes of subsection (2) to be a prescribed procedure for determining a person's age.

- (2) The regulations may specify a particular procedure to be a prescribed procedure for determining a person's age.
- (3) A procedure prescribed for the purposes of subsection (2):
 - (a) may involve the operation of particular equipment that is specified for the purpose; and
 - (b) must require that equipment to be operated by an appropriately qualified person.
- (4) Before the Governor-General makes a regulation for the purposes of subsection (2), the Minister must consult with the Minister responsible for the administration of the *Therapeutic Goods Act 1989*.

Subdivision B—Determination of age during investigation

3ZQB Circumstances where investigating official may seek authority to carry out a prescribed procedure

- (1) If:
 - (a) an investigating official suspects, on reasonable grounds, that a person may have committed a Commonwealth offence; and
 - (b) it is necessary to determine whether or not the person is, or was, at the time of the alleged commission of the offence, under 18 because that question is relevant to the rules governing the person's detention, the investigation of the offence or the institution of criminal proceedings;the investigating official may, whether or not the person is in custody at the time, arrange for the carrying out of a prescribed procedure in respect of the person only if:
 - (c) the investigating official obtains, in accordance with section 3ZQC, the requisite consents to the carrying out of the procedure in respect of the person; or

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- (d) a magistrate orders, on application by the investigating official, the carrying out of the procedure in respect of the person.
- (2) An application to a magistrate by an investigating official for the purposes of paragraph (1)(d) may be made:
 - (a) in person; or
 - (b) by telephone, telex, fax or other electronic means.
- (3) In deciding whether to make such an order on application by an investigating official, the magistrate must be satisfied that:
 - (a) there are reasonable grounds for the suspicion that the person has committed a Commonwealth offence; and
 - (b) there is uncertainty as to whether or not the person is, or was, at the time of the alleged commission of the offence, under 18; and
 - (c) the uncertainty will need to be resolved in order to determine the application of the rules governing the person's detention, the investigation of the offence or the institution of criminal proceedings.

3ZQC Obtaining of consents for the carrying out of a prescribed procedure

- (1) For the purposes of paragraph 3ZQB(1)(c), an investigating official is taken to have obtained the requisite consents to the carrying out of a prescribed procedure in respect of a person if the following persons agree in writing to the carrying out of the procedure:
 - (a) the person in respect of whom it is sought to carry out the procedure;
 - (b) either:
 - (i) a parent or guardian of the person; or
 - (ii) if a parent or guardian is not available or is not acceptable to the person—an independent adult person (other than an investigating official involved in the investigation of the person) who is capable of representing the interests of the person and who, as far

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as is practicable in the circumstances, is acceptable to the person.

- (2) Before seeking the consents referred to in subsection (1), an investigating official must first inform each of the persons from whom such a consent is being sought, in a language in which the person is able to communicate with reasonable fluency:
 - (a) the purpose and reasons for which the prescribed procedure is to be carried out; and
 - (b) the nature of the procedure; and
 - (c) if the procedure involves the operation of particular equipment—the nature of that equipment; and
 - (d) that the information obtained from the carrying out of the procedure could affect the manner of dealing with the person on whom the procedure is to be carried out; and
 - (e) the known risks (if any) that would be posed to the health of the person on whom the procedure is to be carried out; and
 - (ea) that the persons giving the requisite consent may withdraw that consent at any time; and
 - (f) that the seeking of the requisite consent and any giving of such consent was being, or would be, recorded; and
 - (g) that the persons giving the requisite consent are each entitled to a copy of that record; and
 - (h) that the person on whom the procedure is to be carried out may have, so far as is reasonably practicable, a person of his or her choice present while the procedure is carried out.
- (3) The requisite consents may be given:
 - (a) in person; or
 - (b) by telephone, telex, fax or other electronic means.
- (4) Nothing in this section affects the rights of a person under Part IC, in particular a person's rights under:
 - (a) section 23G (Right to communicate with friend, relative and legal practitioner); or

- (b) section 23P (Right of foreign national to communicate with consular office).

3ZQD Withdrawal of consent

If a person who has given consent to the carrying out of a prescribed procedure expressly withdraws consent to the carrying out of that procedure (or if the withdrawal of such consent can reasonably be inferred from the person's conduct) before or during the carrying out of the procedure, the carrying out of the procedure is not to proceed otherwise than by order of a magistrate on the application of an investigating official.

3ZQE Recording of giving of information about carrying out a prescribed procedure and relevant responses

- (1) An investigating official must, if practicable, ensure that:
 - (a) the giving of information about a prescribed procedure and the responses (if any) of the persons to whom the information is given are recorded by audio tape, video tape or other electronic means; and
 - (b) a copy of the record is made available to the person on whom it is sought to carry out the procedure.
- (2) If recording the giving of information and the responses (if any) of the persons to whom the information is given in the manner referred to in subsection (1) is not practicable, the investigating official must ensure that:
 - (a) a written record of the giving of the information and of the responses (if any) is made; and
 - (b) a copy of the record is made available to the person on whom it is sought to carry out the procedure.

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Subdivision C—Determination of age during proceedings

3ZQF Circumstances where judge or magistrate may order carrying out of a prescribed procedure on own initiative

If:

- (a) a person is being prosecuted for a Commonwealth offence;
and
- (b) the judge or magistrate presiding over the proceedings related to that offence is satisfied that it is necessary to ascertain whether or not the person is, or was, at the time of the alleged commission of that offence, under 18;

the judge or magistrate presiding may make an order requiring the carrying out of a prescribed procedure in respect of the person.

Subdivision D—Communication of orders by judges or magistrates

3ZQG Orders made by judges or magistrates concerning carrying out of a prescribed procedure

- (1) If a judge or a magistrate orders the carrying out of a prescribed procedure (whether as a result of a request by an investigating official or not), the judge or magistrate must:
 - (a) ensure that a written record of the order, and of the reasons for the making of the order, is kept; and
 - (b) ensure that the person on whom the procedure is to be carried out is told by an investigating official in a language in which the person is able to communicate with reasonable fluency:
 - (i) that an order for the carrying out of the procedure has been made and of the reasons for the making of the order; and
 - (ii) of the arrangements for the carrying out of the procedure; and
 - (iii) of the fact that reasonable force may be used to secure the compliance of the person to whom the order relates.

- (2) The judge or magistrate may give directions as to the time, place and manner in which the procedure is to be carried out.

Subdivision E—Matters relating to the carrying out of prescribed procedures

3ZQH Appropriate medical or other standards to be applied

A prescribed procedure must be carried out in a manner consistent with either or both of the following:

- (a) appropriate medical standards;
- (b) appropriate other relevant professional standards.

3ZQI Reasonable and necessary force

Except where the carrying out of a prescribed procedure to determine a person's age is undertaken with the consent of that person and of an additional adult person in accordance with section 3ZQC, the person carrying out the procedure, and any person assisting that person, is entitled to use such force as is reasonable and necessary in the circumstances.

Subdivision F—Disclosure and destruction of age determination information

3ZQJ Disclosure of age determination information

- (1) A person commits an offence if:
- (a) the person's conduct causes the disclosure of age determination information other than as provided by this section; and
 - (b) the person is reckless as to any such disclosure.

Penalty: Imprisonment for 2 years.

- (2) A person may only disclose age determination information:

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- (a) for a purpose related to establishing and complying with the rules governing:
 - (i) the detention of the person to whom the age determination information relates; or
 - (ii) the investigation of a Commonwealth offence by that person; or
 - (iii) the institution of criminal proceedings against that person for a Commonwealth offence; or
- (b) for a purpose related to the conduct of:
 - (i) the investigation of the person to whom the age determination information relates for a Commonwealth offence; or
 - (ii) proceedings for a Commonwealth offence against that person; or
- (c) for the purpose of an investigation by the Information Commissioner of the Commonwealth or the Commonwealth Ombudsman; or
- (d) if the person to whom the age determination information relates consents in writing to the disclosure.

Note: A defendant bears an evidential burden in relation to the matters referred to in subsection (2)—see subsection 13.3(3) of the *Criminal Code*.

3ZQK Destruction of age determination information

- (1) If, in relation to a Commonwealth offence:
 - (a) age determination information relating to a person has been obtained by carrying out a prescribed procedure; and
 - (b) 12 months have passed since the carrying out of the procedure; and
 - (c) proceedings in respect of the offence have not been instituted against the person from whom the information was taken or have discontinued;the information must be destroyed as soon as practicable.

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- (2) If, in relation to a Commonwealth offence, age determination information relating to a person has been obtained by carrying out a prescribed procedure and:
- (a) the person is found to have committed the offence but no conviction is recorded; or
 - (b) the person is acquitted of the offence and:
 - (i) no appeal is lodged against the acquittal; or
 - (ii) an appeal is lodged against the acquittal and the acquittal is confirmed or the appeal is withdrawn;
- the information must be destroyed as soon as practicable unless an investigation into, or a proceeding against, the person for another Commonwealth offence is pending.
- (3) A magistrate may, on application by an investigating official, extend the period of 12 months referred to in subsection (1), or that period as previously extended under this subsection in relation to the information, if the magistrate is satisfied that there are special reasons for doing so.

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Division 4B Power to obtain information and documents

Section 3ZQL

Division 4B—Power to obtain information and documents

Subdivision A—Definitions

3ZQL Definition

In this Division:

authorised AFP officer means:

- (a) the Commissioner; or
- (b) a Deputy Commissioner; or
- (c) a senior executive AFP employee who:
 - (i) is a member of the Australian Federal Police; and
 - (ii) is authorised in writing by the Commissioner for the purposes of this paragraph.

Subdivision B—Power to request information or documents about terrorist acts from operators of aircraft or ships

3ZQM Power to request information or documents about terrorist acts from operators of aircraft or ships

- (1) This section applies if an authorised AFP officer believes on reasonable grounds that an operator of an aircraft or ship has information or documents (including in electronic form) that are relevant to a matter that relates to the doing of a terrorist act (whether or not a terrorist act has occurred or will occur).
- (2) The officer may:
 - (a) ask the operator questions relating to the aircraft or ship, or its cargo, crew, passengers, stores or voyage, that are relevant to the matter; or
 - (b) request the operator to produce documents relating to the aircraft or ship, or its cargo, crew, passengers, stores or voyage:

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- (i) that are relevant to the matter; and
 - (ii) that are in the possession or under the control of the operator.
- (3) A person who is asked a question or requested to produce a document under subsection (2) must answer the question or produce the document as soon as practicable.

Offence

- (4) A person commits an offence if:
 - (a) the person is an operator of an aircraft or ship; and
 - (b) the person is asked a question or requested to produce a document under subsection (2); and
 - (c) the person fails to answer the question or produce the document.

Penalty: 60 penalty units.

- (5) Subsection (4) is an offence of strict liability.

Note: For strict liability, see section 6.1 of the *Criminal Code*.

- (6) It is a defence to a prosecution for an offence against subsection (4) if the person charged had a reasonable excuse for:
 - (a) failing to answer the question; or
 - (b) failing to produce the document.

Definitions

- (7) In this section:

operator has the meaning given by section 4 of the *Customs Act 1901*.

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Division 4B Power to obtain information and documents

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Subdivision C—Power to obtain documents relating to serious terrorism and non-terrorism offences

3ZQN Power to obtain documents relating to serious terrorism offences

- (1) This section applies if an authorised AFP officer considers on reasonable grounds that a person has documents (including in electronic form) that are relevant to, and will assist, the investigation of a serious terrorism offence.
- (2) The officer may give the person a written notice requiring the person to produce documents that:
 - (a) relate to one or more of the matters set out in section 3ZQP, as specified in the notice; and
 - (b) are in the possession or under the control of the person.
- (3) The notice must:
 - (a) specify the name of the person to whom the notice is given; and
 - (b) specify the matters to which the documents to be produced relate; and
 - (c) specify the manner in which the documents are to be produced; and
 - (d) specify the place at which the documents are to be produced; and
 - (e) specify the day by which the person must comply with the notice, being a day that is at least:
 - (i) 14 days after the giving of the notice; or
 - (ii) if the officer believes that it is appropriate, having regard to the urgency of the situation, to specify an earlier day—3 days after the giving of the notice; and
 - (f) set out the effect of section 3ZQS (offence for failure to comply); and

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- (g) if the notice specifies that information about the notice must not be disclosed—set out the effect of section 3ZQT (offence for disclosing existence or nature of a notice).

3ZQO Power to obtain documents relating to serious offences

- (1) An authorised AFP officer may apply to a Judge of the Federal Circuit and Family Court of Australia (Division 2) for a notice under this section in respect of a person if the AFP officer considers on reasonable grounds that the person has documents (including in electronic form) that are relevant to, and will assist, the investigation of a serious offence.
- (2) If the Judge is satisfied on the balance of probabilities, by information on oath or by affirmation, that:
 - (a) the person has documents (including in electronic form) that are relevant to, and will assist, the investigation of a serious offence; and
 - (b) giving the person a notice under this section is reasonably necessary, and reasonably appropriate and adapted, for the purpose of investigating the offence;the Judge may give the person a written notice requiring the person to produce documents that:
 - (c) relate to one or more of the matters set out in section 3ZQP, as specified in the notice; and
 - (d) are in the possession or under the control of the person.
- (3) The Judge must not give the notice unless the authorised AFP officer or some other person has given to the Judge, either orally or by affidavit, such further information (if any) as the Judge requires concerning the grounds on which the issue of the notice is being sought.
- (4) The notice must:
 - (a) specify the name of the person to whom the notice is given; and
 - (b) specify the matters to which the documents to be produced relate; and

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Division 4B Power to obtain information and documents

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- (c) specify the manner in which the documents are to be produced; and
- (d) specify the place at which the documents are to be produced; and
- (e) state that the person must comply with the notice within 14 days after the day on which the notice is given; and
- (f) set out the effect of section 3ZQS (offence for failure to comply); and
- (g) if the notice specifies that information about the notice must not be disclosed—set out the effect of section 3ZQT (offence for disclosing existence or nature of a notice).

3ZQP Matters to which documents must relate

A document to be produced under a notice under section 3ZQN or 3ZQO must relate to one or more of the following matters:

- (a) determining whether an account is held by a specified person with a specified financial institution, and details relating to the account (including details of any related accounts);
- (b) determining whether a specified person is a signatory to an account with a specified financial institution, and details relating to the account (including details of any related accounts);
- (c) determining whether a transaction has been conducted by a specified financial institution on behalf of a specified person, and details relating to the transaction (including details relating to other parties to the transaction);
- (d) determining whether a specified person travelled or will travel between specified dates or specified locations, and details relating to the travel (including details relating to other persons travelling with the specified person);
- (e) determining whether assets have been transferred to or from a specified person between specified dates, and details relating to the transfers (including details relating to the names of any other persons to or from whom the assets were transferred);

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- (f) determining whether an account is held by a specified person in respect of a specified utility (such as gas, water or electricity), and details relating to the account (including the names of any other persons who also hold the account);
- (g) determining who holds an account in respect of a specified utility (such as gas, water or electricity) at a specified place, and details relating to the account;
- (h) determining whether a telephone account is held by a specified person, and details relating to the account (including:
 - (i) details in respect of calls made to or from the relevant telephone number; or
 - (ii) the times at which such calls were made or received; or
 - (iii) the lengths of such calls; or
 - (iv) the telephone numbers to which such calls were made and from which such calls were received);
- (i) determining who holds a specified telephone account, and details relating to the account (including details mentioned in paragraph (h));
- (j) determining whether a specified person resides at a specified place;
- (k) determining who resides at a specified place.

3ZQQ Powers conferred on Judges of the Federal Circuit and Family Court of Australia (Division 2) in their personal capacity

- (1) A power conferred on a Judge of the Federal Circuit and Family Court of Australia (Division 2) by section 3ZQO is conferred on the Judge in a personal capacity and not as a court or a member of a court.
- (2) A Judge of the Federal Circuit and Family Court of Australia (Division 2) need not accept the power conferred.
- (3) A Judge of the Federal Circuit and Family Court of Australia (Division 2) exercising a power conferred by section 3ZQO has the

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same protection and immunity as if he or she were exercising that power as, or as a member of, the court of which the Judge is a member.

3ZQR Documents must be produced

- (1) A person is not excused from producing a document under section 3ZQN or 3ZQO on the ground that to do so:
 - (a) would contravene any other law; or
 - (b) might tend to incriminate the person or otherwise expose the person to a penalty or other liability; or
 - (c) would disclose material that is protected against disclosure by legal professional privilege or any other duty of confidence; or
 - (d) would be otherwise contrary to the public interest.
- (2) However, neither:
 - (a) the production of the document; nor
 - (b) any information, document or thing obtained as a direct or indirect consequence of producing the document;is admissible in evidence against the person in proceedings other than proceedings for an offence against section 137.1, 137.2 or 149.1 of the *Criminal Code* that relates to this Act.
- (3) A person is not liable to any penalty by reason of his or her producing a document when required to do so under section 3ZQN or 3ZQO.
- (4) The fact that a person is not excused under subsection (1) from producing a document does not otherwise affect a claim of legal professional privilege that anyone may make in relation to that document.

3ZQS Offence for failure to comply with notice under section 3ZQN or 3ZQO

A person commits an offence if:

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- (a) the person is given a notice under section 3ZQN or 3ZQO;
and
- (b) the person fails to comply with the notice.

Penalty: 30 penalty units.

3ZQT Offence for disclosing existence or nature of notice

- (1) A person commits an offence if:
 - (a) the person is given a notice under section 3ZQN or 3ZQO;
and
 - (b) the notice specifies that information about the notice must
not be disclosed; and
 - (c) the person discloses the existence or nature of the notice.

Penalty: 120 penalty units or imprisonment for 2 years, or both.

- (2) Subsection (1) does not apply if:
 - (a) the person discloses the information to another person in
order to obtain a document that is required by the notice in
order to comply with it, and that other person is directed not
to inform the person to whom the document relates about the
matter; or
 - (b) the disclosure is made to obtain legal advice or legal
representation in relation to the notice; or
 - (c) the disclosure is made for the purposes of, or in the course of,
legal proceedings; or
 - (d) the disclosure is made for the purpose of an IGIS official
exercising a power, or performing a function or duty, as an
IGIS official.

Note: A defendant, except for an IGIS official, bears an evidential burden in
relation to a matter in this subsection (see subsection 13.3(3) of the
Criminal Code). For IGIS officials, see section 34C of the
Inspector-General of Intelligence and Security Act 1986.

Part IAA Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

Division 4C Using, sharing and returning things seized and documents produced

Section 3ZQU

Division 4C—Using, sharing and returning things seized and documents produced

Subdivision A—Using and sharing things seized and documents produced

3ZQU Purposes for which things and documents may be used and shared

Use and sharing of thing or document by constable or Commonwealth officer

- (1) A constable or Commonwealth officer may use, or make available to another constable or Commonwealth officer to use, a thing seized under this Part, or the original or a copy of a document produced under Division 4B, for the purpose of any or all of the following if it is necessary to do so for that purpose:
 - (a) preventing, investigating or prosecuting an offence;
 - (b) proceedings under the *Proceeds of Crime Act 1987* or the *Proceeds of Crime Act 2002*;
 - (c) proceedings under a corresponding law (within the meaning of either of the Acts mentioned in paragraph (b)) that relate to a State offence that has a federal aspect;
 - (d) proceedings for the forfeiture of the thing under a law of the Commonwealth;
 - (da) the performance of the ACC's function covered by paragraph 7A(da) of the *Australian Crime Commission Act 2002*;
 - (e) the performance of a function or duty, or the exercise of a power, by a person, court or other body under, or in relation to a matter arising under, Division 104, 105, 105A or 395 of the *Criminal Code*;
 - (f) investigating or resolving a complaint or an allegation of misconduct relating to an exercise of a power or the performance of a function or duty under this Part;

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- (g) investigating or resolving an AFP conduct or practices issue (within the meaning of the *Australian Federal Police Act 1979*) under Part V of that Act;
 - (h) investigating or resolving a complaint under the *Ombudsman Act 1976* or the *Privacy Act 1988*;
 - (i) conducting a NACC Act process (within the meaning of the *National Anti-Corruption Commission Act 2022*);
 - (j) proceedings in relation to a complaint, allegation or issue mentioned in paragraph (f), (g), (h) or (i);
 - (k) deciding whether to institute proceedings, to make an application or request, or to take any other action, mentioned in any of the preceding paragraphs of this subsection;
 - (l) the performance of the functions of the Australian Federal Police under section 8 of the *Australian Federal Police Act 1979*.
- (2) A constable or Commonwealth officer may use a thing seized under this Part, or the original or a copy of a document produced under Division 4B, for any other use that is required or authorised by or under a law of a State or a Territory.
- (3) A constable or Commonwealth officer may make available to another constable or Commonwealth officer to use a thing seized under this Part, or the original or a copy of a document produced under Division 4B, for any purpose for which the making available of the thing or document is required or authorised by a law of a State or Territory.
- (4) To avoid doubt, this section does not limit any other law of the Commonwealth that:
- (a) requires or authorises the use of a document or other thing; or
 - (b) requires or authorises the making available (however described) of a document or other thing.

Part IAA Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

Division 4C Using, sharing and returning things seized and documents produced

Section 3ZQU

Sharing thing or document for use by State, Territory or foreign agency

- (5) A constable or Commonwealth officer may make a thing seized under this Part, or the original or a copy of a document produced under Division 4B, available to:
- (a) a State or Territory law enforcement agency; or
 - (b) an agency that has responsibility for:
 - (i) law enforcement in a foreign country; or
 - (ii) intelligence gathering for a foreign country; or
 - (iii) the security of a foreign country;
- to be used by that agency for a purpose mentioned in subsection (1), (2) or (3) and the purpose of any or all of the following (but not for any other purpose):
- (c) preventing, investigating or prosecuting an offence against a law of a State or Territory;
 - (d) proceedings under a corresponding law (within the meaning of the *Proceeds of Crime Act 1987* or the *Proceeds of Crime Act 2002*);
 - (e) proceedings for the forfeiture of the thing under a law of a State or Territory;
 - (f) deciding whether to institute proceedings or to take any other action mentioned in any of paragraphs (1)(a) to (l) (inclusive), subsection (2) or (3) or paragraph (c), (d) or (e) of this subsection.

Ministerial arrangements for sharing

- (6) This Division does not prevent the Minister from making an arrangement with a Minister of a State or Territory for:
- (a) the making available to a State or Territory law enforcement agency of that State or Territory, for purposes mentioned in subsections (1), (3) and (5), of things seized under this Part and originals and copies of documents produced under Division 4B; and

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- (b) the disposal by the agency of such things, originals and copies when they are no longer of use to that agency for those purposes.

Note: This subsection does not empower the Minister to make such an arrangement.

Definition

- (7) In this section:

State or Territory law enforcement agency means:

- (a) the police force or police service of a State or Territory; or
- (b) the New South Wales Crime Commission; or
- (c) the Independent Commission Against Corruption of New South Wales; or
- (d) the Law Enforcement Conduct Commission of New South Wales; or
- (e) the Independent Broad-based Anti-corruption Commission of Victoria; or
- (f) the Crime and Corruption Commission of Queensland; or
- (g) the Corruption and Crime Commission of Western Australia; or
- (h) the Independent Commission Against Corruption of South Australia.

3ZQV Operating seized electronic equipment

- (1) This section applies to electronic equipment seized under this Part or moved under section 3K.
- (2) The electronic equipment may be operated at any location after it has been seized or moved, for the purpose of determining whether data that is evidential material, or whether data that suggests the existence of a digital asset that may be seized under a warrant, is held on or accessible from the electronic equipment, and obtaining access to such data.

Part IAA Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

Division 4C Using, sharing and returning things seized and documents produced

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- (3) The data referred to in subsection (2) includes, but is not limited to, the following:
- (a) data held on the electronic equipment, including data held on the electronic equipment when operated under this section that was not held on the electronic equipment at the time the electronic equipment was seized;
 - (b) data not held on the electronic equipment but accessible by using it, including data that was not accessible at the time the electronic equipment was seized.
- (3A) If the electronic equipment was seized under a warrant, subsection (2) does not apply to data that was generated after the expiry of the warrant.
- (4) If the electronic equipment was seized under a warrant or moved under section 3K, the electronic equipment may be operated before or after the expiry of the warrant.
- (5) This section does not limit the operation of other provisions of this Part that relate to dealing with items seized under this Part or moved under section 3K.

Note: For example, this section does not affect the operation of the time limits in section 3K on examination or processing of a thing moved under that section.

3ZQW Compensation for damage to electronic equipment

- (1) This section applies if:
- (a) as a result of equipment being operated as mentioned in section 3ZQV:
 - (i) damage is caused to the equipment; or
 - (ii) damage is caused to data recorded on the equipment or data access to which was obtained from the operation of the equipment; or
 - (iii) programs associated with the use of the equipment, or with the use of the data, are damaged or corrupted; and
 - (b) the damage or corruption occurs because:

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- (i) insufficient care was exercised in selecting the person who was to operate the equipment; or
 - (ii) insufficient care was exercised by the person operating the equipment.
- (2) The Commonwealth must pay the owner of the equipment, or the user of the data or programs, such reasonable compensation for the damage or corruption as the Commonwealth and the owner or user agree on.
- (3) However, if the owner or user and the Commonwealth fail to agree, the owner or user may institute proceedings in a court of competent jurisdiction for such reasonable amount of compensation as the court determines.
- (4) In determining the amount of compensation payable, regard is to be had to whether any appropriate warning or guidance was provided, before the equipment was operated, on the operation of the equipment.
- (5) Compensation is payable out of money appropriated by the Parliament.
- (6) For the purposes of subsection (1):
damage, in relation to data, includes damage by erasure of data or addition of other data.

Subdivision B—Returning things seized and documents produced

3ZQX When things seized or documents produced under Division 2, 4 or 4B must be returned

When things seized under Division 2 or 4 must be returned

- (1) If the Commissioner is satisfied that a thing seized under Division 2 or 4 is not required (or is no longer required) for a purpose mentioned in section 3ZQU or for other judicial or

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administrative review proceedings, the Commissioner must take reasonable steps to return the thing to the person from whom it was seized or to the owner if that person is not entitled to possess it.

- (2) However, the Commissioner does not have to take those steps if:
- (aa) either:
 - (i) the thing may be retained because of an order under subsection 3ZQZB(3), or any other order under that subsection has been made in relation to the thing; or
 - (ii) the Commissioner has applied for such an order and the application has not been determined; or
 - (a) the thing may otherwise be retained, destroyed or disposed of under a law, or an order of a court or tribunal, of the Commonwealth or of a State or a Territory; or
 - (b) the thing is forfeited or forfeitable to the Commonwealth or is the subject of a dispute as to ownership.

When documents produced under Division 4B must be returned

- (3) If the Commissioner is satisfied that a document produced under Division 4B is not required (or is no longer required) for a purpose mentioned in section 3ZQU or for other judicial or administrative review proceedings, the Commissioner must take reasonable steps to return the document to the person who produced the document or to the owner if that person is not entitled to possess it.
- (4) However, the Commissioner does not have to take those steps if:
- (a) either:
 - (i) the document may be retained because of an order under subsection 3ZQZB(3), or any other order under that subsection has been made in relation to the document; or
 - (ii) the Commissioner has applied for such an order and the application has not been determined; or
 - (b) the document may otherwise be retained, destroyed or disposed of under a law, or an order of a court or tribunal, of the Commonwealth or of a State or a Territory; or

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- (c) the document is forfeited or forfeitable to the Commonwealth
or is the subject of a dispute as to ownership.

3ZQY When things seized under Division 3 must be returned

- (1) If:
- (a) the Commissioner is satisfied that a thing seized under Division 3 is not required (or is no longer required) for a purpose mentioned in section 3ZQU or for other judicial or administrative review proceedings; or
 - (b) the period of 60 days after the thing's seizure ends;
- the Commissioner must take reasonable steps to return the thing to the person from whom it was seized or to the owner if that person is not entitled to possess it.
- (2) However, the Commissioner does not have to take those steps if:
- (a) proceedings in respect of which the thing may afford evidence were instituted before the end of the 60 days and have not been completed (including an appeal to a court in relation to those proceedings); or
 - (b) either:
 - (i) the thing may be retained because of an order under subsection 3ZQZB(2) or (3), or any other order under subsection 3ZQZB(3) has been made in relation to the thing; or
 - (ii) the Commissioner has applied for such an order and the application has not been determined; or
 - (c) the thing may otherwise be retained, destroyed or disposed of under a law, or an order of a court or tribunal, of the Commonwealth or of a State or a Territory; or
 - (d) the thing is forfeited or forfeitable to the Commonwealth or is the subject of a dispute as to ownership.

Part IAA Search, information gathering, arrest and related powers (other than powers under delayed notification search warrants)

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3ZQZA When things seized under Division 3A must be returned

- (1) The Commissioner must take reasonable steps to return a thing seized under Division 3A if the owner requests the return of the thing.
 - (2) However, the Commissioner does not have to take those steps if:
 - (a) the Commissioner suspects on reasonable grounds that if the thing is returned to the owner, the thing is likely to be used by the owner or another person in the commission of a terrorist act, a terrorism offence or a serious offence; or
 - (b) the Commissioner is satisfied that the thing is being used, or is required to be used, for a purpose mentioned in section 3ZQU or for other judicial or administrative review proceedings; or
 - (c) either:
 - (i) the thing may be retained because of an order under subsection 3ZQZB(2) or (3), or any other order under subsection 3ZQZB(3) has been made in relation to the thing; or
 - (ii) the Commissioner has applied for such an order and the application has not been determined; or
 - (d) the thing may otherwise be retained, destroyed or disposed of under a law, or order of a court or tribunal, of the Commonwealth or of a State or a Territory; or
 - (e) the thing is forfeited or forfeitable to the Commonwealth or is the subject of a dispute as to ownership.
 - (3) Despite subsection (2), if:
 - (a) the owner of a thing requests the return of the thing:
 - (i) within 90 days after the date of the seizure notice served under section 3UF in relation to the thing; or
 - (ii) if subsection 3UF(2) applied in relation to the thing so that a seizure notice was not served—within 90 days after the day on which the thing was seized; and
 - (b) the thing has not been returned to the owner by the end of the 90th day;
-

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the Commissioner must, before the end of the 95th day:

- (c) take reasonable steps to return the thing to the owner; or
- (d) apply to a magistrate for an order under section 3ZQZB.

**3ZQZB Magistrate may permit a thing seized or document
produced under this Part to be retained, forfeited etc.**

- (1) A magistrate may, on application by the Commissioner, make an order under subsection (2) or (3) in relation to a thing seized or a document produced under this Part.

*Use for purpose mentioned in section 3ZQU or for other judicial
or administrative review proceedings*

- (2) The magistrate may order that a thing seized under Division 3 or 3A be retained for the period specified in the order if the magistrate is satisfied that the thing is being used, or is required to be used, for a purpose mentioned in section 3ZQU or for other judicial or administrative review proceedings.

*Preventing use in committing terrorist act, terrorism offence or
serious offence*

- (3) The magistrate may make any of the orders referred to in subsection (4) if the magistrate is satisfied that there are reasonable grounds to suspect that, if a thing seized or document produced under this Part is returned to any of the following persons, it is likely to be used by that person or another person in the commission of a terrorist act, a terrorism offence or a serious offence:

- (a) the owner of the thing or document;
- (b) in the case of a thing—the person from whom the thing was seized;
- (c) in the case of a document—the person who produced the document.

- (4) The orders are as follows:

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- (a) an order that the thing or document may be retained for the period specified in the order;
- (b) an order that the thing or document is forfeited to the Commonwealth;
- (c) for a thing that is not a document—an order that:
 - (i) the thing be sold and the proceeds given to the owner of the thing; or
 - (ii) the thing be sold in some other way;
- (d) an order that the thing or document is to be destroyed or otherwise disposed of.

Thing or document must be returned if magistrate not satisfied

- (5) The magistrate must order that a thing or document be returned to the following person if the magistrate is not satisfied as mentioned in subsection (2) or (3):
 - (a) in the case of a thing—the person from whom the thing was seized;
 - (b) in the case of a document—the person who produced the document;
 - (c) if the person referred to in paragraph (a) or (b) is not entitled to possess the thing or document—the owner of the thing or document.

Persons with an interest in thing or document

- (6) Before making an application under this section in relation to a thing or document, the Commissioner must:
 - (a) take reasonable steps to discover who has an interest in the thing or document; and
 - (b) if it is practicable to do so, notify each person who the Commissioner believes to have such an interest of the proposed application.
- (7) The magistrate must allow a person who has an interest in the thing or document to appear and be heard in determining the application.

Special rule for things seized under Division 3

- (8) The Commissioner may only make an application under this section in relation to a thing seized under Division 3 if the application is made:
- (a) before the end of 60 days after the seizure; or
 - (b) before the end of a period previously specified in an order in relation to the thing under this section.

Division 5—General

3ZR Conduct of ordinary searches and frisk searches

An ordinary search or a frisk search of a person under this Part must, if practicable, be conducted by a person of the same sex as the person being searched.

3ZS Announcement before entry

- (1) A constable must, before any person enters premises under a warrant or to arrest a person:
 - (a) announce that he or she is authorised to enter the premises; and
 - (b) give any person at the premises an opportunity to allow entry to the premises.
- (2) A constable is not required to comply with subsection (1) if he or she believes on reasonable grounds that immediate entry to the premises is required to ensure:
 - (a) the safety of a person (including a constable); or
 - (b) that the effective execution of the warrant or the arrest is not frustrated.

3ZT Offence for making false statements in warrants

A person must not make, in an application for a warrant, a statement that the person knows to be false or misleading in a material particular.

Penalty: Imprisonment for 2 years.

3ZU Offences relating to telephone warrants

A person must not:

Section 3ZW

- (a) state in a document that purports to be a form of warrant under section 3R the name of an issuing officer unless that officer issued the warrant; or
- (b) state on a form of warrant under that section a matter that, to the person's knowledge, departs in a material particular from the form authorised by the issuing officer; or
- (c) purport to execute, or present to a person, a document that purports to be a form of warrant under that section that the person knows:
 - (i) has not been approved by an issuing officer under that section; or
 - (ii) to depart in a material particular from the terms authorised by an issuing officer under that section; or
- (d) give to an issuing officer a form of warrant under that section that is not the form of warrant that the person purported to execute.

Penalty: Imprisonment for 2 years.

3ZW Delegation by Commissioner

- (1) The Commissioner may delegate to a constable any or all of the Commissioner's powers, functions or duties under this Part.
- (2) The Commissioner may delegate to a Commonwealth officer any or all of the Commissioner's powers, functions or duties under Division 4C of this Part if the Commissioner is satisfied on reasonable grounds that the officer is able to properly exercise those powers, functions or duties.

3ZX Law relating to legal professional privilege not affected

This Part does not affect the law relating to legal professional privilege.

Part IAAA—Delayed notification search warrants

Division 1—Preliminary

3ZZAA Object of this Part

- (1) The object of this Part is to provide for eligible agencies to obtain search warrants:
 - (a) that relate to eligible offences; and
 - (b) that authorise the entry and search of premises without having to produce the warrant at the time of entry and search.
- (2) A warrant issued under this Part is a *delayed notification search warrant*.
- (3) An *eligible agency* is the Australian Federal Police.
- (4) An *eligible offence* is a terrorism offence that is punishable on conviction by imprisonment for 7 years or more.

3ZZAB Application of Part

- (1) This Part is not intended to limit or exclude the operation of another law of the Commonwealth (including other provisions of this Act) relating to:
 - (a) the search of premises; or
 - (b) the seizure of things; or
 - (c) the use of an assumed identity; or
 - (d) the installation of surveillance devices (within the meaning of the *Surveillance Devices Act 2004*).
- (2) To avoid doubt, it is declared that even though another law of the Commonwealth provides power to do one or more of the things referred to in subsection (1), a similar power conferred by this Part may be used despite the existence of the power under the other law.

3ZZAC Definitions

In this Part:

adjoining premises, in relation to particular premises, means premises adjoining, or providing access, to the premises.

adjoining premises occupier's notice: see section 3ZZDB.

applicable normal search warrant regime: see subsection 3ZZBJ(2).

authorised agency means the Australian Federal Police.

chief officer, in relation to an authorised agency or eligible agency, means the Commissioner.

damage, in relation to data, includes damage by erasure of data or addition of other data.

day of execution of a delayed notification search warrant means the day on which the warrant premises were first entered under the warrant.

delayed notification search warrant: see subsection 3ZZAA(2).

eligible agency: see subsection 3ZZAA(3).

eligible issuing officer: see subsection 3ZZAD(1).

eligible offence: see subsection 3ZZAA(4).

eligible officer of an authorised agency or eligible agency means a member or special member of the Australian Federal Police.

emergency situation, in relation to the execution of a delayed notification search warrant in relation to premises, means a situation that the executing officer or a person assisting believes, on reasonable grounds, involves a serious and imminent threat to a person's life, health or safety that requires the executing officer and persons assisting to leave the premises.

Section 3ZZAC

evidential material means a thing relevant to an eligible offence, or an indictable offence, that has been, is being, is about to be or is likely to be committed.

executing officer, in relation to a delayed notification search warrant, means:

- (a) the eligible officer of the authorised agency who is named in the warrant by the eligible issuing officer as being responsible for executing the warrant; or
- (b) if that eligible officer does not intend to be present at the execution of the warrant—another eligible officer of the authorised agency whose name has been written in the warrant by the eligible officer so named; or
- (c) another eligible officer of the authorised agency whose name has been written in the warrant by the eligible officer of the authorised agency last named in the warrant.

inspecting officer means a person appointed under subsection 3ZZGA(1).

nominated ART member means a person in relation to whom a nomination is in force under section 3ZZAF.

person assisting, in relation to a delayed notification search warrant, means:

- (a) a person who is an eligible officer of the authorised agency and who is assisting in the execution of the warrant; or
- (b) another person who has been authorised by the executing officer to assist in executing the warrant.

premises includes a place and a conveyance.

relevant eligible agency, in relation to a thing seized under this Part, is the eligible agency whose chief officer authorised the application for the delayed notification search warrant under which the thing was seized.

Section 3ZZAC

staff member of an authorised agency or eligible agency means a person referred to in paragraph (a) of the definition of **law enforcement officer** in subsection 3(1).

State or Territory agency: see section 3ZZGF.

State or Territory inspecting authority: see section 3ZZGF.

State or Territory law enforcement agency means:

- (a) the police force or police service of a State or Territory; or
- (b) the New South Wales Crime Commission constituted by the *Crime Commission Act 2012* (NSW); or
- (c) the Independent Commission Against Corruption constituted by the *Independent Commission Against Corruption Act 1988* (NSW); or
- (d) the Law Enforcement Conduct Commission constituted by the *Law Enforcement Conduct Commission Act 2016* (NSW); or
- (e) the Independent Broad-based Anti-corruption Commission established by the *Independent Broad-based Anti-corruption Commission Act 2011* (Vic.); or
- (f) the Crime and Corruption Commission established by the *Crime and Corruption Act 2001* (Qld); or
- (g) the Corruption and Crime Commission established by the *Corruption and Crime Commission Act 2003* (WA); or
- (h) the Independent Commission Against Corruption established by the *Independent Commission Against Corruption Act 2012* (SA); or
- (i) the Integrity Commission established by the *Integrity Commission Act 2009* (Tas.).

thing includes a thing in electronic form.

warrant premises means premises in relation to which a delayed notification search warrant is in force, but does not include any adjoining premises that are also authorised to be entered under the warrant.

Section 3ZZAD

warrant premises occupier's notice: see section 3ZZDA.

3ZZAD Eligible issuing officers

- (1) An *eligible issuing officer* is:
 - (a) a person:
 - (i) who is a Judge of the Federal Court of Australia, or a Judge of the Supreme Court of a State or Territory; and
 - (ii) in relation to whom a consent under subsection 3ZZAE(1), and a declaration under subsection 3ZZAE(2), are in force; or
 - (b) a nominated ART member.
- (2) A function or power conferred on a Judge by this Part is conferred on the Judge in a personal capacity and not as a court or a member of a court.
- (3) A Judge has, in relation to the performance or exercise of a function or power conferred on an eligible issuing officer by this Part, the same protection and immunity as if he or she were performing that function, or exercising that power, as, or as a member of, a court (being the court of which the Judge is a member).
- (4) A nominated ART member has, in relation to the performance or exercise of a function or power conferred on an eligible issuing officer by this Part, the same protection and immunity as a Justice of the High Court has in relation to proceedings in the High Court.

3ZZAE Consent of Judges

- (1) A Judge of the Federal Court of Australia, or of the Supreme Court of a State or Territory, may, by writing, consent to be declared an eligible issuing officer by the Minister administering the *Judiciary Act 1903* under subsection (2).
- (2) The Minister administering the *Judiciary Act 1903* may, by writing, declare a Judge in relation to whom a consent under

Section 3ZZAF

subsection (1) is in force to be an eligible issuing officer for the purposes of this Part.

- (3) A consent or declaration under this section is not a legislative instrument.

3ZZAF Nominated ART members

- (1) The Minister administering the *Administrative Review Tribunal Act 2024* (the **ART Minister**) may, by writing, nominate a person who holds one of the following appointments to the Administrative Review Tribunal to issue delayed notification search warrants and perform related functions under this Act:
- (a) Deputy President;
 - (b) a senior member appointed on a salaried basis.
- (2) Despite subsection (1), the ART Minister must not nominate a person who holds an appointment as a senior member on a salaried basis of the Tribunal unless the person:
- (a) is enrolled as a legal practitioner of the High Court, of another federal court or of the Supreme Court of a State or of the Australian Capital Territory; and
 - (b) has been so enrolled for not less than 5 years.
- (3) A nomination ceases to be in force if:
- (a) the nominated ART member ceases to hold an appointment described in subsection (1); or
 - (b) the ART Minister, by writing, withdraws the nomination.

Division 2—Issue of delayed notification search warrants

Subdivision A—The normal process for applying for and issuing delayed notification search warrants

3ZZBA Eligible officer may seek authorisation to apply for a delayed notification search warrant

If an eligible officer of an eligible agency:

- (a) suspects, on reasonable grounds, that one or more eligible offences have been, are being, are about to be or are likely to be committed; and
- (b) suspects, on reasonable grounds, that entry and search of particular premises will substantially assist in the prevention or investigation of one or more of those offences; and
- (c) believes, on reasonable grounds, that it is necessary for the entry and search of the premises to be conducted without the knowledge of the occupier of the premises or any other person present at the premises;

the eligible officer may seek the authorisation of the chief officer of the agency to apply for a delayed notification search warrant in respect of the premises.

3ZZBB Authorisation to apply for a delayed notification search warrant

Scope

- (1A) This section applies if an eligible officer of an eligible agency seeks the authorisation of the chief officer of the agency to apply for a delayed notification search warrant in respect of particular premises.

Section 3ZZBC

Authorisation

- (1) The chief officer may, in writing, authorise the eligible officer to apply for the delayed notification search warrant if the chief officer is satisfied that there are reasonable grounds for the eligible officer to have:
 - (a) the suspicions mentioned in paragraphs 3ZZBA(a) and (b); and
 - (b) the belief mentioned in paragraph 3ZZBA(c).
- (2) The chief officer may orally (in person or by telephone or other means of voice communication) authorise the eligible officer to apply for the delayed notification search warrant if the chief officer is satisfied that:
 - (a) there are reasonable grounds for the eligible officer to have:
 - (i) the suspicions mentioned in paragraphs 3ZZBA(a) and (b); and
 - (ii) the belief mentioned in paragraph 3ZZBA(c); and
 - (b) either:
 - (i) it is an urgent case; or
 - (ii) the delay that would occur if the authorisation were in writing would frustrate the effective execution of the delayed notification search warrant.
- (3) If the chief officer of an eligible agency gives an authorisation under subsection (2), he or she must make a written record of the authorisation within 7 days.

3ZZBC Applying for a delayed notification search warrant

- (1) An eligible officer of an eligible agency may apply to an eligible issuing officer for a delayed notification search warrant in respect of particular premises if the officer is authorised under section 3ZZBB to apply for the warrant.

Note 1: The application will need to address:

- (a) why there are reasonable grounds for suspecting that one or more eligible offences have been, are being, are about to be or are likely to be committed (see paragraph 3ZZBA(a)); and

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- (aa) why there are reasonable grounds for suspecting that entry and search of the premises will substantially assist in the prevention or investigation of one or more of those offences (see paragraph 3ZZBA(b)); and
- (ab) why there are reasonable grounds for believing that it is necessary for the entry and search of the premises to be conducted without the knowledge of the occupier of the premises or any other person present at the premises (see paragraph 3ZZBA(c)); and
- (b) other matters the eligible issuing officer must have regard to (see subsection 3ZZBD(2)); and
- (c) matters that must be specified in the warrant (see subsection 3ZZBE(1)).

Note 2: In urgent cases or certain other cases, an application may be made by telephone, fax or other electronic means: see section 3ZZBF.

- (2) The eligible officer must provide the eligible issuing officer with:
 - (a) a copy of, or details of, the authorisation under section 3ZZBB; and
 - (b) particulars of any applications, and the outcomes, so far as known to the eligible officer, of any previous applications, in respect of the premises, for a warrant under this Part or Division 2 of Part IAA.
- (3) The application must be supported by an affidavit setting out the grounds on which the warrant is sought.
- (4) The eligible issuing officer may request further information relating to the application, and may require that the information be provided on oath or affirmation.

3ZZBD Issuing a delayed notification search warrant

- (1) If:
 - (a) an eligible officer applies to an eligible issuing officer, in accordance with section 3ZZBC, for a delayed notification search warrant in respect of particular premises (the *main premises*); and
 - (b) the eligible issuing officer is satisfied, by information on oath or affirmation, that there are reasonable grounds for the eligible officer to have:

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- (i) the suspicions mentioned in paragraphs 3ZZBA(a) and (b); and
 - (ii) the belief mentioned in paragraph 3ZZBA(c);
- the eligible issuing officer may issue a delayed notification search warrant in respect of the main premises.
- (2) In determining whether the delayed notification search warrant should be issued, the eligible issuing officer must have regard to the following:
 - (a) the extent to which the exercise of the powers under the warrant would assist the prevention or investigation of the eligible offence or offences to which the application for the warrant relates;
 - (b) the existence of alternative means of obtaining the evidence or information sought to be obtained;
 - (c) the extent to which the privacy of any person is likely to be affected;
 - (d) the nature and seriousness of that offence or those offences;
 - (e) if it is proposed that adjoining premises be entered for the purpose of entering the main premises—whether allowing entry to the adjoining premises is reasonably necessary:
 - (i) to enable entry to the main premises; and
 - (ii) to avoid compromising the prevention or investigation of that offence or those offences;
 - (f) any conditions to which the warrant should be subject;
 - (g) the outcome, so far as known to the eligible issuing officer, of any previous application, in respect of the main premises, for a warrant under this Part or Division 2 of Part IAA.
- (3) An eligible issuing officer of the Federal Court of Australia or the Administrative Review Tribunal may issue a delayed notification search warrant in relation to premises located anywhere in the Commonwealth or an external Territory.
- (4) An eligible issuing officer of the Supreme Court of a State or Territory may issue a delayed notification search warrant only in relation to premises located in that State or Territory.

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3ZZBE Contents of a delayed notification search warrant

- (1) A delayed notification search warrant must specify the following:
- (a) the name of the applicant;
 - (b) the name of the authorised agency;
 - (c) the name of the eligible officer of that agency who, unless he or she inserts the name of another such eligible officer in the warrant, is to be responsible for executing the warrant;
 - (d) the address, location or other description of the warrant premises;
 - (e) the eligible offence or offences to which the warrant relates;
 - (f) whether the warrant authorises the entry of adjoining premises, and if it does, the address, location or other description of the adjoining premises;
 - (g) the day on which, and the time at which, the warrant is issued;
 - (h) the day on which, and the time at which, the warrant expires (which must be a time on a day that is not more than 30 days after the day on which the warrant is issued);
 - (i) the time by which notice of entry of premises under the warrant is to be given (expressed as a time on a specified day that is not more than 6 months after the day on which the warrant is issued);
 - (j) a description of the kinds of things that may be searched for, seized, copied, photographed, recorded, marked, tagged, operated, printed, tested or sampled;
 - (k) whether the warrant authorises a thing to be placed in substitution for a thing seized under the warrant or moved under subsection 3ZZCE(2);
 - (l) whether the warrant authorises the re-entry of the warrant premises, and any adjoining premises authorised to be entered, to:
 - (i) return to the warrant premises any thing seized under the warrant or moved under subsection 3ZZCE(2); or

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- (ii) retrieve any thing substituted at the warrant premises for a thing seized under the warrant or moved under subsection 3ZZCE(2);
- (m) if the warrant authorises such re-entry—that the re-entry must be within:
 - (i) 14 days of the day of execution of the warrant; or
 - (ii) if a thing is moved under subsection 3ZZCE(2) and the time for which it may be examined or processed is more than 14 days because of an extension under section 3ZZCE—that time as extended under that section;
- (n) any conditions to which the warrant is subject;
- (o) that the eligible issuing officer is satisfied as mentioned in paragraph 3ZZBD(1)(b), and has had regard to the matters specified in subsection 3ZZBD(2).

Note 1: Regarding paragraph (i):

- (a) the specified time is the time by which a warrant premises occupier's notice, and any adjoining premises occupier's notice, must be given (subject to subsections 3ZZDA(4), 3ZZDB(4) and 3ZZDC(3)); and
- (b) the specified time can be extended (see subsection 3ZZDC(5)).

Note 2: Regarding the period described in paragraph (m), see also subsection 3ZZCA(3).

- (2) The warrant must be signed by the eligible issuing officer who issued it and include his or her name.

Subdivision B—Delayed notification search warrants by telephone, fax etc.

3ZZBF Delayed notification search warrants by telephone, fax etc.

When this section applies

- (1) This section applies if the requirements specified in subsection 3ZZBC(1) for when an eligible officer of an eligible agency may apply for a delayed notification search warrant in respect of particular premises are satisfied.

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Note: This section sets out an alternative method of applying for and issuing delayed notification search warrants.

Application for delayed notification search warrant

- (2) The eligible officer may apply to an eligible issuing officer by telephone, fax or other electronic means for a delayed notification search warrant in respect of the premises:
 - (a) if it is an urgent case; or
 - (b) if the delay that would occur if the application were made in person would frustrate the effective execution of the delayed notification search warrant.
- (3) The eligible issuing officer:
 - (a) may require communication by voice to the extent that it is practicable in the circumstances; and
 - (b) may make a recording of the whole or any part of any such communication by voice.
- (4) The application must:
 - (a) include all information required to be provided in an ordinary application for a delayed notification search warrant, but the application may, if necessary, be made before the information is sworn or affirmed; and
 - (b) include details of, or be accompanied by a copy of, the authorisation under section 3ZZBB.

Eligible issuing officer may complete and sign warrant

- (5) The eligible issuing officer may complete and sign the same delayed notification search warrant that would have been issued under section 3ZZBD if, after:
 - (a) considering the information and having received and considered such further information (if any) as the eligible issuing officer required; and
 - (b) having regard to the matters specified in subsection 3ZZBD(2);the eligible issuing officer is satisfied:

- (c) that there are reasonable grounds for the eligible officer to have:
 - (i) the suspicions mentioned in paragraphs 3ZZBA(a) and (b); and
 - (ii) the belief mentioned in paragraph 3ZZBA(c); and
 - (d) that:
 - (i) a delayed notification search warrant in the terms of the application should be issued urgently; or
 - (ii) the delay that would occur if an application were made in person would frustrate the effective execution of the delayed notification search warrant.
- (6) After completing and signing the delayed notification search warrant, the eligible issuing officer must inform the applicant, by telephone, fax or other electronic means, of:
- (a) the terms of the warrant; and
 - (b) the day on which, and the time at which, the warrant was signed.

Obligations on applicant

- (7) The applicant must then do the following:
- (a) complete a form of delayed notification search warrant in the same terms as the warrant completed and signed by the eligible issuing officer;
 - (b) state on the form the following:
 - (i) the name of the eligible issuing officer;
 - (ii) the day and time of signing of the warrant;
 - (c) send the following to the eligible issuing officer:
 - (i) the form of warrant completed by the applicant;
 - (ii) the information referred to in subsection (4), which must have been duly sworn or affirmed.
- (8) The applicant must comply with paragraph (7)(c) by the end of the day after the earlier of the following:
- (a) the day on which the delayed notification search warrant expires;

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(b) the day of execution of the warrant.

Eligible issuing officer to attach documents together

- (9) The eligible issuing officer must attach the documents provided under paragraph (7)(c) to the delayed notification search warrant signed by the eligible issuing officer.

3ZZBG Authority of delayed notification search warrant by telephone, fax etc.

- (1) A form of delayed notification search warrant duly completed under subsection 3ZZBF(7) is authority for the same powers as are authorised by the warrant signed by the eligible issuing officer under subsection 3ZZBF(5).
- (2) In any proceedings, a court is to assume (unless the contrary is proved) that an exercise of power was not authorised by a delayed notification search warrant under section 3ZZBF if:
- (a) it is material, in those proceedings, for the court to be satisfied that the exercise of power was duly authorised by the warrant; and
 - (b) the delayed notification search warrant signed by the eligible issuing officer authorising the exercise of the power is not produced in evidence.

Subdivision C—Offences relating to applying for warrants etc.

3ZZBH Offence for making false statement in application for delayed notification search warrant

A person must not make, in an application for a delayed notification search warrant, a statement that the person knows to be false or misleading in a material particular.

Penalty: Imprisonment for 2 years.

3ZZBI Offence relating to delayed notification search warrant by telephone, fax etc.

A person must not:

- (a) state in a document that purports to be a form of delayed notification search warrant under section 3ZZBF the name of an eligible issuing officer unless that eligible issuing officer issued the warrant; or
- (b) state on a form of delayed notification search warrant under that section a matter that, to the person's knowledge, departs in a material particular from the form authorised by the eligible issuing officer; or
- (c) purport to execute, or present to a person, a document that purports to be a form of delayed notification search warrant under that section that the person knows:
 - (i) has not been approved by an eligible issuing officer under that section; or
 - (ii) departs in a material particular from the terms authorised by an eligible issuing officer under that section; or
- (d) give to an eligible issuing officer a form of delayed notification search warrant under that section that is not the form of warrant that the person purported to execute.

Penalty: Imprisonment for 2 years.

Subdivision D—Interaction with other provisions under which search warrants may be issued

3ZZBJ Issue of warrants under other provisions as well as or instead of delayed notification search warrants

When this section applies

- (1) This section applies if an eligible officer of an eligible agency, under an authorisation under section 3ZZBB from the chief officer of the agency, makes an application (the *delayed notification*

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search warrant application) to an eligible issuing officer for a delayed notification search warrant:

- (a) in respect of particular premises; and
- (b) in relation to a particular eligible offence.

- (2) The *applicable normal search warrant regime* is Division 2 of Part IAA.

Application may be made to eligible issuing officer for normal search warrant

- (3) The eligible officer may, at the same time or subsequently, make an application to the eligible issuing officer for the issue of a warrant, under the applicable normal search warrant regime, to search the premises or other premises for evidential material relevant to the eligible offence or to another offence connected to the eligible offence.
- (4) If the eligible issuing officer is not a person who is authorised to issue warrants under the applicable normal search warrant regime, the eligible issuing officer may consider and deal with an application made as mentioned in subsection (3) as if the eligible issuing officer were such a person.

Eligible issuing officer may instead treat application as if it were made under applicable normal search warrant regime

- (5) If the eligible issuing officer is not satisfied that a delayed notification search warrant in respect of the premises should be issued, the eligible issuing officer may:
- (a) treat the delayed notification search warrant application as if it were an application for a warrant under the applicable normal search warrant regime (even if such an application has not been made); and
 - (b) consider and deal with the application under that regime:
 - (i) as if the application had been validly made under that regime; and

- (ii) if the eligible issuing officer is not a person who is authorised to issue warrants under the applicable normal search warrant regime—as if the eligible issuing officer were such a person.

Division 3—Exercise of powers under delayed notification search warrants

3ZZCA What is authorised by a delayed notification search warrant

- (1) A delayed notification search warrant authorises the executing officer or a person assisting to do any of the following:
 - (a) to enter the warrant premises;
 - (b) if the warrant authorises the entry of adjoining premises—to enter the adjoining premises solely for the purpose of entering or leaving the warrant premises;
 - (c) to impersonate another person to the extent reasonably necessary for executing the warrant;
 - (d) to search the warrant premises for the kinds of things (if any) specified in the warrant as the kinds of things that may be searched for;
 - (e) to seize any thing of a kind specified in the warrant as a kind of thing that may be seized;
 - (f) to seize other things found in the course of executing the warrant at the warrant premises that the executing officer or a person assisting believes on reasonable grounds to be evidential material, if the executing officer or a person assisting believes on reasonable grounds that the seizure of the things is necessary to prevent their concealment, loss or destruction or their use in committing any offence;
 - (g) to seize any thing found in the course of executing the warrant at the warrant premises that the executing officer or a person assisting believes on reasonable grounds:
 - (i) would present a danger to a person; or
 - (ii) could be used to assist a person to escape from lawful custody;
 - (h) to search for and record fingerprints found at the premises and to take samples of things found at the premises for forensic purposes;

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- (i) if specified in the warrant—to place a thing in substitution for a thing seized or moved under subsection 3ZZCE(2);
- (j) to do any of the following acts to a thing found in the course of executing the warrant at the warrant premises that is of a kind specified in the warrant as the kind of thing to which the act may be done, or that the executing officer or a person assisting believes on reasonable grounds to be evidential material:
 - (i) copy the thing;
 - (ii) photograph or otherwise record the thing;
 - (iii) mark or tag the thing (whether or not the mark or tag can be detected only with the use of a device);
 - (iv) operate the thing;
 - (v) print the thing;
 - (vi) test the thing;
 - (vii) sample the thing;
- (k) to do anything reasonably necessary to conceal the fact that any thing has been done under the warrant;
- (l) if specified in the warrant—to re-enter:
 - (i) the warrant premises; and
 - (ii) if the warrant authorises the entry of adjoining premises—the adjoining premises solely for the purpose of entering or leaving the warrant premises;within the period described in paragraph 3ZZBE(1)(m), for the purpose of returning any thing seized from the warrant premises or moved under subsection 3ZZCE(2), or retrieving any thing substituted at the premises for a thing seized or moved under that subsection;
- (m) to exercise the other powers conferred on the executing officer, or a person assisting, by the other provisions of this Division.

Note: Paragraph (c) does not authorise the acquisition or use of an assumed identity (see Part IAC). The protection provided by Part IAC only applies if the requirements of that Part have been complied with.

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- (2) The entry of premises under a paragraph of subsection (1) may be effected without the knowledge of the occupier of the premises or any other person present at the premises.
- (3) If the period referred to in paragraph (1)(l) ends after the delayed notification search warrant expires, the powers referred to in that paragraph may be exercised during that period as if the warrant were still in force.

3ZZCB Specific powers available to person executing warrant

Photography

- (1) In executing a delayed notification search warrant, the executing officer or a person assisting may, for a purpose incidental to the execution of the warrant, take photographs (including video recordings) of the warrant premises or of things at the warrant premises.

Completion of execution of warrant after brief interruption

- (2) If a delayed notification search warrant in relation to premises is being executed, the executing officer and the persons assisting may, if the warrant is still in force, complete the execution of the warrant after all of them temporarily cease its execution and leave the premises:
 - (a) for not more than one hour; or
 - (b) for not more than 24 hours, or such longer period as allowed by an eligible issuing officer under section 3ZZCC, if they leave the premises:
 - (i) because of an emergency situation; or
 - (ii) to reduce the risk of discovery of the fact that a law enforcement officer has been on the premises.

Completion of execution of warrant after court proceedings

- (3) If:

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- (a) the execution of a delayed notification search warrant is stopped by an order of a court; and
 - (b) the order is later revoked or reversed on appeal; and
 - (c) the warrant is still in force;
- the execution of the warrant may be completed.

3ZZCC Extension of time to re-enter premises left in emergency situation or to avoid discovery of law enforcement officer

- (1) If:
 - (a) a delayed notification search warrant in relation to premises is being executed; and
 - (b) the executing officer and the persons assisting (if any) leave the premises for a reason described in subparagraph 3ZZCB(2)(b)(i) or (ii); and
 - (c) the executing officer or a person assisting believes on reasonable grounds that the executing officer and the persons assisting will not be able to return to the premises within the 24-hour period mentioned in paragraph 3ZZCB(2)(b);he or she may apply to an eligible issuing officer for an extension of that period.
- (2) If an application mentioned in subsection (1) has been made, an eligible issuing officer may extend the period during which the executing officer and persons assisting may be away from the premises if:
 - (a) the eligible issuing officer is satisfied, by information on oath or affirmation, that there are circumstances that justify the extension; and
 - (b) the extension would not result in the period ending after the expiry of the warrant.

3ZZCD Executing a warrant—assistance, use of force and related matters

- (1) In executing a delayed notification search warrant:
 - (a) the executing officer may obtain such assistance; and
-

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- (b) the executing officer, or an eligible officer who is a person assisting, may use such force against persons and things; and
 - (c) a person assisting who is not an eligible officer may use such force against things;
- as is necessary and reasonable in the circumstances.
- (2) At any time when the executing officer is at warrant premises, or adjoining premises, under a delayed notification search warrant, the executing officer must have in his or her possession, or be in a position to produce without delay:
 - (a) a copy of the warrant; or
 - (b) if the warrant was issued under section 3ZZBF—a copy of the form of warrant completed under subsection 3ZZBF(7).
- (3) To avoid doubt, subsection (2) does not require the executing officer to produce a copy of the warrant or the form of warrant.

3ZZCE Use of equipment to examine or process things

Equipment may be brought onto warrant premises

- (1) In executing a delayed notification search warrant, the executing officer or a person assisting may bring to the warrant premises any equipment reasonably necessary for the examination or processing of a thing found at the premises in order to determine whether it is a thing that may be seized under the warrant.

Thing may be moved for examination or processing

- (2) A thing found at the warrant premises may be moved to another place for examination or processing in order to determine whether it may be seized under the delayed notification search warrant if:
 - (a) it is significantly more practicable to do so having regard to the timeliness and cost of examining or processing the thing at another place and the availability of expert assistance; and
 - (b) the executing officer or a person assisting suspects on reasonable grounds that the thing contains or constitutes a thing that may be seized under the warrant.

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Note: Sections 3ZZCG and 3ZZCH authorise operation of electronic equipment moved under this section.

Time limit on moving a thing

- (3) The thing may be moved to another place for examination or processing for no longer than 14 days.
- (4) An executing officer may apply to an eligible issuing officer for one or more extensions of that time if the executing officer believes on reasonable grounds that the thing cannot be examined or processed within 14 days or that time as previously extended.
- (5) A single extension cannot exceed 7 days.

Equipment at warrant premises may be operated

- (6) The executing officer or a person assisting may operate equipment already at the warrant premises to carry out the examination or processing of a thing found at the premises, if the executing officer or person believes on reasonable grounds that:
 - (a) the equipment is suitable for the examination or processing; and
 - (b) the examination or processing can be carried out without damage to the equipment or the thing.

3ZZCF Use of electronic equipment at warrant premises

Use of electronic equipment to access data

- (1) In executing a delayed notification search warrant, the executing officer or a person assisting may operate electronic equipment at the warrant premises to access data (including data not held at the premises) if he or she suspects on reasonable grounds that the data constitutes a thing that may be seized under the warrant.

Copy of data onto disk, tape or other device

- (2) If the executing officer or person assisting suspects on reasonable grounds that any data accessed by operating the electronic

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equipment constitutes a thing that may be seized under the warrant, he or she may copy the data to a disk, tape or other associated device and take the disk tape or device from the warrant premises.

(3) If:

- (a) under subsection (2), the executing officer or person assisting copies data to a disk, tape or device; and
- (b) the chief officer of the authorised agency is satisfied that the data is not required, is no longer required, or is not likely to be required, for a purpose mentioned in section 3ZZEA;

the chief officer must arrange for:

- (c) the removal of the data from any device in the control of the authorised agency; and
- (d) the destruction of any other reproduction of the data in the control of the authorised agency.

Powers if thing that may be seized is accessible by operating equipment

- (4) If the executing officer or a person assisting, after operating the electronic equipment, finds that a thing that may be seized under the warrant is accessible by doing so, he or she may:
 - (a) seize the equipment and any disk, tape or other associated device; or
 - (b) if the thing can, by using facilities at the warrant premises, be put in documentary form—operate the facilities to put the thing in that form and seize the documents so produced.
- (5) The executing officer or a person assisting may seize equipment under paragraph (4)(a) only if:
 - (a) it is not practicable to copy the data as mentioned in subsection (2) or to put the thing that may be seized in documentary form as mentioned in paragraph (4)(b); or
 - (b) possession of the equipment, by the occupier of the warrant premises, could constitute an offence.

3ZZCG Use of moved electronic equipment at other place

- (1) If electronic equipment is moved to another place under subsection 3ZZCE(2), the executing officer or a person assisting may operate the equipment to access data (including data held at another place).
- (2) If the executing officer or person assisting suspects on reasonable grounds that any data accessed by operating the electronic equipment constitutes a thing that may be seized under the warrant, he or she may copy any or all of the data accessed by operating the electronic equipment to a disk, tape or other associated device.
- (3) If the chief officer of the authorised agency is satisfied that the data is not required, is no longer required, or is not likely to be required, for a purpose mentioned in section 3ZZEA, the chief officer must arrange for:
 - (a) the removal of the data from any device in the control of the authorised agency; and
 - (b) the destruction of any other reproduction of the data in the control of the authorised agency.
- (4) If the executing officer or a person assisting, after operating the equipment, finds that a thing that may be seized under the warrant is accessible by doing so, he or she may:
 - (a) seize the equipment and any disk, tape or other associated device; or
 - (b) if the thing can be put in documentary form—put the thing in that form and seize the documents so produced.
- (5) The executing officer or a person assisting may seize equipment under paragraph (4)(a) only if:
 - (a) it is not practicable to copy the data as mentioned in subsection (2) or to put the thing that may be seized in documentary form as mentioned in paragraph (4)(b); or
 - (b) possession of the equipment, by the occupier of the warrant premises, could constitute an offence.

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3ZZCH Operating seized or moved electronic equipment

- (1) This section applies to electronic equipment seized under this Part or moved under section 3ZZCE.
- (2) The electronic equipment may be operated at any location after it has been seized or moved, for the purpose of determining whether data that is a thing that may be seized under the relevant delayed notification search warrant is held on or accessible from the electronic equipment, and obtaining access to such data.
- (3) The data referred to in subsection (2) includes, but is not limited to, the following:
 - (a) data held on the electronic equipment, including data held on the electronic equipment when operated under this section that was not held on the electronic equipment at the time the electronic equipment was seized;
 - (b) data not held on the electronic equipment but accessible by using it, including data that was not accessible at the time the electronic equipment was seized.
- (4) The electronic equipment may be operated before or after the expiry of the relevant delayed notification search warrant.
- (5) This section does not limit the operation of other provisions of this Part that relate to dealing with items seized under this Part or moved under section 3ZZCE.

Note: For example, this section does not affect the operation of the time limits in section 3ZZCE on examination or processing of a thing moved under that section.

3ZZCI Compensation for damage to electronic equipment

- (1) This section applies if:
 - (a) as a result of equipment being operated as mentioned in section 3ZZCE, 3ZZCF, 3ZZCG or 3ZZCH:
 - (i) damage is caused to the equipment; or

- (ii) damage is caused to data recorded on the equipment or data access to which was obtained from the operation of the equipment; or
 - (iii) programs associated with the use of the equipment, or with the use of the data, are damaged or corrupted; and
- (b) the damage or corruption occurs because:
 - (i) insufficient care was exercised in selecting the person who was to operate the equipment; or
 - (ii) insufficient care was exercised by the person operating the equipment.
- (2) The Commonwealth must pay the owner of the equipment, or the user of the data or programs, such reasonable compensation for the damage or corruption as the Commonwealth and the owner or user agree on.
- (3) However, if the owner or user and the Commonwealth fail to agree, the owner or user may institute proceedings in the Federal Court of Australia for such reasonable amount of compensation as the court determines.

Division 4—Notice to occupiers

3ZZDA Warrant premises occupier's notice must be prepared and given

- (1) As soon as practicable after the exercise of powers under a delayed notification search warrant has been completed, the executing officer must prepare a written notice (the *warrant premises occupier's notice*) that complies with subsection (2).
- (2) The warrant premises occupier's notice must:
 - (a) specify the name of the authorised agency; and
 - (b) specify the day on which, and the time at which, the warrant was issued; and
 - (c) specify the day of execution of the warrant; and
 - (d) specify the address, location or other description of the warrant premises; and
 - (e) specify the number of persons who entered the warrant premises for the purposes of executing, or assisting in the execution of, the warrant; and
 - (f) include a summary of:
 - (i) the purpose of delayed notification search warrants (including a statement to the effect that they are to authorise entry and search of premises to be conducted without the knowledge of the occupier of the premises or any other person present at the premises); and
 - (ii) the things done under the warrant; and
 - (g) describe any thing seized from the warrant premises and state whether a thing was placed in substitution for the seized thing; and
 - (h) state whether any thing was returned to, or retrieved from, the warrant premises and the date on which this occurred.
- (3) Subject to subsection (4), a staff member of the authorised agency must give the warrant premises occupier's notice, and a copy of the warrant (or the form of warrant completed under

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subsection 3ZZBF(7)), to the person (the *occupier*) who was the occupier of the warrant premises when they were entered under the warrant. The notice, and the copy of the warrant (or form of warrant), must be given to the occupier by the time applicable under section 3ZZDC.

- (4) If the occupier cannot be identified or located, a staff member of the authorised agency must report back to an eligible issuing officer, and the eligible issuing officer may give such directions as the eligible issuing officer thinks fit.
- (5) A notice and a direction under this section are not legislative instruments.

3ZZDB Adjoining premises occupier's notice must be prepared and given

- (1) As soon as practicable after adjoining premises are entered under a delayed notification search warrant, the executing officer must prepare a written notice (the *adjoining premises occupier's notice*) that complies with subsection (2).
- (2) The adjoining premises occupier's notice must specify:
 - (a) the name of the authorised agency; and
 - (b) the day on which, and the time at which, the warrant was issued; and
 - (c) the day of execution of the warrant; and
 - (d) the address, location or other description of:
 - (i) the warrant premises; and
 - (ii) the adjoining premises; and
 - (e) the purpose of delayed notification search warrants, including:
 - (i) a statement to the effect that they are to authorise entry and search of warrant premises to be conducted without the knowledge of the occupier of those premises or any other person present at those premises; and

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- (ii) a statement that adjoining premises may be entered solely for the purpose of entering or leaving the warrant premises.
- (3) Subject to subsection (4), a staff member of the authorised agency must give the adjoining premises occupier's notice, and a copy of the warrant (or the form of warrant completed under subsection 3ZZBF(7)), to the person (the *occupier*) who was the occupier of the adjoining premises when they were entered under the warrant. The notice, and the copy of the warrant, must be given to the occupier by the time applicable under section 3ZZDC.
- (4) If the occupier cannot be identified or located, a staff member of the authorised agency must report back to an eligible issuing officer, and the eligible issuing officer may give such directions as the eligible issuing officer thinks fit.
- (5) A notice and a direction under this section are not legislative instruments.

3ZZDC Time for giving warrant premises occupier's notice or adjoining premises occupier's notice

Section determines time by which notice must be given

- (1) This section:
 - (a) applies if a warrant premises occupier's notice, or an adjoining premises occupier's notice, is prepared in relation to a delayed notification search warrant; and
 - (b) determines the time by which the notice (and a copy of the warrant, or the form of warrant) must be given in accordance with subsection 3ZZDA(3) or 3ZZDB(3).

Note: This section has effect subject to any directions given under subsection 3ZZDA(4) or 3ZZDB(4).

General rule

- (2) Subject to subsection (3), the notice (and the copy of the warrant or form of warrant) must be given by:

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- (a) the time specified under paragraph 3ZZBE(1)(i); or
- (b) if that time has been extended under subsection (5), that time as so extended.

Rule if person is charged with an offence relying on evidence obtained under the warrant

(3) If:

- (a) a person is charged with an offence; and
- (b) the prosecution proposes to rely on evidence obtained under the warrant;

the notice (and the copy of the warrant or of the form of the warrant completed under subsection 3ZZBF(7)) must be given as soon as practicable after the person is charged with the offence, but no later than the earlier of the following times:

- (c) the time applicable under subsection (2);
- (d) the time of service of the brief of evidence by the prosecution.

Extending the time specified in the warrant for giving notice

- (4) The chief officer of the authorised agency may, in writing, authorise an eligible officer of the agency to apply to an eligible issuing officer for an extension of the time specified under paragraph 3ZZBE(1)(i) by which notice of entry of premises under a delayed notification search warrant is to be given.
- (5) An eligible issuing officer may, on application by an eligible officer authorised under subsection (4), extend the time specified under paragraph 3ZZBE(1)(i) by which notice of entry of premises under a delayed notification search warrant is to be given if the eligible issuing officer is satisfied that there are reasonable grounds for continuing to delay notice of entry of the premises.
- (6) An eligible issuing officer may, under subsection (5), extend the time specified under paragraph 3ZZBE(1)(i) on more than one occasion, but:

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- (a) must not extend the time by more than 6 months on any one occasion; and
 - (b) must not extend the time to more than 12 months after the day on which the delayed notification search warrant was issued unless:
 - (i) the Minister is satisfied on reasonable grounds that there are exceptional circumstances justifying the extension, and that it is in the public interest to do so; and
 - (ii) the Minister has issued a certificate approving the application for the extension; and
 - (iii) the eligible issuing officer is satisfied that there are exceptional circumstances justifying such an extension.
- (7) A certificate issued under subsection (6) is not a legislative instrument.

Division 5—Using, sharing and returning things seized

Subdivision A—Using and sharing things seized

3ZZEA Purposes for which things may be used and shared

Use and sharing of thing by eligible officer or Commonwealth officer

- (1) An eligible officer of an eligible agency or a Commonwealth officer may use, or make available to another eligible officer or Commonwealth officer to use, a thing seized under this Part for the purpose of any or all of the following if it is necessary to do so for that purpose:
 - (a) preventing, investigating or prosecuting an offence;
 - (b) proceedings under the *Proceeds of Crime Act 1987* or the *Proceeds of Crime Act 2002*;
 - (c) proceedings for the forfeiture of the thing under a law of the Commonwealth;
 - (d) the performance of a function or duty, or the exercise of a power, by a person, court or other body under, or in relation to a matter arising under, Division 104, 105, 105A or 395 of the *Criminal Code*;
 - (e) investigating or resolving a complaint or an allegation of misconduct relating to an exercise of a power or the performance of a function or duty under this Part;
 - (f) investigating or resolving an AFP conduct or practices issue (within the meaning of the *Australian Federal Police Act 1979*) under Part V of that Act;
 - (g) investigating or resolving a complaint under the *Ombudsman Act 1976* or the *Privacy Act 1988*;
 - (h) conducting a NACC Act process (within the meaning of the *National Anti-Corruption Commission Act 2022*);
 - (i) proceedings in relation to a complaint, allegation or issue mentioned in paragraph (e), (f), (g) or (h);

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- (j) deciding whether to institute proceedings, to make an application or request, or to take any other action, mentioned in any of the preceding paragraphs of this subsection;
 - (k) the performance of the functions of the Australian Federal Police under section 8 of the *Australian Federal Police Act 1979*.
- (2) An eligible officer of an eligible agency or a Commonwealth officer may use a thing seized under this Part for any other use that is required or authorised by or under a law of a State or a Territory.
- (3) An eligible officer of an eligible agency may make available to another eligible officer of an eligible agency or a Commonwealth officer to use a thing seized under this Part for any purpose for which the making available of the thing or document is required or authorised by a law of a State or Territory.
- (4) To avoid doubt, this section does not limit any other law of the Commonwealth that:
 - (a) requires or authorises the use of a thing; or
 - (b) requires or authorises the making available (however described) of a thing.

Sharing thing for use by State, Territory or foreign agency

- (5) An eligible officer of an eligible agency or a Commonwealth officer may make a thing seized under this Part available to:
 - (a) a State or Territory law enforcement agency; or
 - (b) an agency that has responsibility for:
 - (i) law enforcement in a foreign country; or
 - (ii) intelligence gathering for a foreign country; or
 - (iii) the security of a foreign country;to be used by that agency for a purpose mentioned in subsection (1), (2) or (3) and the purpose of any or all of the following (but not for any other purpose):
 - (c) preventing, investigating or prosecuting an offence against a law of a State or Territory;

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- (d) proceedings under a corresponding law (within the meaning of the *Proceeds of Crime Act 1987* or the *Proceeds of Crime Act 2002*);
- (e) proceedings for the forfeiture of the thing under a law of a State or Territory;
- (f) deciding whether to institute proceedings or to take any other action mentioned in any of paragraphs (1)(a) to (k) (inclusive), subsection (2) or (3) or paragraph (c), (d) or (e) of this subsection.

Ministerial arrangements for sharing

- (6) This Division does not prevent the Minister from making an arrangement with a Minister of a State or Territory for:
 - (a) the making available to a State or Territory law enforcement agency of that State or Territory, for purposes mentioned in subsections (1), (3) and (5), of things seized under this Part; and
 - (b) the disposal by the agency of such things when they are no longer of use to that agency for those purposes.

Note: This subsection does not empower the Minister to make such an arrangement.

Subdivision B—Returning things seized

3ZZEB When things seized must be returned

- (1) If the chief officer of the relevant eligible agency is satisfied that a thing seized under this Part is not required (or is no longer required) for a purpose mentioned in section 3ZZEA or for other judicial or administrative review proceedings, the chief officer must take reasonable steps to return the thing to the person from whom it was seized, or to the owner if that person is not entitled to possess it.
- (2) However, the chief officer does not have to take those steps if:
 - (a) either:

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- (i) the thing may be retained because of an order under subsection 3ZZEC(1), or any other order under that subsection has been made in relation to the thing; or
- (ii) the chief officer has applied for such an order and the application has not been determined; or
- (b) the thing may otherwise be retained, destroyed or disposed of under a law, or an order of a court or tribunal, of the Commonwealth or of a State or a Territory; or
- (c) the thing is forfeited or forfeitable to the Commonwealth or is the subject of a dispute as to ownership; or
- (d) a warrant premises occupier's notice has not been given in relation to the occupier of the warrant premises.

3ZZEC Eligible issuing officer may permit a thing seized to be retained, forfeited etc.

- (1) An eligible issuing officer may, on application by an eligible officer of an eligible agency, make any of the orders referred to in subsection (2) in relation to a thing seized under this Part if the eligible issuing officer is satisfied that there are reasonable grounds to suspect that, if the thing is returned to the owner of the thing, or the person from whom the thing was seized, it is likely to be used by that person or another person in the commission of:
 - (a) a terrorist act or a terrorism offence; or
 - (b) a serious offence (within the meaning of Part IAA).
- (2) The orders are as follows:
 - (a) an order that the thing may be retained for the period specified in the order;
 - (b) an order that the thing is forfeited to the Commonwealth;
 - (c) an order that:
 - (i) the thing be sold and the proceeds given to the owner of the thing; or
 - (ii) the thing be sold in some other way;
 - (d) an order that the thing is to be destroyed or otherwise disposed of.

- (3) If the eligible issuing officer is not satisfied as mentioned in subsection (1), the eligible issuing officer must order that the thing be returned to:
- (a) the person from whom the thing was seized; or
 - (b) if that person is not entitled to possess the thing—the owner of the thing.

Division 6—Reporting and record-keeping

3ZZFA Reporting on delayed notification search warrants

- (1) The executing officer in relation to a delayed notification search warrant, or the applicant for the warrant, must give a written report on the warrant to the chief officer of the authorised agency.
- (2) The report must be given to the chief officer of the authorised agency as soon as practicable after:
 - (a) the day of execution of the warrant; or
 - (b) if the warrant was not executed—the expiry of the warrant.
- (3) The report must:
 - (a) specify the address, location or other description of the warrant premises; and
 - (b) state whether or not the warrant was executed; and
 - (c) state whether the application for the warrant was made in person or in accordance with section 3ZZBF.
- (4) If the warrant was executed, the report must also include the following information:
 - (a) the day of execution of the warrant;
 - (b) the name of the executing officer;
 - (c) the name of any persons assisting and the kind of assistance provided;
 - (d) the name of the occupier of the warrant premises, if known to the executing officer;
 - (e) whether adjoining premises were entered under the warrant and, if they were, the name of the occupier of the adjoining premises, if known to the executing officer;
 - (f) the things that were done under the warrant;
 - (g) without limiting paragraph (f)—details of any thing at the warrant premises:
 - (i) seized; or
 - (ii) replaced with a substitute; or

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- (iii) copied, photographed or otherwise recorded; or
 - (iv) marked or tagged; or
 - (v) operated, printed, tested or sampled;
 - (h) whether or not the execution of the warrant assisted in the prevention or investigation of an eligible offence;
 - (i) details of compliance with any conditions to which the warrant was subject;
 - (j) details of any warrant premises occupier's notice given in relation to the warrant;
 - (k) details of any adjoining premises occupier's notice given in relation to the warrant;
 - (l) details of any directions given under subsection 3ZZDA(4) or 3ZZDB(4) in relation to the warrant.
- (5) To avoid doubt, if, at the time a report was given, the details in any of paragraphs (4)(j), (k) and (l) were not included because notice or directions had not been given at that time, but are given later, the person who gave the original report under subsection (1) must give a further report under that subsection including those details.
- (6) If the warrant was not executed, the report must state the reason why it was not executed.
- (7) If the warrant premises were entered after the warrant was executed for the purpose of returning a thing to, or retrieving a thing left at, the premises, a written report in relation to that entry must be provided to the chief officer of the authorised agency. The report must include the following information:
- (a) the address, location or other description of the warrant premises;
 - (b) the date on which the warrant premises were entered for that purpose;
 - (c) the name of each person who so entered the warrant premises;
 - (d) details of the thing returned or retrieved;
 - (e) if the thing was not returned or retrieved—the reason why the thing was not returned or removed.

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- (8) A report under subsection (7) must be given as soon as practicable after the warrant premises were entered as mentioned in that subsection.
- (9) A report under this section is not a legislative instrument.

3ZZFB Annual reports to Minister

- (1) The chief officer of an eligible agency must give a written report to the Minister that includes the following information in respect of each financial year:
 - (a) the number of applications for delayed notification search warrants made in person by eligible officers of the agency;
 - (b) the number of applications for delayed notification search warrants made under section 3ZZBF by eligible officers of the agency;
 - (c) the number of delayed notification search warrants issued as a result of applications referred to in paragraphs (a) and (b) and the eligible offences to which they related;
 - (d) the number of delayed notification search warrants that were executed by an eligible officer of the agency;
 - (e) the number of delayed notification search warrants that were executed by an eligible officer of the agency under which:
 - (i) one or more things were seized from the warrant premises; or
 - (ii) one or more things were placed in substitution at the warrant premises for a seized thing; or
 - (iii) one or more things were returned to, or retrieved from, the warrant premises; or
 - (iv) one or more things were copied, photographed, recorded, marked, tagged, operated, printed, tested or sampled at the warrant premises;
 - (f) any other information relating to delayed notification search warrants and the administration of this Part that the Minister considers appropriate.

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- (2) The report for a financial year must be given to the Minister as soon as practicable, and in any event not more than 3 months, after the end of the financial year.
- (3) The Minister must cause a copy of the report to be laid before each House of the Parliament within 15 sitting days of that House after the Minister receives it.

3ZZFC Regular reports to Ombudsman

As soon as practicable after each 6-month period starting on 1 January or 1 July the chief officer of an eligible agency must give a written report to the Ombudsman that includes the following information in respect of the period:

- (a) the number of applications for delayed notification search warrants made in person by eligible officers of the agency;
- (b) the number of applications for delayed notification search warrants made under section 3ZZBF by eligible officers of the agency;
- (c) the number of delayed notification search warrants issued as a result of applications referred to in paragraphs (a) and (b) and the eligible offences to which they related;
- (d) the number of delayed notification search warrants that were executed by an eligible officer of the agency.

3ZZFD Keeping documents connected with delayed notification search warrants

The chief officer of an eligible agency must cause the following to be kept:

- (a) a copy of each authorisation given in writing by the chief officer under section 3ZZBB;
- (b) a copy of the written record made under section 3ZZBB of each authorisation given orally by the chief officer under that section;

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- (c) a copy of each application for a delayed notification search warrant made by an eligible officer of the agency, and a statement of whether the application was granted or refused;
- (d) each delayed notification search warrant issued to an eligible officer of the agency;
- (e) a copy of each form of delayed notification search warrant completed under subsection 3ZZBF(7) by an eligible officer of the agency;
- (f) a copy of the following:
 - (i) each warrant premises occupier's notice given in relation to a delayed notification search warrant issued to an eligible officer of the agency;
 - (ii) each adjoining premises occupier's notice given in relation to such a warrant;
 - (iii) each application made by an eligible officer of the agency under section 3ZZCC;
 - (iv) any directions given under subsection 3ZZDA(4) or 3ZZDB(4) in relation to such a warrant;
 - (v) each authorisation given by the chief officer of the agency under subsection 3ZZDC(4);
 - (vi) each application made by an eligible officer of the agency as mentioned in subsection 3ZZDC(5);
 - (vii) each extension of time granted under subsection 3ZZDC(5) in response to such an application;
- (g) each report given to the chief officer of the agency under section 3ZZFA.

3ZZFE Register of delayed notification search warrants

- (1) The chief officer of an eligible agency must cause a register of delayed notification search warrants to be kept.
- (2) The register is to specify, for each delayed notification search warrant sought by an eligible officer of the eligible agency:
 - (a) the date the warrant was issued or refused; and

- (b) the name of the eligible issuing officer who issued or refused to issue the warrant; and
 - (c) if the warrant was issued:
 - (i) the name of the applicant for the warrant and the executing officer; and
 - (ii) the eligible offence or offences to which the warrant relates; and
 - (iii) if the warrant was executed—the day of execution of the warrant; and
 - (iv) the day and time of issue of the warrant, and the time of expiry of the warrant; and
 - (v) the time by which notice of entry of premises under the warrant is to be given; and
 - (vi) whether a warrant premises occupier's notice has been given in relation to the warrant and, if such a notice has been given, the date on which it was given; and
 - (vii) whether an adjoining premises occupier's notice has been given in relation to the warrant and, if such a notice has been given, the date on which it was given; and
 - (viii) details of any extension of time granted under subsection 3ZZDC(5) in relation to the warrant; and
 - (ix) details of any directions given under subsection 3ZZDA(4) or 3ZZDB(4) in relation to the warrant.
- (3) The register is not a legislative instrument.

Division 7—Inspections by Ombudsman

3ZZGA Appointment of inspecting officers

- (1) The Ombudsman may appoint members of the Ombudsman's staff to be inspecting officers for the purposes of this Division.
- (2) An appointment under subsection (1) must be in writing.

3ZZGB Inspection of records by the Ombudsman

- (1) The Ombudsman must, from time to time and at least once in each 6-month period starting on 1 January or 1 July, inspect the records of each eligible agency to determine the extent of compliance with this Part by the agency, and eligible officers of the agency, in relation to delayed notification search warrants.
- (2) For the purpose of an inspection under this section, the Ombudsman:
 - (a) may, after notifying the chief officer of the eligible agency, enter at any reasonable time premises occupied by the agency; and
 - (b) is entitled to have full and free access at all reasonable times to all records of the agency that are relevant to the inspection; and
 - (c) may require a staff member of the agency to give the Ombudsman any information that the Ombudsman considers necessary, being information that is in the member's possession, or to which the member has access, and that is relevant to the inspection.
- (3) The chief officer must ensure that staff members of the agency give the Ombudsman any assistance the Ombudsman reasonably requires to enable the Ombudsman to perform functions under this section.
- (4) Nothing in this section requires the Ombudsman to inspect records that are relevant to the obtaining or execution of a delayed

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notification search warrant if a warrant premises occupier's notice has not yet been given in relation to the warrant, unless directions have been made under subsection 3ZZDA(4) or 3ZZDB(4) not requiring such notice to be given.

3ZZGC Power to obtain relevant information

- (1) If the Ombudsman has reasonable grounds to believe that a staff member of an eligible agency is able to give information relevant to an inspection under this Division of the agency's records, subsections (2) and (3) have effect.
- (2) The Ombudsman may, by writing given to the staff member, require the staff member to give the information to the Ombudsman:
 - (a) by writing signed by the staff member; and
 - (b) at a specified place and within a specified period.
- (3) The Ombudsman may, by writing given to the staff member, require the staff member to attend:
 - (a) before a specified inspecting officer; and
 - (b) at a specified place; and
 - (c) within a specified period or at a specified time on a specified day;to answer questions relevant to the inspection.
- (4) If the Ombudsman:
 - (a) has reasonable grounds to believe that a staff member of an eligible agency is able to give information relevant to an inspection under this Division of the agency's records; and
 - (b) does not know the staff member's identity;the Ombudsman may, by writing given to the chief officer of the agency, require the chief officer, or a person nominated by the chief officer, to attend:
 - (c) before a specified inspecting officer; and
 - (d) at a specified place; and

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- (e) within a specified period or at a specified time on a specified day;
to answer questions relevant to the inspection.
- (5) The place, and the period or the time and day, specified in a requirement under this section, must be reasonable having regard to the circumstances in which the requirement is made.

3ZZGD Offence

A person commits an offence if:

- (a) the person is required under section 3ZZGC to attend before another person, to give information or to answer questions;
and
- (b) the person refuses or fails to do so.

Penalty: Imprisonment for 6 months.

3ZZGE Ombudsman to be given information etc. despite other laws

- (1) Despite any other law, a person is not excused from giving information, answering a question, or giving access to a document, as and when required under this Division, on the ground that giving the information, answering the question, or giving access to the document, as the case may be:
 - (a) would contravene a law; or
 - (b) would be contrary to the public interest; or
 - (c) might tend to incriminate the person or make the person liable to a penalty; or
 - (d) would disclose one of the following:
 - (i) a legal advice given to a Minister or a Department, or a prescribed authority (within the meaning of the *Ombudsman Act 1976*);
 - (ii) a communication between an officer of a Department or of a prescribed authority (within the meaning of the *Ombudsman Act 1976*) and another person or body,

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being a communication protected against disclosure by legal professional privilege.

- (2) However, if the person is a natural person:
- (a) the information, the answer, or the fact that the person has given access to the document, as the case may be; and
 - (b) any information or thing (including a document) obtained as a direct or indirect consequence of giving the information, answering the question or giving access to the document;
- are not admissible in evidence against the person except in a proceeding by way of a prosecution for an offence against section 3ZZHA or against Part 7.4 or 7.7 of the *Criminal Code*.
- (3) Nothing in section 3ZZHA or any other law prevents a staff member of an eligible agency from:
- (a) giving information to the Ombudsman or an inspecting officer (whether orally or in writing and whether or not in answer to a question); or
 - (b) giving access to a record of the agency to the Ombudsman or an inspecting officer;
- for the purposes of an inspection under this Division of the agency's records.
- (4) Nothing in section 3ZZHA or any other law prevents a staff member of an eligible agency from making a record of information, or causing a record of information to be made, for the purposes of giving the information to a person as permitted by subsection (3).
- (5) The fact that a person is not excused under subsection (1) from giving information, answering a question or producing a document does not otherwise affect a claim of legal professional privilege that anyone may make in relation to that information, answer or document.

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3ZZGF Exchange of information between Ombudsman and State or Territory inspecting authorities

- (1) The Ombudsman may give information that:
 - (a) relates to a State or Territory agency; and
 - (b) was obtained by the Ombudsman under this Division;to the State or Territory inspecting authority in relation to the agency.
- (2) The Ombudsman may only give information to an authority under subsection (1) if the Ombudsman is satisfied that the giving of the information is necessary to enable the authority to perform its functions in relation to the State or Territory agency.
- (3) The Ombudsman may receive from a State or Territory inspecting authority information relevant to the performance of the Ombudsman's functions under this Division.
- (4) In this section:

State or Territory agency means the police force or police service of a State or Territory.

State or Territory inspecting authority, in relation to a State or Territory agency, means the authority that, under the law of the State or Territory concerned, has the function of making inspections of a similar kind to those provided for in section 3ZZGB.

3ZZGG Ombudsman not to be sued

- (1) The Ombudsman, an inspecting officer, or a person acting under an inspecting officer's direction or authority, is not liable to an action, suit or proceeding for or in relation to an act done, or omitted to be done, in good faith in the performance or exercise, or the purported performance or exercise, of a function or power conferred by this Division.

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- (2) A reference in this section to the Ombudsman includes a reference to a Deputy Ombudsman or a delegate of the Ombudsman.

3ZZGH Report on inspection

- (1) As soon as practicable after each 6-month period starting on 1 January or 1 July the Ombudsman must give a written report to the Minister on the results of each inspection under section 3ZZGB in the period.
- (2) If, having regard to information obtained in the course of the inspection or a previous inspection, the Ombudsman considers that the requirements of section 3ZZFB or 3ZZFC have not been properly complied with in relation to an eligible agency, the Ombudsman may include a comment to that effect in the report.
- (3) The Minister must cause a copy of the report to be laid before each House of the Parliament within 15 sitting days of that House after the Minister receives it.

Division 8—Unauthorised disclosure of information

3ZZHA Unauthorised disclosure of information

- (1) A person commits an offence if:
- (a) the person discloses information; and
 - (b) the information relates to:
 - (i) an application for a delayed notification search warrant;
or
 - (ii) the execution of a delayed notification search warrant;
or
 - (iii) a report under section 3ZZFA in relation to a delayed notification search warrant; or
 - (iv) a warrant premises occupier's notice or an adjoining premises occupier's notice prepared in relation to a delayed notification search warrant.

Penalty: Imprisonment for 2 years.

- (2) Each of the following is an exception to the offence created by subsection (1):
- (a) the disclosure is in connection with the administration or execution of this Part;
 - (aa) the disclosure is for the purposes of obtaining or providing legal advice related to this Part;
 - (b) the disclosure is for the purposes of any legal proceeding arising out of or otherwise related to this Part or of any report of any such proceedings;
 - (c) the disclosure is in accordance with any requirement imposed by law;
 - (d) the disclosure is for the purposes of:
 - (i) the performance of duties or functions or the exercise of powers under or in relation to this Part; or
 - (ii) the performance of duties or functions or the exercise of powers by a law enforcement officer, an officer of the

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Australian Security Intelligence Organisation, a staff member of the Australian Secret Intelligence Service or a person seconded to either of those bodies;

- (da) the disclosure is made by anyone to the Ombudsman, a Deputy Commonwealth Ombudsman or a member of the Ombudsman's staff (whether in connection with the exercise of powers or performance of functions under Division 7, in connection with a complaint made to the Ombudsman or in any other circumstances);
- (db) the disclosure is made for the purpose of an IGIS official exercising a power, or performing a function or duty, as an IGIS official;
- (e) the disclosure is made after a warrant premises occupier's notice or an adjoining premises occupier's notice has been given in relation to the warrant;
- (f) the disclosure is made after a direction has been given under subsection 3ZZDA(4) or 3ZZDB(4) in relation to the warrant.

Note: A defendant, except for an IGIS official, bears an evidential burden in relation to a matter in this subsection (see subsection 13.3(3) of the *Criminal Code*). For IGIS officials, see section 34C of the *Inspector-General of Intelligence and Security Act 1986*.

Division 9—Other matters

3ZZIA Delegation

Delegation by chief officer

- (1) The chief officer of an authorised agency or eligible agency may, in writing, delegate all or any of the chief officer's powers, functions or duties under this Part to:
 - (a) a Deputy Commissioner of the Australian Federal Police; or
 - (b) a senior executive AFP employee who is a member of the Australian Federal Police and who is authorised in writing by the Commissioner for the purposes of this paragraph.
- (2) The chief officer of an authorised agency or eligible agency may, in writing, delegate all or any of the chief officer's powers, functions or duties under Division 5 to the chief executive officer (however described) of a State or Territory law enforcement agency.
- (3) The chief officer of an authorised agency or eligible agency may, in writing, delegate all or any of the chief officer's powers, functions or duties under Division 5 to a Commonwealth officer if the chief officer is satisfied on reasonable grounds that the Commonwealth officer is able to properly exercise those powers, functions or duties.

Delegation by Ombudsman

- (4) The Ombudsman may, in writing, delegate all or any of the Ombudsman's powers under this Part, other than a power to report to the Minister, to an APS employee responsible to the Ombudsman.

Delegate must produce delegation on request

- (5) A delegate must, upon request by a person affected by the exercise of any power delegated to the delegate, produce the instrument of

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delegation, or a copy of the instrument, for inspection by the person.

3ZZIB Law relating to legal professional privilege not affected

Except as expressly provided, this Part does not affect the law relating to legal professional privilege.

Note: Section 3ZZGE expressly overrides legal professional privilege.

Part IAAB—Monitoring of compliance with Part 5.3 supervisory orders etc.

Division 1—Introduction

3ZZJA Simplified outline of this Part

A Part 5.3 supervisory order is any one of the following orders made under Part 5.3 of the Criminal Code:

- (a) an interim control order;
- (b) a confirmed control order;
- (c) an interim supervision order;
- (d) an extended supervision order.

If a Part 5.3 supervisory order is in force in relation to a person, and the person has a prescribed connection with premises, a constable may enter and search the premises if:

- (a) the person is the occupier of the premises and consents to the entry; or
- (b) the entry is made under a monitoring warrant.

If a Part 5.3 supervisory order is in force in relation to a person, a constable may conduct an ordinary search or a frisk search of the person if:

- (a) the person consents to the search; or
- (b) the search is conducted under a monitoring warrant.

A search must be for any of the following purposes (most of which are called Part 5.3 objects):

- (a) the protection of the public from a terrorist act;
- (b) the prevention of the provision of support for, or the facilitation of, a terrorist act;

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| <ul style="list-style-type: none">(c) the prevention of the provision of support for, or the facilitation of, the engagement in a hostile activity in a foreign country;(d) the protection of the community from the unacceptable risk of a terrorist offender committing a serious Part 5.3 or 5.3A offence;(e) determining whether the Part 5.3 supervisory order has been, or is being, complied with. |
|---|

3ZZJB Definitions

In this Part:

confirmed control order has the same meaning as in Part 5.3 of the *Criminal Code*.

control order has the same meaning as in Part 5.3 of the *Criminal Code*.

damage, in relation to data, includes damage by erasure of data or addition of other data.

engage in a hostile activity has the same meaning as in Part 5.3 of the *Criminal Code*.

evidential material has the same meaning as in Part IAA.

extended supervision order has the meaning given by section 105A.2 of the *Criminal Code*.

foreign country, when used in the expression ***hostile activity in a foreign country***, has the same meaning as in the *Criminal Code*.

frisk search has the same meaning as in Part IAA.

inspecting officer means a person appointed under subsection 3ZZUA(1).

interim control order has the same meaning as in Part 5.3 of the *Criminal Code*.

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interim supervision order has the meaning given by section 105A.2 of the *Criminal Code*.

issuing officer means a magistrate.

monitoring powers:

- (a) in relation to premises—has the meaning given by sections 3ZZKB, 3ZZKC and 3ZZKD; or
- (b) in relation to a person—has the meaning given by section 3ZZLB.

monitoring warrant means a warrant under section 3ZZOA or 3ZZOB.

ordinary search has the same meaning as in Part IAA.

Part 5.3 object means:

- (a) in relation to a control order—any of the following:
 - (i) the protection of the public from a terrorist act;
 - (ii) the prevention of the provision of support for, or the facilitation of, a terrorist act;
 - (iii) the prevention of the provision of support for, or the facilitation of, the engagement in a hostile activity in a foreign country; or
- (b) in relation to an extended supervision order or interim supervision order—the protection of the community from the unacceptable risk of a terrorist offender committing a serious Part 5.3 or 5.3A offence.

Part 5.3 supervisory order means:

- (a) a control order; or
- (b) an extended supervision order or interim supervision order.

premises includes the following:

- (a) a structure, building or conveyance;
- (b) a place (whether or not enclosed or built on);
- (c) a part of a thing referred to in paragraph (a) or (b).

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prescribed connection with premises has the meaning given by section 3ZZJC.

recently used conveyance, in relation to a search of a person, means a conveyance that the person had operated or occupied at any time within 24 hours before the search commenced.

relevant data has the meaning given by subsection 3ZZKC(3).

seizable item has the same meaning as in Part IAA.

serious Part 5.3 or 5.3A offence has the meaning given by section 105A.2 of the *Criminal Code*.

staff member of the Australian Federal Police means a person referred to in paragraph (a) of the definition of ***law enforcement officer*** in subsection 3(1).

State or Territory agency: see section 3ZZUF.

State or Territory inspecting authority: see section 3ZZUF.

strip search has the same meaning as in Part IAA.

terrorist offender has the meaning given by section 105A.2 of the *Criminal Code*.

3ZZJC Prescribed connection with premises

For the purposes of this Part, a person has a ***prescribed connection*** with premises if:

- (a) the person:
 - (i) is the legal or beneficial owner of the premises (whether alone or together with one or more other persons); or
 - (ii) has any other legal or equitable estate or interest in the premises; or
- (b) the person occupies, or resides on, the premises; or
- (c) the person has possession or control of the premises (whether alone or together with one or more other persons); or

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- (d) the person performs any of the duties of his or her employment on the premises; or
- (e) the person carries on a business on the premises (whether alone or together with one or more other persons); or
- (f) the person performs voluntary work on the premises; or
- (g) both:
 - (i) the premises are used by a school, college, university or other educational institution; and
 - (ii) the person attends the premises in his or her capacity as a student at the school, college, university or other educational institution.

3ZZJD Privileges not abrogated

Self-incrimination

- (1) This Part (other than section 3ZZUE) does not affect the right of a person to refuse to answer a question, give information, or produce a document, on the ground that the answer to the question, the information, or the production of the document, might tend to incriminate him or her or make him or her liable to a penalty.

Legal professional privilege

- (2) This Part (other than section 3ZZUE) does not affect the right of a person to refuse to answer a question, give information, or produce a document, on the ground that:
 - (a) the answer to the question or the information would be privileged from being given on the ground of legal professional privilege; or
 - (b) the document would be privileged from being produced on the ground of legal professional privilege.

Other legislation not affected

- (3) The fact that this section is included in this Part does not imply that the privilege against self-incrimination or legal professional privilege is abrogated in any other law of the Commonwealth.

3ZZJE Application of Part

- (1) This Part is not intended to limit or exclude the operation of another law of the Commonwealth (including other provisions of this Act) relating to:
 - (a) the search of premises; or
 - (b) the searching of persons or conveyances; or
 - (c) the seizure of things; or
 - (d) the requesting of information or documents from persons.
- (2) To avoid any doubt, it is declared that even though another law of the Commonwealth (including other provisions of this Act) provides power to do one or more of the things referred to in subsection (1), a similar power conferred by this Part may be used despite the existence of the power under the other law.

Division 2—Powers of constables in relation to premises

Subdivision A—Monitoring powers

3ZZKA Entering premises by consent or under a warrant

- (1) If:
- (a) a Part 5.3 supervisory order is in force in relation to a person; and
 - (b) the person has a prescribed connection with particular premises;
- a constable may enter the premises, and exercise the monitoring powers, for either of the following purposes:
- (c) achieving a Part 5.3 object;
 - (d) determining whether the Part 5.3 supervisory order has been, or is being, complied with.

Note: The *monitoring powers* are set out in sections 3ZZKB, 3ZZKC and 3ZZKD.

- (2) However, a constable is not authorised to enter the premises unless:
- (a) the person:
 - (i) is the occupier of the premises; and
 - (ii) has consented to the entry; or
 - (b) the entry is made under a monitoring warrant.

Note: If entry to the premises is with the occupier's consent, the constable must leave the premises if the consent ceases to have effect (see section 3ZZNA).

3ZZKB General monitoring powers

The following are the *monitoring powers* that a constable may exercise in relation to premises under section 3ZZKA:

- (a) the power to search the premises and any thing on the premises;

- (b) the power to search for and record fingerprints found at the premises;
- (c) the power to take samples of things found at the premises;
- (d) the power to examine or observe any activity conducted on the premises;
- (e) the power to inspect, examine, take measurements of or conduct tests on any thing on the premises;
- (f) the power to make any still or moving image or any recording of the premises or any thing on the premises;
- (g) the power to inspect any document on the premises;
- (h) the power to take extracts from, or make copies of, any such document;
- (i) the power to take onto the premises such equipment and materials as the constable requires for the purpose of exercising powers in relation to the premises;
- (j) the powers set out in subsections 3ZZKC(1) and (4) and 3ZZKD(2).

3ZZKC Operating electronic equipment

- (1) The ***monitoring powers*** include the power to:
 - (a) operate electronic equipment on the premises; and
 - (b) use a disk, tape or other storage device that:
 - (i) is on the premises; and
 - (ii) can be used with the equipment or is associated with it.
- (2) The ***monitoring powers*** include the powers mentioned in subsection (4) if relevant data is found in the exercise of the power under subsection (1).
- (3) ***Relevant data*** means information relevant to:
 - (a) a Part 5.3 object; or
 - (b) determining whether the relevant Part 5.3 supervisory order has been, or is being, complied with.
- (4) The powers are as follows:

Section 3ZZKD

- (a) the power to operate electronic equipment on the premises to put the relevant data in documentary form and remove the documents so produced from the premises;
 - (b) the power to operate electronic equipment on the premises to transfer the relevant data to a disk, tape or other storage device that:
 - (i) is brought to the premises for the exercise of the power; or
 - (ii) is on the premises and the use of which for that purpose has been agreed in writing by the occupier of the premises;and remove the disk, tape or other storage device from the premises.
- (5) A constable may operate electronic equipment as mentioned in subsection (1) or (4) only if the constable believes on reasonable grounds that the operation of the equipment can be carried out without damage to the equipment.

Note: For compensation for damage to electronic equipment, see section 3ZZNF.

3ZZKD Securing electronic equipment to obtain expert assistance

Scope

- (1) This section applies if a constable enters premises under a monitoring warrant.

Securing equipment

- (2) The **monitoring powers** include the power to secure any electronic equipment that is on the premises if the constable suspects on reasonable grounds that:
- (a) there is relevant data on the premises; and
 - (b) the relevant data may be accessible by operating the equipment; and
 - (c) expert assistance is required to operate the equipment; and

- (d) the relevant data may be destroyed, altered or otherwise interfered with, if the constable does not take action under this subsection.

The equipment may be secured by locking it up, placing a guard or any other means.

- (3) The constable must give notice to the occupier of the premises, or another person who apparently represents the occupier, of:
 - (a) the constable's intention to secure the equipment; and
 - (b) the fact that the equipment may be secured for up to 24 hours.

Period equipment may be secured

- (4) The equipment may be secured until the earlier of the following happens:
 - (a) the 24-hour period ends;
 - (b) the equipment has been operated by the expert.

Note: For compensation for damage to electronic equipment, see section 3ZZNF.

Extensions

- (5) The constable may apply to an issuing officer for an extension of the 24-hour period if the constable believes on reasonable grounds that the equipment needs to be secured for longer than that period.
- (6) Before making the application, the constable must give notice to the occupier of the premises, or another person who apparently represents the occupier, of his or her intention to apply for an extension. The occupier or other person is entitled to be heard in relation to that application.
- (7) The 24-hour period may be extended more than once.

Note: For the process by which an issuing officer may extend the period, see section 3ZZQA.

Section 3ZZKE

Subdivision B—Powers to ask questions and seek production of documents

3ZZKE Asking questions and seeking production of documents

Scope

- (1) This section applies if a constable enters premises under section 3ZZKA.

Entry with consent

- (2) If the entry is authorised because the occupier of the premises consented to the entry, the constable may ask the occupier to answer any questions, and produce any document, that is likely to assist in:
- (a) achieving a Part 5.3 object; or
 - (b) determining whether the relevant Part 5.3 supervisory order has been, or is being, complied with.

Note 1: A person is not required to answer a question, or produce a document, in response to a request under this subsection.

Note 2: See also sections 3ZZRC and 3ZZRD.

Entry under a monitoring warrant

- (3) If:
- (a) the entry is authorised by a monitoring warrant; and
 - (b) the warrant authorises the constable to exercise powers under this subsection;
- the constable may (subject to subsections (4) to (7)) require any person on the premises to answer any questions, and produce any document, that is likely to assist in:
- (c) achieving a Part 5.3 object; or
 - (d) determining whether the relevant Part 5.3 supervisory order has been, or is being, complied with.

Note: See also sections 3ZZRC and 3ZZRD.

Section 3ZZKE

Legal professional privilege and privilege against self-incrimination

- (4) Before a constable requires a person to answer a question or produce a document under subsection (3), the constable must explain the effect of section 3ZZJD to the person.
- (5) An answer to a question or a document produced under subsection (3) by a person is not admissible in evidence against him or her in criminal proceedings if a constable fails to explain the effect of section 3ZZJD to the person in accordance with subsection (4). The failure does not otherwise affect the use of the answer or document.

Note: For the uses that may be made of the answer or document, see sections 3ZZRC and 3ZZRD.

Exceptions to subsection (3)

- (6) A person is not subject to a requirement under subsection (3) if:
 - (a) the person does not possess the information or document required; and
 - (b) the person has taken all reasonable steps available to the person to obtain the information or document required and has been unable to obtain it.
- (7) A person is not subject to a requirement under subsection (3) to produce a document if the document is not at the premises.

Offence

- (8) A person commits an offence if:
 - (a) the person is subject to a requirement under subsection (3); and
 - (b) the person engages in conduct; and
 - (c) the person's conduct breaches the requirement.

Penalty for contravention of this subsection: 30 penalty units.

Section 3ZZKF

Subdivision C—Other powers

3ZZKF Other powers

Scope

- (1) This section applies if:
- (a) a constable enters premises under section 3ZZKA; and
 - (b) the entry is authorised by a monitoring warrant.

Powers

- (2) The constable has the following powers in relation to the premises:
- (a) the power to seize things found during the exercise of monitoring powers on the premises that the constable suspects on reasonable grounds to be:
 - (i) evidential material; or
 - (ii) evidential material (within the meaning of the *Proceeds of Crime Act 2002*); or
 - (iii) tainted property (within the meaning of that Act); or
 - (iv) seizable items;
 - (b) the power to conduct an ordinary search or a frisk search of a person at or near the premises if the constable suspects on reasonable grounds that the person has any evidential material or seizable items in his or her possession;
 - (c) the power to seize other things found while conducting an ordinary search or a frisk search of a person at or near the premises that the constable suspects on reasonable grounds to be:
 - (i) evidential material; or
 - (ii) evidential material (within the meaning of the *Proceeds of Crime Act 2003*); or
 - (iii) tainted property (within the meaning of that Act); or
 - (iv) seizable items.

3ZZKG Availability of assistance and use of force in executing a warrant

Scope

- (1) This section applies if:
- (a) a constable enters premises under section 3ZZKA; and
 - (b) the entry is authorised by a monitoring warrant.

Availability of assistance and use of force

- (2) In:
- (a) executing the warrant; or
 - (b) exercising the powers set out in section 3ZZKF in relation to the premises;
- the constable may use such force against persons and things as is necessary and reasonable in the circumstances.
- (3) In executing the warrant, the constable may obtain such assistance as is necessary and reasonable in the circumstances.
- (4) If a person (other than a constable) has been authorised by the constable to assist in executing the warrant, the person may:
- (a) enter the premises; and
 - (b) exercise the monitoring powers in relation to the premises; and
 - (c) in:
 - (i) entering the premises; or
 - (ii) exercising the monitoring powers;use such force against things as is necessary and reasonable in the circumstances.
- (5) If a person (other than a constable) has been authorised by the constable to assist in executing the warrant:
- (a) the person may only exercise the monitoring powers set out in subsection 3ZZKD(2) if the constable forms the suspicion mentioned in that subsection; and

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- (b) the person must not exercise a power set out in subsection 3ZZKD(5) or section 3ZZKE or 3ZZKF.
- (6) A power exercised by a person assisting the constable as mentioned in subsection (4) is taken to have been exercised by the constable.

Division 3—Powers of constables in relation to persons subject to Part 5.3 supervisory orders

3ZZLA Searching a person by consent or under a warrant

- (1) If a Part 5.3 supervisory order is in force in relation to a person, a constable may conduct an ordinary search or a frisk search of the person, and exercise the monitoring powers, for either of the following purposes:
- (a) achieving a Part 5.3 object;
 - (b) determining whether the Part 5.3 supervisory order has been, or is being, complied with.

Note: The *monitoring powers* are set out in section 3ZZLB.

- (2) However, a constable is not authorised to conduct an ordinary search or a frisk search of the person unless:
- (a) the person has consented to the search; or
 - (b) the search is conducted under a monitoring warrant.

3ZZLB Monitoring powers

The following are the *monitoring powers* that a constable may exercise in relation to a person under section 3ZZLA:

- (a) the power to search things found in the possession of the person;
- (b) the power to search any recently used conveyance;
- (c) the power to record fingerprints from things found in the course of:
 - (i) a search under section 3ZZLA; or
 - (ii) a search under paragraph (a) or (b) of this section;
- (d) the power to take samples from things found in the course of:
 - (i) a search under section 3ZZLA; or
 - (ii) a search under paragraph (a) or (b) of this section.

Section 3ZZLC

3ZZLC Seizure powers

Scope

- (1) This section applies if:
 - (a) a constable conducts a search of a person, or of a recently used conveyance, under section 3ZZLA; and
 - (b) the search is authorised by a monitoring warrant.

Powers

- (2) The constable has the following powers:
 - (a) the power to seize things found in the course of the search that the constable suspects on reasonable grounds to be:
 - (i) evidential material; or
 - (ii) seizable items;
 - (b) the power to seize other things found on or in the possession of the person, or in the recently used conveyance, in the course of the search that the constable suspects on reasonable grounds to be:
 - (i) evidential material (within the meaning of the *Proceeds of Crime Act 2002*); or
 - (ii) tainted property (within the meaning of that Act).

3ZZLD Availability of assistance and use of force in executing a warrant

Scope

- (1) This section applies if:
 - (a) a constable conducts a search of a person, or of a recently used conveyance, under section 3ZZLA; and
 - (b) the search is authorised by a monitoring warrant.

Availability of assistance and use of force

- (2) In:
-

Section 3ZZLD

- (a) executing the warrant; or
 - (b) exercising the powers set out in section 3ZZLC in relation to the person or conveyance;
- the constable may use such force against persons and things as is necessary and reasonable in the circumstances.
- (3) In executing the warrant, the constable may obtain such assistance as is necessary and reasonable in the circumstances.
 - (4) If a person (other than a constable) has been authorised by the constable to assist in executing the warrant, the person may:
 - (a) exercise the monitoring powers in relation to the person mentioned in paragraph (1)(a); and
 - (b) in exercising the monitoring powers, use such force against things as is necessary and reasonable in the circumstances.
 - (5) If a person (other than a constable) has been authorised by the constable to assist in executing the warrant, the person must not exercise a power set out in section 3ZZLC.
 - (6) A power exercised by a person assisting the constable as mentioned in subsection (4) is taken to have been exercised by the constable.

Division 4—Obligations and incidental powers of constables

3ZZNA Consent of occupier of premises

- (1) Before obtaining the consent of an occupier of premises for the purposes of paragraph 3ZZKA(2)(a), a constable must inform the occupier that the occupier may refuse consent.
- (2) A consent has no effect unless the consent is voluntary.
- (3) A consent may be expressed to be limited to entry during a particular period. If so, the consent has effect for that period unless the consent is withdrawn before the end of that period.
- (4) A consent that is not limited as mentioned in subsection (3) has effect until the consent is withdrawn.
- (5) If a constable entered premises because of the consent of the occupier of the premises, the constable, and any person assisting the constable, must leave the premises if the consent ceases to have effect.
- (6) If:
 - (a) a constable enters premises because of the consent of the occupier of the premises; and
 - (b) the constable has not shown the occupier his or her identity card before entering the premises;the constable must do so on, or as soon as is reasonably practicable after, entering the premises.

3ZZNB Consent to search of a person

- (1) Before obtaining the consent of a person for the purposes of paragraph 3ZZLA(2)(a), a constable must inform the person that the person may refuse consent.
 - (2) A consent has no effect unless the consent is voluntary.
-

- (3) A consent may be expressed to be limited to a particular period. If so, the consent has effect for that period unless the consent is withdrawn before the end of that period.
- (4) A consent that is not limited as mentioned in subsection (3) has effect until the consent is withdrawn.

3ZZNC Announcement before entry under warrant

Before entering premises under a monitoring warrant, a constable must:

- (a) announce that he or she is authorised to enter the premises; and
- (b) show his or her identity card to the occupier of the premises, or to another person who apparently represents the occupier, if the occupier or other person is present at the premises; and
- (c) give any person at the premises an opportunity to allow entry to the premises.

3ZZND Constable to be in possession of warrant

A constable executing a monitoring warrant must be in possession of the warrant or a copy of the warrant.

3ZZNE Details of warrant etc. to be given to occupier

If:

- (a) a monitoring warrant is being executed by a constable in relation to premises; and
 - (b) the occupier of the premises, or another person who apparently represents the occupier, is present at the premises;
- the constable must, as soon as practicable, make a copy of the warrant available to the occupier or other person.

Section 3ZZNF

3ZZNF Compensation for damage to electronic equipment

Scope

- (1) This section applies if:
 - (a) as a result of electronic equipment being operated as mentioned in this Part:
 - (i) damage is caused to the equipment; or
 - (ii) the data recorded on the equipment is damaged; or
 - (iii) programs associated with the use of the equipment, or with the use of the data, are damaged or corrupted; and
 - (b) the damage or corruption occurs because:
 - (i) insufficient care was exercised in selecting the person who was to operate the equipment; or
 - (ii) insufficient care was exercised by the person operating the equipment.

Compensation

- (2) The Commonwealth must pay the owner of the equipment, or the user of the data or programs, such reasonable compensation for the damage or corruption as the Commonwealth and the owner or user agree on.
- (3) However, if the owner or user and the Commonwealth fail to agree, the owner or user may institute proceedings in:
 - (a) the Federal Court of Australia or the Federal Circuit and Family Court of Australia (Division 2); or
 - (b) a court of a State or Territory that has jurisdiction in relation to the matter;for such reasonable amount of compensation as the court determines.
- (4) In determining the amount of compensation payable, regard is to be had to whether the occupier of the premises, or the occupier's employees or agents, if they were available at the time, provided any appropriate warning or guidance on the operation of the equipment.

3ZZNG Occupier entitled to be present during search

- (1) If:
 - (a) a monitoring warrant in relation to premises is being executed; and
 - (b) the occupier of the premises, or another person who apparently represents the occupier, is present at the premises; the person is entitled to observe the search being conducted.
- (2) The right to observe the search being conducted ceases if the person impedes the search.
- (3) This section does not prevent 2 or more areas of the premises being searched at the same time.

3ZZNH Person subject to a Part 5.3 supervisory order is entitled to be present during search

- (1) If:
 - (a) a monitoring warrant in relation to premises is being executed; and
 - (b) the warrant was issued on the basis that a Part 5.3 supervisory order is in force in relation to a person; and
 - (c) the person is present at the premises; the person is entitled to observe the search being conducted.
- (2) The right to observe the search being conducted ceases if the person impedes the search.
- (3) This section does not prevent 2 or more areas of the premises being searched at the same time.

Division 5—Monitoring warrants

3ZZOA Monitoring warrant in relation to premises

Application for warrant

- (1) A constable may apply to an issuing officer for a warrant under this section in relation to premises.

Issue of warrant

- (2) The issuing officer may issue the warrant if the issuing officer is satisfied, by information on oath or affirmation, that:
 - (a) a Part 5.3 supervisory order is in force in relation to a person; and
 - (b) the person has a prescribed connection with the premises; and
 - (c) having regard to:
 - (i) the nature of the person's prescribed connection with the premises; and
 - (ii) one or more of the matters set out in paragraphs (4)(a) to (f), and the matter set out in paragraph (4)(g); and
 - (iii) such other matters (if any) as the issuing officer considers relevant;it is reasonably necessary that one or more constables should have access to the premises for the purposes of:
 - (iv) achieving a Part 5.3 object; or
 - (v) determining whether the Part 5.3 supervisory order has been, or is being, complied with.
- (3) The issuing officer must not issue the warrant unless the applicant or some other person has given to the issuing officer, either orally or by affidavit, such further information (if any) as the issuing officer requires concerning the grounds on which the issue of the warrant is being sought.

- (4) The matters referred to in subparagraph (2)(c)(ii) are the following:
- (a) in relation to a control order:
 - (i) the possibility that the person has engaged, is engaging, or will engage, in a terrorist act;
 - (ii) the possibility that the person has provided, is providing, or will provide, support for a terrorist act;
 - (iii) the possibility that the person has facilitated, is facilitating, or will facilitate, a terrorist act;
 - (iv) the possibility that the person has provided, is providing, or will provide, support for the engagement in a hostile activity in a foreign country;
 - (v) the possibility that the person has facilitated, is facilitating, or will facilitate, the engagement in a hostile activity in a foreign country;
 - (b) in relation to an extended supervision order or interim supervision order—the possibility that the person has committed, is committing, or will commit, a serious Part 5.3 or 5.3A offence;
 - (f) in relation to any Part 5.3 supervisory order—the possibility that the person has contravened, is contravening, or will contravene, the order;
 - (g) whether allowing one or more constables to have access to the premises, and exercise the monitoring powers in relation to the premises and the powers set out in section 3ZZKF in relation to the premises, would be likely to have the least interference with any person's liberty and privacy that is necessary in the circumstances.

Content of warrant

- (5) The warrant must:
- (a) describe the premises to which the warrant relates; and
 - (b) state that the warrant is issued under this section; and
 - (c) state the purpose or purposes for which the warrant is issued; and

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- (d) authorise one or more constables (whether or not named in the warrant) from time to time while the warrant remains in force:
 - (i) to enter the premises; and
 - (ii) to exercise the monitoring powers in relation to the premises; and
 - (iii) to exercise the powers set out in section 3ZZKF in relation to the premises; and
- (e) state whether entry is authorised to be made at any time of the day or during specified hours of the day; and
- (f) specify the time at which the warrant expires (see subsection (7)); and
- (g) state whether the warrant authorises a constable to exercise powers under subsection 3ZZKE(3) in relation to the entry; and
- (h) state that a person who is not a constable may be authorised under section 3ZZKG to assist in executing the warrant; and
- (i) state the name of the person to whom the relevant Part 5.3 supervisory order relates; and
- (j) describe the nature of the person's prescribed connection with the premises; and
- (k) state that the Part 5.3 supervisory order is in force; and
- (l) state whether the Part 5.3 supervisory order is:
 - (i) an interim control order; or
 - (ii) a confirmed control order; or
 - (iii) an interim supervision order; or
 - (iv) an extended supervision order; and
- (m) specify the date the Part 5.3 supervisory order was made; and
- (n) specify the court that made the Part 5.3 supervisory order; and
- (o) if the Part 5.3 supervisory order is an interim control order—specify the date the order was served on the person; and
- (p) if the Part 5.3 supervisory order is an extended supervision order or an interim supervision order—specify when the order comes into force; and

- (q) if the Part 5.3 supervisory order is a confirmed control order, an extended supervision order or an interim supervision order—specify the end of the period during which the order is in force; and
 - (r) if the warrant is issued for the purposes of determining whether the Part 5.3 supervisory order has been, or is being, complied with—include, in an attachment to the warrant, a copy of the order.
- (6) To avoid doubt, paragraph (5)(c) does not require the purpose or purposes for which the warrant is issued to be specified in the warrant if disclosure of that purpose, or those purposes, is likely to prejudice national security (within the meaning of the *National Security Information (Criminal and Civil Proceedings) Act 2004*).
- (7) The time stated in the warrant under paragraph (5)(f) as the time at which the warrant expires must be a time that is not later than the end of the seventh day after the day on which the warrant is issued.
- Example: If a warrant is issued at 3 pm on a Monday, the expiry time specified must not be later than midnight on Monday in the following week.
- (8) Paragraph (5)(f) and subsection (7) do not prevent the issue of successive monitoring warrants in relation to the same premises.

3ZZOB Monitoring warrant in relation to a person

Application for warrant

- (1) A constable may apply to an issuing officer for a warrant under this section in relation to a person.

Issue of warrant

- (2) The issuing officer may issue the warrant if the issuing officer is satisfied, by information on oath or affirmation, that:
- (a) a Part 5.3 supervisory order is in force in relation to the person; and
 - (b) having regard to:

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- (i) one or more of the matters set out in paragraphs (4)(a) to (c), and the matter set out in paragraph (4)(g); and
 - (ii) such other matters (if any) as the issuing officer considers relevant;

it is reasonably necessary that a constable should conduct an ordinary search or a frisk search of the person for the purposes of:

 - (iii) achieving a Part 5.3 object; or
 - (iv) determining whether the Part 5.3 supervisory order has been, or is being, complied with.
- (3) The issuing officer must not issue the warrant unless the applicant or some other person has given to the issuing officer, either orally or by affidavit, such further information (if any) as the issuing officer requires concerning the grounds on which the issue of the warrant is being sought.
- (4) The matters referred to in subparagraph (2)(b)(i) are the following:
 - (a) in relation to a control order:
 - (i) the possibility that the person has engaged, is engaging, or will engage, in a terrorist act;
 - (ii) the possibility that the person has provided, is providing, or will provide, support for a terrorist act;
 - (iii) the possibility that the person has facilitated, is facilitating, or will facilitate, a terrorist act;
 - (iv) the possibility that the person has provided, is providing, or will provide, support for the engagement in a hostile activity in a foreign country;
 - (v) the possibility that the person has facilitated, is facilitating, or will facilitate, the engagement in a hostile activity in a foreign country;
 - (b) in relation to an extended supervision order or interim supervision order—the possibility that the person has committed, is committing, or will commit, a serious Part 5.3 or 5.3A offence;

- (c) in relation to any Part 5.3 supervisory order—the possibility that the person has contravened, is contravening, or will contravene, the order;
- (g) whether allowing one or more constables to conduct an ordinary search or a frisk search of the person, and exercise the monitoring powers in relation to the person and the powers set out in section 3ZZLC in relation to the person or a recently used conveyance, would be likely to have the least interference with any person's liberty and privacy that is necessary in the circumstances.

Content of warrant

- (5) The warrant must:
 - (a) state the name of the person; and
 - (b) state that the warrant is issued under this section; and
 - (c) state the purpose or purposes for which the warrant is issued; and
 - (d) authorise a constable (whether or not named in the warrant) from time to time while the warrant remains in force:
 - (i) to conduct an ordinary search or a frisk search of the person; and
 - (ii) to exercise the monitoring powers in relation to the person; and
 - (iii) to exercise the powers set out in section 3ZZLC in relation to the person or a recently used conveyance; and
 - (e) state whether the search is authorised to be carried out at any time of the day or during specified hours of the day; and
 - (f) specify the time at which the warrant expires (see subsection (7)); and
 - (g) state that a person who is not a constable may be authorised under section 3ZZLD to assist in executing the warrant; and
 - (h) state the name of the person to whom the relevant Part 5.3 supervisory order relates; and
 - (i) state that the Part 5.3 supervisory order is in force; and

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- (j) state whether the Part 5.3 supervisory order is:
 - (i) an interim control order; or
 - (ii) a confirmed control order; or
 - (iii) an interim supervision order; or
 - (iv) an extended supervision order; and
 - (k) specify the date the Part 5.3 supervisory order was made; and
 - (l) specify the court that made the Part 5.3 supervisory order; and
 - (m) if the Part 5.3 supervisory order is an interim control order—specify the date the order was served on the person; and
 - (n) if the Part 5.3 supervisory order is an extended supervision order or an interim supervision order—specify when the order comes into force; and
 - (o) if the Part 5.3 supervisory order is a confirmed control order, an extended supervision order or an interim supervision order—specify the end of the period during which the order is in force; and
 - (p) if the warrant is issued for the purposes of determining whether the Part 5.3 supervisory order has been, or is being, complied with—include, in an attachment to the warrant, a copy of the order.
- (6) To avoid doubt, paragraph (5)(c) does not require the purpose or purposes for which the warrant is issued to be specified in the warrant if disclosure of that purpose, or those purposes, is likely to prejudice national security (within the meaning of the *National Security Information (Criminal and Civil Proceedings) Act 2004*).
- (7) The time stated in the warrant under paragraph (5)(f) as the time at which the warrant expires must be a time that is not later than the end of the seventh day after the day on which the warrant is issued.
- Example: If a warrant is issued at 3 pm on a Monday, the expiry time specified must not be later than midnight on Monday in the following week.
- (8) Paragraph (5)(f) and subsection (7) do not prevent the issue of successive monitoring warrants in relation to the same person.

3ZZOC Restrictions on personal searches

A monitoring warrant cannot authorise a strip search or a search of a person's body cavities.

3ZZOD Monitoring warrant must not be executed if the relevant Part 5.3 supervisory order is revoked etc.

- (1) If:
- (a) a monitoring warrant was issued on the basis that a Part 5.3 supervisory order was in force in relation to a person; and
 - (b) any of the following happens:
 - (i) the Part 5.3 supervisory order is a control order that is revoked;
 - (ii) the Part 5.3 supervisory order is an extended supervision order or interim supervision order in relation to a terrorist offender that is revoked and no further extended supervision order or interim supervision order is made in relation to the terrorist offender;
 - (iii) the Part 5.3 supervisory order is an interim control order that a court declares to be void;
 - (iv) a court varies the Part 5.3 supervisory order by removing one or more conditions imposed on the person by the order;
- a constable must not:
- (c) execute the warrant; or
 - (d) exercise a power under Division 2 or 3, if the exercise of the power is consequential on the warrant.

Evidence

- (2) A thing seized in breach of subsection (1) is not admissible in evidence in criminal proceedings other than proceedings covered by paragraph 3ZQU(1)(j).

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- (3) Information obtained in breach of subsection (1) is not admissible in evidence in criminal proceedings other than proceedings covered by paragraph 3ZQU(1)(j).
- (4) A document obtained in breach of subsection (1) is not admissible in evidence in criminal proceedings other than proceedings covered by paragraph 3ZQU(1)(j).

Division 6—Monitoring warrants by telephone or other electronic means

3ZZPA Monitoring warrants by telephone or other electronic means

- (1) A constable may make an application to an issuing officer for a monitoring warrant by telephone, telex, fax or other electronic means:
 - (a) in an urgent case; or
 - (b) if the delay that would occur if an application were made in person would frustrate the effective execution of the warrant.
- (2) The issuing officer:
 - (a) may require communication by voice to the extent that it is practicable in the circumstances; and
 - (b) may make a recording of the whole or any part of any such communication by voice.
- (3) An application under this section must include all information required to be provided in an ordinary application for a monitoring warrant, but the application may, if necessary, be made before the information is sworn.
- (4) If an application is made to an issuing officer under this section and the issuing officer, after considering the information and having received and considered such further information (if any) as the issuing officer required, is satisfied that:
 - (a) a monitoring warrant in the terms of the application should be issued urgently; or
 - (b) the delay that would occur if an application were made in person would frustrate the effective execution of the warrant;the issuing officer may complete and sign the same form of warrant that would be issued under section 3ZZOA or 3ZZOB, as the case requires.
- (5) If the issuing officer decides to issue the monitoring warrant, the issuing officer is to inform the applicant, by telephone, telex, fax or

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other electronic means, of the terms of the warrant and the day on which, and the time at which, it was signed.

- (6) The applicant must then complete a form of monitoring warrant in terms substantially corresponding to those given by the issuing officer, stating on the form the name of the issuing officer and the day on which, and the time at which, the warrant was signed.
- (7) The applicant must, not later than the day after the day of expiry of the warrant or the day after the day on which the warrant was executed, whichever is the earlier, give or transmit to the issuing officer the form of warrant completed by the applicant and, if the information referred to in subsection (3) was not sworn, that information duly sworn.
- (8) The issuing officer is to attach to the documents provided under subsection (7) the form of warrant completed by the issuing officer.
- (9) If:
 - (a) it is material, in any proceedings, for a court to be satisfied that the exercise of a power under a monitoring warrant issued under this section was duly authorised; and
 - (b) the form of warrant signed by the issuing officer is not produced in evidence;the court is to assume, unless the contrary is proved, that the exercise of the power was not duly authorised.

3ZZPB Offences relating to telephone warrants

A person commits an offence if:

- (a) the person states in a document that purports to be a form of warrant under section 3ZZPA the name of an issuing officer unless that officer issued the warrant; or
- (b) the person states on a form of warrant under that section a matter that, to the person's knowledge, departs in a material particular from the form authorised by the issuing officer; or

- (c) the person purports to execute, or present to a person, a document that purports to be a form of warrant under that section that the person knows:
 - (i) has not been approved by an issuing officer under that section; or
 - (ii) to depart in a material particular from the terms authorised by an issuing officer under that section; or
- (d) the person gives to an issuing officer a form of warrant under that section that is not the form of warrant that the person purported to execute.

Penalty: Imprisonment for 2 years.

Division 7—Extension of periods in which things secured

3ZZQA Extension of periods in which things secured

Application

- (1) This section applies if a constable applies to an issuing officer under subsection 3ZZKD(5) for an extension of the period during which a thing may be secured.

Granting extension

- (2) The issuing officer may, by order, grant an extension of the period if the issuing officer is satisfied, by information on oath or affirmation, that it is necessary to secure the thing to ensure that relevant data is not destroyed, altered or otherwise interfered with.
- (3) The issuing officer must not grant the extension unless the constable or some other person has given to the issuing officer, either orally or by affidavit, such further information (if any) as the issuing officer requires concerning the grounds on which the extension is being sought.

Content of order

- (4) The order extending the period must:
 - (a) describe the thing to which the order relates; and
 - (b) state the period for which the extension is granted; and
 - (c) state that the order is made under this section; and
 - (d) state that the constable is authorised to secure the thing for that period.

Division 8—Things seized, documents produced, and answers given, under this Part

3ZZRA Receipts for things seized under this Part

- (1) If a thing is seized by a constable under this Part, the constable must provide a receipt for the thing.
- (2) If 2 or more things are seized, they may be covered in the one receipt.

3ZZRB Using, sharing and returning things seized under this Part

Division 4C of Part IAA applies to a thing seized under this Part in a corresponding way to the way in which it applies to a thing seized under Division 2 of Part IAA.

3ZZRC Using, sharing and returning documents produced under section 3ZZKE

- (1) Subject to subsection (2), Division 4C of Part IAA applies to a document produced under section 3ZZKE in a corresponding way to the way in which it applies to a document produced under Division 4B of Part IAA.
- (2) Section 3ZQU has effect, in relation to a document produced under section 3ZZKE, as if the following additional purposes were set out in subsection 3ZQU(1):
 - (a) achieving a Part 5.3 object;
 - (b) determining whether the relevant Part 5.3 supervisory order has been, or is being, complied with.

3ZZRD Answers to questions asked under section 3ZZKE

An answer given to a question asked under subsection 3ZZKE(2) or (3) may only be used for one or more of the following purposes:

- (a) achieving a Part 5.3 object;

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Division 8 Things seized, documents produced, and answers given, under this Part

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- (b) determining whether the relevant Part 5.3 supervisory order has been, or is being, complied with;
- (e) preventing, investigating or prosecuting an offence.

Division 9—Powers of issuing officers

3ZZSA Powers of issuing officers

Powers conferred personally

- (1) A power conferred on an issuing officer by this Part is conferred on the issuing officer:
 - (a) in a personal capacity; and
 - (b) not as a court or a member of a court.

Powers need not be accepted

- (2) The issuing officer need not accept the power conferred.

Protection and immunity

- (3) An issuing officer exercising a power conferred by this Part has the same protection and immunity as if the issuing officer were exercising the power:
 - (a) as the court of which the issuing officer is a member; or
 - (b) as a member of the court of which the issuing officer is a member.

Division 10—General

3ZZTA Conduct of ordinary searches and frisk searches

An ordinary search or a frisk search of a person under this Part must, if practicable, be conducted by a person of the same sex as the person being searched.

3ZZTB Protection of persons—control order declared to be void

(1) If:

- (a) a monitoring warrant was issued on the basis that an interim control order was in force; and
- (b) a court subsequently declares the interim control order to be void;

a criminal proceeding does not lie against a person in respect of anything done, or omitted to be done, in good faith by the person:

- (c) in the purported execution of the warrant; or
- (d) in the purported exercise of a power, or the purported performance of a function or duty, in a case where the purported exercise of the power, or the purported performance of the function or duty, is consequential on the warrant.

- (2) Subsection (1) does not apply to a thing done, or omitted to be done, at a particular time if, at that time, the person knew, or ought reasonably to have known, of the declaration.

3ZZTC Dealing with things, information or documents obtained under a monitoring warrant—control order declared to be void

Scope

- (1) This section applies if:

- (a) a monitoring warrant was issued on the basis that an interim control order was in force; and
- (b) a court subsequently declares the interim control order to be void; and
- (c) before the declaration was made, a thing was seized, information was obtained, or a document was produced, as a result of:
 - (i) the purported execution of the warrant; or
 - (ii) the purported exercise of a power, or the purported performance of a function or duty, in a case where the purported exercise of the power, or the purported performance of the function or duty, is consequential on the warrant.

Dealing

- (2) A person may:
 - (a) adduce the thing, information or document as evidence in a proceeding; or
 - (b) use or communicate the information; or
 - (c) use, or communicate the contents of, the document;if:
 - (d) the person reasonably believes that doing so is necessary to assist in preventing, or reducing the risk of:
 - (i) the commission of a terrorist act; or
 - (ii) serious harm to a person; or
 - (iii) serious damage to property; or
 - (e) the person does so for one or more purposes set out in subsection (3).

Purposes

- (3) The purposes are purposes connected with:
 - (a) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, Division 105 of the

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Criminal Code, so far as the function, duty or power relates to a preventative detention order (within the meaning of Part 5.3 of the *Criminal Code*); or

- (b) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, Part 2A of the *Terrorism (Police Powers) Act 2002* (NSW), so far as the function, duty or power relates to a preventative detention order (within the meaning of that Part); or
- (c) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, Part 2A of the *Terrorism (Community Protection) Act 2003* (Vic.), so far as the function, duty or power relates to a preventative detention order (within the meaning of that Part); or
- (d) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, the *Terrorism (Preventative Detention) Act 2005* (Qld), so far as the function, duty or power relates to a preventative detention order (within the meaning of that Act); or
- (e) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, the *Terrorism (Preventative Detention) Act 2006* (WA), so far as the function, duty or power relates to a preventative detention order (within the meaning of that Act); or
- (f) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, the *Terrorism (Preventative Detention) Act 2005* (SA), so far as the function, duty or power relates to a preventative detention order (within the meaning of that Act); or
- (g) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, the *Terrorism (Preventative Detention) Act 2005* (Tas.), so far as the

function, duty or power relates to a preventative detention order (within the meaning of that Act); or

- (h) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, Part 2 of the *Terrorism (Extraordinary Temporary Powers) Act 2006* (ACT), so far as the function, duty or power relates to a preventative detention order (within the meaning of that Part); or
- (i) the performance of a function or duty, or the exercise of a power, by a person, court, tribunal or other body under, or in relation to a matter arising under, Part 2B of the *Terrorism (Emergency Powers) Act 2003* (NT), so far as the function, duty or power relates to a preventative detention order (within the meaning of that Part).

Definition

- (4) In this section:

serious harm has the same meaning as in the *Criminal Code*.

3ZZTD Commissioner to keep documents connected with issue of monitoring warrants

The Commissioner must cause to be kept in the Australian Federal Police's records:

- (a) each monitoring warrant issued to the Australian Federal Police; and
- (b) each instrument revoking a monitoring warrant; and
- (c) each order under section 3ZZQA granting an extension of a period.

3ZZTE Commissioner to notify Ombudsman in relation to monitoring warrants

- (1) Within 6 months after a monitoring warrant is issued in response to an application by the Australian Federal Police, the Commissioner must:

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- (a) notify the Ombudsman that the warrant has been issued; and
 - (b) give to the Ombudsman a copy of the warrant.
- (2) As soon as practicable after a member or special member of the Australian Federal Police has contravened a provision of this Part or of a monitoring warrant, the Commissioner must notify the Ombudsman of the contravention.
- (3) A failure to comply with subsection (1) or (2) does not affect the validity of a monitoring warrant.

Division 11—Inspections by Ombudsman

3ZZUA Appointment of inspecting officers

- (1) The Ombudsman may appoint members of the Ombudsman's staff to be inspecting officers for the purposes of this Division.
- (2) An appointment under subsection (1) must be in writing.

3ZZUB Inspection of records by the Ombudsman

- (1) The Ombudsman may inspect the records of the Australian Federal Police to determine the extent of compliance by the Australian Federal Police and members and special members of the Australian Federal Police with the provisions of:
 - (a) this Part; or
 - (b) monitoring warrants.
- (2) For the purpose of an inspection under this section, the Ombudsman:
 - (a) may, after notifying the Commissioner, enter at any reasonable time premises occupied by the Australian Federal Police; and
 - (b) is entitled to have full and free access at all reasonable times to all records of the Australian Federal Police that are relevant to the inspection; and
 - (c) may require a staff member of the Australian Federal Police to give the Ombudsman any information that the Ombudsman considers necessary, being information that is in the staff member's possession, or to which the staff member has access, and that is relevant to the inspection.
- (3) The Commissioner must ensure that staff members of the Australian Federal Police give the Ombudsman any assistance the Ombudsman reasonably requires to enable the Ombudsman to perform functions under this section.

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3ZZUC Power to obtain relevant information

- (1) If the Ombudsman has reasonable grounds to believe that a staff member of the Australian Federal Police is able to give information relevant to an inspection under this Division, subsections (2) and (3) have effect.
- (2) The Ombudsman may, by writing given to the staff member, require the staff member to give the information to the Ombudsman:
 - (a) by writing signed by the staff member; and
 - (b) at a specified place and within a specified period.
- (3) The Ombudsman may, by writing given to the staff member, require the staff member to attend:
 - (a) before a specified inspecting officer; and
 - (b) at a specified place; and
 - (c) within a specified period or at a specified time on a specified day;to answer questions relevant to the inspection.
- (4) If the Ombudsman:
 - (a) has reasonable grounds to believe that a staff member of the Australian Federal Police is able to give information relevant to an inspection under this Division; and
 - (b) does not know the staff member's identity;the Ombudsman may, by writing given to the Commissioner, require the Commissioner, or a person nominated by the Commissioner, to attend:
 - (c) before a specified inspecting officer; and
 - (d) at a specified place; and
 - (e) within a specified period or at a specified time on a specified day;to answer questions relevant to the inspection.

- (5) The place, and the period or the time and day, specified in a requirement under this section, must be reasonable having regard to the circumstances in which the requirement is made.

3ZZUD Offence

A person commits an offence if:

- (a) the person is required under section 3ZZUC to attend before another person, to give information or to answer questions; and
- (b) the person refuses or fails to do so.

Penalty: Imprisonment for 6 months.

3ZZUE Ombudsman to be given information etc. despite other laws

- (1) Despite any other law, a person is not excused from giving information, answering a question, or giving access to a document, as and when required under this Division, on the ground that giving the information, answering the question, or giving access to the document, as the case may be:
- (a) would contravene a law; or
 - (b) would be contrary to the public interest; or
 - (c) might tend to incriminate the person or make the person liable to a penalty; or
 - (d) would disclose one of the following:
 - (i) a legal advice given to a Minister or a Department, or a prescribed authority (within the meaning of the *Ombudsman Act 1976*);
 - (ii) a communication between an officer of a Department or of a prescribed authority (within the meaning of the *Ombudsman Act 1976*) and another person or body, being a communication protected against disclosure by legal professional privilege.
- (2) However, if the person is a natural person:

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- (a) the information, the answer, or the fact that the person has given access to the document, as the case may be; and
 - (b) any information or thing (including a document) obtained as a direct or indirect consequence of giving the information, answering the question or giving access to the document;are not admissible in evidence against the person except in a proceeding by way of a prosecution for an offence against Part 7.4 or 7.7 of the *Criminal Code*.
- (3) Nothing in any other law prevents a staff member of the Australian Federal Police from:
 - (a) giving information to the Ombudsman or an inspecting officer (whether orally or in writing and whether or not in answer to a question); or
 - (b) giving access to a record of the Australian Federal Police to the Ombudsman or an inspecting officer;for the purposes of an inspection under this Division.
- (4) Nothing in any other law prevents a staff member of the Australian Federal Police from making a record of information, or causing a record of information to be made, for the purposes of giving the information to a person as permitted by subsection (3).
- (5) The fact that a person is not excused under subsection (1) from giving information, answering a question or producing a document does not otherwise affect a claim of legal professional privilege that anyone may make in relation to that information, answer or document.

3ZZUF Exchange of information between Ombudsman and State or Territory inspecting authorities

- (1) The Ombudsman may give information that:
 - (a) relates to a State or Territory agency; and
 - (b) was obtained by the Ombudsman under this Division;to the State or Territory inspecting authority in relation to the agency.

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- (2) The Ombudsman may only give information to an authority under subsection (1) if the Ombudsman is satisfied that the giving of the information is necessary to enable the authority to perform its functions in relation to the State or Territory agency.
- (3) The Ombudsman may receive from a State or Territory inspecting authority information relevant to the performance of the Ombudsman's functions under this Division.
- (4) In this Part:

State or Territory agency means the police force or police service of a State or Territory.

State or Territory inspecting authority, in relation to a State or Territory agency, means the authority that, under the law of the State or Territory concerned, has the function of making inspections of a similar kind to those provided for in section 3ZZUB.

3ZZUG Ombudsman not to be sued

- (1) The Ombudsman, an inspecting officer, or a person acting under an inspecting officer's direction or authority, is not liable to an action, suit or proceeding for or in relation to an act done, or omitted to be done, in good faith in the performance or exercise, or the purported performance or exercise, of a function or power conferred by this Division.
- (2) A reference in this section to the Ombudsman includes a reference to a Deputy Ombudsman or a delegate of the Ombudsman.

3ZZUH Annual report

- (1) The Ombudsman must, as soon as practicable after the end of each financial year, prepare and give to the Minister a report on the results of any inspections under section 3ZZUB in the year.

Note: The report is included in a report under section 104.29 of the *Criminal Code*.

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- (2) The report must include the number of contraventions by the Australian Federal Police and members and special members of the Australian Federal Police of the provisions of:
 - (a) this Part; or
 - (b) monitoring warrants;identified by the Ombudsman in the year.
- (3) The Ombudsman must give a copy of a report under this section to the Commissioner.
- (4) A report under this section must not include information which, if made public, could reasonably be expected to:
 - (a) endanger a person's safety; or
 - (b) prejudice an investigation, or prosecution, of an offence; or
 - (c) compromise the operational activities or methodologies of:
 - (i) the Australian Federal Police; or
 - (ii) any other Commonwealth, State, Territory or foreign law enforcement, intelligence or security agency.

Part IAABA—Monitoring of compliance with community safety supervision orders etc.

3ZZUHA Simplified outline of this Part

This Part affects how Part IAAB operates, so that that Part (with some modifications set out in this Part) also applies in relation to community safety supervision orders made under Division 395 of the *Criminal Code*.

3ZZUHB Definitions

In this Part:

community safety supervision order has the same meaning as in Division 395 of the *Criminal Code*.

Part 9.10 object means the protection of the community from serious harm by addressing the unacceptable risk of a serious offender committing a serious violent or sexual offence.

serious offender has the same meaning as in Division 395 of the *Criminal Code*.

serious violent or sexual offence has the same meaning as in Division 395 of the *Criminal Code*.

3ZZUHC Application of Part IAAB to community safety supervision orders

- (1) Part IAAB (other than section 3ZZJA or 3ZZJB) applies as if:
 - (a) a reference to a Part 5.3 supervisory order included a reference to a community safety supervision order; and
 - (b) a reference to a Part 5.3 object included a reference to a Part 9.10 object.

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- (2) Subsection 3ZZOA(4) applies as if the following paragraph were inserted after paragraph (b) of that subsection:
 - (c) in relation to a community safety supervision order—the possibility that the person has committed, is committing, or will commit, a serious violent or sexual offence;
- (3) Paragraph 3ZZOA(5)(l) applies as if the following subparagraph were inserted before subparagraph (i) of that paragraph:
 - (ia) a community safety supervision order; or
- (4) Subsection 3ZZOA(5) applies as if the following paragraph were inserted after paragraph (q) of that subsection:
 - (qa) for a community safety supervision order:
 - (i) specify when the community safety supervision order comes into force; and
 - (ii) specify the end of the period during which the community safety supervision order is in force; and
- (5) Subsection 3ZZOB(4) applies as if the following paragraph were inserted after paragraph (c) of that subsection:
 - (d) in relation to a community safety supervision order—the possibility that the person has committed, is committing, or will commit, a serious violent or sexual offence;
- (6) Paragraph 3ZZOB(5)(j) applies as if the following subparagraph were inserted before subparagraph (i) of that paragraph:
 - (ia) a community safety supervision order; or
- (7) Subsection 3ZZOB(5) applies as if the following paragraph were inserted after paragraph (o) of that subsection:
 - (oa) for a community safety supervision order:
 - (i) specify when the community safety supervision order comes into force; and
 - (ii) specify the end of the period during which the community safety supervision order is in force; and
- (8) Paragraph 3ZZOD(1)(b) applies as if the following subparagraph were inserted after subparagraph (iii) of that paragraph:

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- (iiia) the community safety supervision order is revoked and no further community safety supervision order is made in relation to the serious offender;

Part IAAC—Account takeover warrants

Division 1—Introduction

3ZZUJ Simplified outline of this Part

- An account takeover warrant may be issued by a magistrate.
- An account takeover warrant authorises the Australian Federal Police or the ACC to take control of one or more online accounts.
- The applicant for an account takeover warrant must suspect on reasonable grounds that:
 - (a) one or more relevant offences have been, are being, are about to be, or are likely to be, committed; and
 - (b) an investigation into those offences is being, will be, or is likely to be, conducted; and
 - (c) taking control of the online accounts is necessary, in the course of that investigation, for the purpose of enabling evidence to be obtained of the commission of those offences.
- An emergency authorisation for taking control of an online account may be given by an appropriate authorising officer.
- An emergency authorisation is subject to approval by a magistrate.
- A magistrate may make an order requiring a person to provide any information or assistance that is reasonable and necessary to allow a law enforcement officer to take control of an online account that is the subject of an account takeover warrant or emergency authorisation.

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- A person must not use or disclose information that:
 - (a) was obtained under an account takeover warrant or emergency authorisation; or
 - (b) relates to an application for, the issue of, the existence of, or the expiration of, an account takeover warrant or emergency authorisation; or
 - (c) relates to an application for approval of the giving of an emergency authorisation.
- The Australian Federal Police and the ACC must comply with reporting and record keeping requirements relating to account takeover warrants and emergency authorisations.
- The Ombudsman must inspect the records of the Australian Federal Police to determine the extent of compliance with this Part by:
 - (a) the Australian Federal Police; and
 - (b) law enforcement officers of the Australian Federal Police.
- The Inspector-General of Intelligence and Security inspects the records of the ACC, in relation to the ACC's compliance with this Part, under the *Inspector-General of Intelligence and Security Act 1986*.

Note: This Part confers non-judicial functions and powers on magistrates. Section 4AAA deals with the conferral of non-judicial functions and powers on magistrates.

3ZZUK Definitions

In this Part:

account has the same meaning as in the *Online Safety Act 2021*.

account-based data has the same meaning as in Part IAA.

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account credentials means information that a user of an online account requires in order to access or operate the account, and includes (for example) each of the following:

- (a) a username;
- (b) a password;
- (c) a PIN;
- (d) a security question or answer;
- (e) a biometric form of identification.

account takeover warrant means a warrant issued under section 3ZZUP or subsection 3ZZVC(2) or (3).

appropriate authorising officer has the meaning given by section 3ZZUM.

carrier means:

- (a) a carrier within the meaning of the *Telecommunications Act 1997*; or
- (b) a carriage service provider within the meaning of that Act.

chief officer means the following:

- (a) in relation to the Australian Federal Police—the Commissioner of the Australian Federal Police;
- (b) in relation to the ACC—the Chief Executive Officer of the ACC.

communication in transit means a communication (within the meaning of the *Telecommunications Act 1997*) passing over a telecommunications network (within the meaning of that Act).

computer means all or part of:

- (a) one or more computers; or
- (b) one or more computer systems; or
- (c) one or more computer networks; or
- (d) any combination of the above.

electronic service has the same meaning as in the *Online Safety Act 2021*.

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emergency authorisation means an emergency authorisation given under section 3ZZUX.

executing officer, in relation to an account takeover warrant, means:

- (a) the law enforcement officer named in the warrant by the issuing magistrate as being responsible for executing the warrant; or
- (b) if that law enforcement officer does not intend to execute the warrant—another law enforcement officer whose name has been written in the warrant by the law enforcement officer so named; or
- (c) another law enforcement officer whose name has been written in the warrant by the law enforcement officer last named in the warrant.

formal application has the meaning given by paragraph 3ZZUN(2)(a).

IGIS official means:

- (a) the Inspector-General of Intelligence and Security; or
- (b) any other person covered by subsection 32(1) of the *Inspector-General of Intelligence and Security Act 1986*.

law enforcement agency means:

- (a) the Australian Federal Police; or
- (b) the ACC.

law enforcement officer means the following:

- (a) in relation to the Australian Federal Police:
 - (i) the Commissioner of the Australian Federal Police; or
 - (ii) a Deputy Commissioner of the Australian Federal Police; or
 - (iii) an AFP employee (within the meaning of the *Australian Federal Police Act 1979*); or
 - (iv) a special member of the Australian Federal Police (within the meaning of the *Australian Federal Police Act 1979*); or

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- (v) a person seconded to the Australian Federal Police;
- (b) in relation to the ACC:
 - (i) the Chief Executive Officer of the ACC; or
 - (ii) a member of the staff of the ACC.

Ombudsman official means:

- (a) the Ombudsman; or
- (b) a Deputy Commonwealth Ombudsman; or
- (c) a person who is a member of the staff referred to in subsection 31(1) of the *Ombudsman Act 1976*.

online account means an account that an electronic service has for an end-user.

protected information means:

- (a) any information obtained under an account takeover warrant or an emergency authorisation; or
- (b) information relating to:
 - (i) an application for, the issue of, the existence of, or the expiration of, an account takeover warrant or emergency authorisation; or
 - (ii) an application for approval of the giving of an emergency authorisation.

relevant offence means:

- (a) a serious Commonwealth offence; or
- (b) a serious State offence that has a federal aspect.

serious Commonwealth offence has the same meaning as in Part IAB.

serious State offence that has a federal aspect has the same meaning as in Part IAB.

takes control has the meaning given by section 3ZZUL.

telecommunications facility means a facility within the meaning of the *Telecommunications Act 1997*.

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urgent application has the meaning given by paragraph 3ZZUN(2)(b).

3ZZUL When a person takes control of an online account

- (1) For the purposes of this Part, a person ***takes control*** of an online account if the person takes one or more steps that result in the person having exclusive access to the account.
- (2) The following are examples of such steps:
 - (a) using existing account credentials to alter one or more account credentials;
 - (b) removing a requirement for two-factor authentication;
 - (c) altering the kind or kinds of account credentials that are required to access or operate the account.

3ZZUM Appropriate authorising officer

Australian Federal Police

- (1) For the purposes of this Part, an ***appropriate authorising officer*** of the Australian Federal Police is:
 - (a) the chief officer of the Australian Federal Police; or
 - (b) a Deputy Commissioner of the Australian Federal Police; or
 - (c) a senior executive AFP employee who is authorised under subsection (2).
- (2) The chief officer of the Australian Federal Police may authorise, in writing, a person who is a senior executive AFP employee to be an appropriate authorising officer of the Australian Federal Police for the purposes of this Part.

ACC

- (3) For the purposes of this Part, an ***appropriate authorising officer*** of the ACC is:
 - (a) the chief officer of the ACC; or

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- (b) an executive level member of the staff of the ACC who is authorised under subsection (4).
- (4) The chief officer of the ACC may authorise, in writing, a person who is an executive level member of the staff of the ACC to be an appropriate authorising officer of the ACC for the purposes of this Part.

Division 2—Account takeover warrants

3ZZUMA Sunsetting

This Division ceases to have effect 5 years after it commences.

3ZZUN Application for account takeover warrant

- (1) A law enforcement officer may apply to a magistrate for the issue of an account takeover warrant if the law enforcement officer suspects on reasonable grounds that:
 - (a) one or more relevant offences have been, are being, are about to be, or are likely to be, committed; and
 - (b) an investigation into those offences is being, will be, or is likely to be, conducted; and
 - (c) taking control of one or more online accounts (the ***target accounts***) is necessary, in the course of that investigation, for the purpose of enabling evidence to be obtained of the commission of those offences.
- (2) An application for an account takeover warrant may be made:
 - (a) in person (such an application is a ***formal application***); or
 - (b) if the applicant believes that it is impracticable for the application to be made in person—by telephone, email, fax or any other means of communication (such an application is an ***urgent application***).
- (2A) An application:
 - (a) must specify:
 - (i) the name of the applicant; and
 - (ii) the nature and duration of the warrant sought; and
 - (b) subject to this section, must be supported by an affidavit setting out the grounds on which the warrant is sought.

Section 3ZZUN

Unsworn applications

- (2B) If a law enforcement officer believes that:
- (a) taking control of the target accounts is immediately necessary, in the course of the investigation mentioned in paragraph (1)(c), for the purpose of enabling evidence to be obtained of the commission of the offences mentioned in that paragraph; and
 - (b) it is impracticable for an affidavit to be prepared or sworn before an application for a warrant is made;
- an application for an account takeover warrant under subsection (1) may be made before an affidavit is prepared or sworn.
- (2C) If subsection (2B) applies, the applicant must:
- (a) provide as much information as the magistrate considers is reasonably practicable in the circumstances; and
 - (b) not later than 72 hours after the making of the application, send a duly sworn affidavit to the magistrate, whether or not a warrant has been issued.
- (2D) If:
- (a) subsection (2B) applies; and
 - (b) transmission by fax is available; and
 - (c) an affidavit has been prepared;
- the person applying must transmit a copy of the affidavit, whether sworn or unsworn, to the magistrate who is to determine the application.
- (3) An application (whether formal or urgent) must provide sufficient information to enable the magistrate to decide whether or not to issue the warrant.
- (4) A magistrate may require an applicant to provide such additional information as is necessary for the proper consideration of the application.
- (5) As soon as practicable after making an urgent application that was not made in writing, the applicant must:

- (a) make a written record of the application; and
- (b) give a copy of the record to the magistrate to whom the application was made.

3ZZUP Determining the application

- (1) A magistrate may issue an account takeover warrant if satisfied that there are reasonable grounds for the suspicion founding the application for the warrant.
- (2) In determining whether an account takeover warrant should be issued, the magistrate must have regard to:
 - (a) the nature and gravity of the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought; and
 - (b) the existence of any alternative means of obtaining the evidence sought to be obtained; and
 - (c) the extent to which the privacy of any person is likely to be affected; and
 - (d) the likely evidentiary value of any evidence sought to be obtained; and
 - (da) the extent to which the execution of the warrant is likely to impact on persons lawfully using a computer, so far as that matter is known to the magistrate; and
 - (db) the extent to which the execution of the warrant is likely to cause a person to suffer a temporary loss of:
 - (i) money; or
 - (ii) digital currency; or
 - (iii) property (other than data);so far as that matter is known to the magistrate; and
 - (dc) if:
 - (i) the magistrate believes on reasonable grounds that each target account is held by a person who is working in a professional capacity as a journalist or of an employer of such a person; and

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- (ii) the alleged relevant offence, or each of the alleged relevant offences, in respect of which the warrant is sought is an offence against a secrecy provision;
whether the public interest in issuing the warrant outweighs:
 - (iii) the public interest in protecting the confidentiality of the identity of the journalist's source; and
 - (iv) the public interest in facilitating the exchange of information between journalists and members of the public so as to facilitate reporting of matters in the public interest; and
 - (e) any previous warrant sought or issued under this Division in connection with the same online account; and
 - (f) any previous warrant sought or issued under this Division in connection with the same alleged relevant offence or the same alleged relevant offences.
- (3) For the purposes of having regard to the nature and gravity of the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought, the magistrate must give weight to the following matters:
- (a) whether the conduct constituting the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought amounts to:
 - (i) an activity against the security of the Commonwealth;
or
 - (ii) an offence against Chapter 5 of the *Criminal Code*;
 - (b) whether the conduct constituting the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought amounts to:
 - (i) an activity against the proper administration of Government; or
 - (ii) an offence against Chapter 7 of the *Criminal Code*;
 - (c) whether the conduct constituting the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought:

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- (i) causes, or has the potential to cause, serious violence, or serious harm, to a person; or
 - (ii) amounts to an offence against Chapter 8 of the *Criminal Code*;
 - (d) whether the conduct constituting the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought:
 - (i) causes, or has the potential to cause, a danger to the community; or
 - (ii) amounts to an offence against Chapter 9 of the *Criminal Code*;
 - (e) whether the conduct constituting the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought:
 - (i) causes, or has the potential to cause, substantial damage to, or loss of, data, property or critical infrastructure; or
 - (ii) amounts to an offence against Chapter 10 of the *Criminal Code*;
 - (f) whether the conduct constituting the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought involves, or is related to, the commission of:
 - (i) transnational crime; or
 - (ii) serious crime; or
 - (iii) organised crime;that is not covered by any of the preceding paragraphs.
- (4) Subsection (3) does not limit the matters that may be considered by the magistrate.
- (5) To avoid doubt, this Act does not prevent an account takeover warrant from being issued in a case where the conduct constituting the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is sought is not covered by subsection (3).
- (6) For the purposes of this section, ***secrecy provision*** means a provision of a law of the Commonwealth or of a State that prohibits:
-

Section 3ZZUQ

- (a) the communication, divulging or publication of information;
or
- (b) the production of, or the publication of the contents of, a document.

3ZZUQ What must an account takeover warrant contain?

- (1) An account takeover warrant must:
 - (a) state that the magistrate issuing the warrant is satisfied of the matters referred to in subsection 3ZZUP(1) and has had regard to the matters referred to in subsection 3ZZUP(2); and
 - (b) specify:
 - (i) the name of the applicant; and
 - (ii) the name of the law enforcement officer who, unless the officer inserts the name of another law enforcement officer in the warrant, is to be responsible for executing the warrant; and
 - (iii) the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is issued; and
 - (iv) the date the warrant is issued; and
 - (v) the period during which the warrant is in force (see subsection (3)); and
 - (vi) each target account; and
 - (vii) for each target account where the holder of the target account is known to the applicant—the holder; and
 - (viii) for each target account where one or more users of the target account (other than the holder of the target account) are known to the applicant—those users; and
 - (ix) any conditions subject to which things may be done under the warrant; and
 - (c) set out an outline of the investigation to which the warrant relates.
- (2) For the purposes of subparagraph (1)(b)(vi), a target account may be specified by identifying one or more matters or things that are sufficient to identify the target account.

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- (3) A warrant may only be issued for a period of no more than 90 days.

Note: The execution of a warrant may be discontinued earlier—see section 3ZZUU.

- (4) A warrant must be signed by the person issuing it and include the person's name.

3ZZUR What an account takeover warrant authorises

- (1) An account takeover warrant must authorise the doing of specified things (subject to any restrictions or conditions specified in the warrant) in relation to each target account.
- (2) The things that may be specified are any of the following that the magistrate considers appropriate in the circumstances:
- (a) taking control of the target account at any time while the warrant is in force, if doing so is necessary, in the course of the investigation to which the warrant relates, for the purpose of enabling evidence to be obtained of the commission of the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is issued;
 - (b) using:
 - (i) a computer; or
 - (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
 - (iii) any other electronic equipment; or
 - (iv) a data storage device;for the purpose of taking control of the target account as mentioned in paragraph (a);
 - (c) if necessary for the purpose of taking control of the target account as mentioned in paragraph (a):
 - (i) accessing account-based data to which the target account relates; or
 - (ii) adding, copying, deleting or altering account credentials to which the target account relates; or
 - (iii) adding, copying, deleting or altering data in a computer;

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- (d) if, having regard to other methods (if any) of taking control of the target account which are likely to be as effective, it is reasonable in all the circumstances to do so:
 - (i) using a communication in transit for the purpose of taking control of the target account as mentioned in paragraph (a); and
 - (ii) if necessary to achieve that purpose—adding, copying, deleting or altering data in the communication in transit;
 - (e) copying any account-based data to which the target account relates, and that:
 - (i) appears to be relevant for the purposes of determining whether the account-based data is covered by the warrant; or
 - (ii) is covered by the warrant;
 - (f) copying any account credentials to which the target account relates;
 - (g) any other thing reasonably incidental to any of the above.
- (3) For the purposes of paragraph (2)(e), if:
- (a) access has been obtained to account-based data; and
 - (b) the account-based data is subject to a form of electronic protection;

the account-based data is taken to be relevant for the purposes of determining whether the account-based data is covered by the warrant.

When account-based data is covered by a warrant

- (4) For the purposes of this section, account-based data is **covered by** a warrant if access to the data is necessary, in the course of the investigation to which the warrant relates, for the purpose of enabling evidence to be obtained of the commission of the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is issued.

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Certain acts not authorised

- (5) Subsection (2) does not authorise the addition, deletion or alteration of data, or the doing of any thing, that is likely to:
- (a) materially interfere with, interrupt or obstruct:
 - (i) a communication in transit; or
 - (ii) the lawful use by other persons of a computer;unless the addition, deletion or alteration, or the doing of the thing, is necessary to do one or more of the things specified in the warrant; or
 - (b) cause any other material loss or damage to other persons lawfully using a computer.

Concealment of access etc.

- (6) If any thing has been done under:
- (a) an account takeover warrant; or
 - (b) this subsection;
- then, in addition to the things specified in the warrant, the warrant authorises the doing of any of the following:
- (c) any thing reasonably necessary to conceal the fact that any thing has been done under the warrant or under this subsection;
 - (d) if, having regard to other methods (if any) of doing the things mentioned in paragraph (c) which are likely to be as effective, it is reasonable in all the circumstances to do so:
 - (i) using a computer or a communication in transit to do those things; and
 - (ii) if necessary to achieve that purpose—adding, copying, deleting or altering other data in the computer or the communication in transit;
 - (e) any other thing reasonably incidental to any of the above;
- at the following time:
- (f) at any time while the warrant is in force or within 28 days after it ceases to be in force;

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- (g) if none of the things mentioned in paragraph (c) are done within the 28-day period mentioned in paragraph (f)—at the earliest time after that 28-day period at which it is reasonably practicable to do the things mentioned in paragraph (c).
- (7) Subsection (6) does not authorise the doing of a thing that is likely to:
 - (a) materially interfere with, interrupt or obstruct:
 - (i) a communication in transit; or
 - (ii) the lawful use by other persons of a computer;unless the doing of the thing is necessary to do one or more of the things specified in subsection (6); or
 - (b) cause any other material loss or damage to other persons lawfully using a computer.

Statutory conditions

- (8) An account takeover warrant is subject to the following conditions:
 - (a) the warrant must not be executed in a manner that results in loss or damage to data unless the damage is justified and proportionate, having regard to the alleged relevant offence, or alleged relevant offences, in respect of which the warrant is issued;
 - (b) the warrant must not be executed in a manner that causes a person to suffer a permanent loss of:
 - (i) money; or
 - (ii) digital currency; or
 - (iii) property (other than data).
- (9) Subsection (8) does not, by implication, limit the conditions to which an account takeover warrant may be subject.
- (10) The conditions set out in subsection (8) must be specified in an account takeover warrant.

3ZZUS Variation of account takeover warrant

- (1) A law enforcement officer to whom an account takeover warrant has been issued may, by writing, apply at any time before the expiry of the warrant:
 - (a) for an extension of the warrant for a period of no more than 90 days after the day the warrant would otherwise expire; or
 - (b) for a variation of any of the other terms of the warrant.
- (2) The application is to be made to a magistrate and must be accompanied by the original warrant.
- (3) The magistrate may, by writing, grant an application if satisfied that the matters referred to in subsection 3ZZUP(1) still exist, having regard to the matters in subsection 3ZZUP(2).
- (4) If the magistrate grants the application, the magistrate must endorse the new expiry date or the other varied term on the original warrant.
- (5) An application may be made under this section more than once.

3ZZUT Revocation of account takeover warrant

- (1) If an account takeover warrant is in force, a magistrate may, by instrument in writing, revoke the warrant.
- (2) If the circumstances set out in subsection 3ZZUU(2) apply in relation to an account takeover warrant:
 - (a) if the warrant was issued in response to an application made by a law enforcement officer of the Australian Federal Police—the chief officer of the Australian Federal Police must, by instrument in writing, revoke the warrant; or
 - (b) if the warrant was issued in response to an application made by a law enforcement officer of the Australian Crime Commission—the chief officer of the Australian Crime Commission must, by instrument in writing, revoke the warrant.

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- (3) The instrument revoking a warrant must be signed by the magistrate or the chief officer, as the case requires.
- (4) If a magistrate revokes an account takeover warrant, the magistrate must give a copy of the instrument of revocation to:
 - (a) if the warrant was issued in response to an application made by a law enforcement officer of the Australian Federal Police—the chief officer of the Australian Federal Police; or.
 - (b) if the warrant was issued in response to an application made by a law enforcement officer of the ACC—the chief officer of the ACC.
- (5) If:
 - (a) a magistrate revokes an account takeover warrant; and
 - (b) at the time of the revocation, a law enforcement officer is executing the warrant;the law enforcement officer is not subject to any civil or criminal liability for any act done in the proper execution of that warrant before the officer is made aware of the revocation.

3ZZUU Discontinuance of execution of account takeover warrant

Scope

- (1) This section applies if an account takeover warrant is issued.

Discontinuance of execution of account takeover warrant

- (2) If:
 - (a) the warrant was sought by a law enforcement officer of the Australian Federal Police or the Australian Crime Commission; and
 - (b) the chief officer is satisfied that taking control of the target account is no longer required for the purpose of enabling evidence to be obtained of the commission of the alleged relevant offence, or any of the alleged relevant offences, in respect of which the warrant is issued;

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the chief officer must, in addition to revoking the warrant under section 3ZZUT, take the steps necessary to ensure that the execution of the warrant is discontinued.

(3) If:

- (a) the warrant was sought by a law enforcement officer of the Australian Federal Police or the Australian Crime Commission; and
- (b) the chief officer is notified that the warrant has been revoked by a magistrate under section 3ZZUT;

the chief officer must take the steps necessary to ensure that the execution of the warrant is discontinued as soon as practicable.

- (4) If the executing officer believes that taking control of the target account is no longer required for the purpose of enabling evidence to be obtained of the commission of the alleged relevant offence, or any of the alleged relevant offences, in respect of which the warrant is issued, the executing officer must immediately inform the chief officer of the law enforcement agency to which the executing officer belongs or is seconded.

3ZZUV Restoration of online account

If:

- (a) an account takeover warrant ceases to be in force; and
- (b) it is lawful for the holder of a target account to operate the account; and
- (c) as a result of the execution of the warrant, the holder of the account cannot operate the account;

the executing officer must take all reasonable steps to ensure the holder of the account is able to operate the account.

3ZZUW Relationship of this Division to parliamentary privileges and immunities

To avoid doubt, this Division does not affect the law relating to the powers, privileges and immunities of any of the following:

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- (a) each House of the Parliament;
- (b) the members of each House of the Parliament;
- (c) the committees of each House of the Parliament and joint committees of both Houses of the Parliament.

Division 3—Emergency authorisations

3ZZUWA Sunsetting

This Division ceases to have effect 5 years after it commences.

3ZZUX Emergency authorisation—serious risks to person or property

- (1) A law enforcement officer may apply to an appropriate authorising officer for an emergency authorisation for taking control of an online account if, in the course of an investigation of one or more relevant offences, the law enforcement officer reasonably suspects that:
 - (a) an imminent risk of serious violence to a person or substantial damage to property exists; and
 - (b) taking control of the account is immediately necessary for the purpose of dealing with that risk; and
 - (c) the circumstances are so serious and the matter is of such urgency that taking control of the account is warranted; and
 - (d) it is not practicable in the circumstances to apply for an account takeover warrant.
- (2) The application may be made orally, in writing or by telephone, fax, email or any other means of communication.
- (3) The appropriate authorising officer may give the emergency authorisation if satisfied that there are reasonable grounds for the suspicion founding the application.

Statutory conditions

- (4) An emergency authorisation is subject to the following conditions:
 - (a) the authorisation must not be executed in a manner that results in damage to data unless the damage is justified and proportionate, having regard to the risk of serious violence or substantial damage referred to in paragraph (1)(a);

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- (b) the authorisation must not be executed in a manner that causes a person to suffer a permanent loss of:
 - (i) money; or
 - (ii) digital currency; or
 - (iii) property (other than data).

3ZZUY Record of emergency authorisations to be made

As soon as practicable after an appropriate authorising officer gives an emergency authorisation, the officer must make a written record of the giving of that authorisation, including in the record:

- (a) the name of the applicant for the authorisation; and
- (b) the date and time the authorisation was given; and
- (c) the nature of the authorisation given.

3ZZUZ Attributes of emergency authorisations

- (1) An emergency authorisation may authorise anything that an account takeover warrant may authorise.
- (2) A law enforcement officer may take control of an online account under an emergency authorisation only if the officer is acting in the performance of the officer's duty.

3ZZVA Application for approval of emergency authorisation

- (1) Within 48 hours after giving an emergency authorisation to a law enforcement officer, the appropriate authorising officer who gave the authorisation (or another person on that appropriate authorising officer's behalf) must apply to a magistrate for approval of the giving of the emergency authorisation.
- (2) The application must:
 - (a) provide sufficient information to enable the magistrate to decide whether or not to approve the giving of the emergency authorisation; and
 - (b) be accompanied by a copy of the written record made under section 3ZZUY in relation to the emergency authorisation.

3ZZVB Consideration of application

Before deciding an application for approval of the giving of an emergency authorisation that relates to an online account, the magistrate considering the application must, in particular, and being mindful of the intrusive nature of taking control of the online account, consider the following:

- (a) the nature of the risk of serious violence to a person or substantial damage to property;
- (b) the extent to which issuing an account takeover warrant would have helped reduce or avoid the risk;
- (c) the extent to which law enforcement officers could have used alternative methods of investigation to help reduce or avoid the risk;
- (d) how much the use of alternative methods of investigation could have helped reduce or avoid the risk;
- (e) how much the use of alternative methods of investigation would have prejudiced the safety of the person or property because of delay or for another reason;
- (f) whether or not it was practicable in the circumstances to apply for an account takeover warrant.

3ZZVC Magistrate may approve giving of an emergency authorisation

- (1) After considering an application for approval of the giving of an emergency authorisation that relates to an online account, the magistrate may give the approval if satisfied that there were reasonable grounds to suspect that:
 - (a) there was a risk of serious violence to a person or substantial damage to property; and
 - (b) taking control of the online account may have helped reduce the risk; and
 - (c) it was not practicable in the circumstances to apply for an account takeover warrant.

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- (2) If the magistrate approves the giving of an emergency authorisation, the magistrate may:
 - (a) unless paragraph (b) applies—issue an account takeover warrant relating to taking control of the online account as if the application for the approval were an application for an account takeover warrant under Division 2; or
 - (b) if the magistrate is satisfied that, since the application for the emergency authorisation, the activity that required taking control of an online account has ceased—order the cessation of taking control of the online account.
- (3) If the magistrate does not approve the giving of an emergency authorisation, the magistrate may:
 - (a) order the cessation of taking control of the online account; or
 - (b) if the magistrate is of the view that, although the situation did not warrant the emergency authorisation at the time when the authorisation was given, the use of an account takeover warrant under Division 2 is currently justified—issue an account takeover warrant relating to the taking control of the online account as if the application for the approval were an application for an account takeover warrant under Division 2.
- (4) In any case, the magistrate may order that any information obtained from or relating to the exercise of powers under the emergency authorisation, or any record of that information, be dealt with in a manner specified in the order, so long as the manner does not involve the destruction of that information.

3ZZVD Admissibility of evidence

If the giving of an emergency authorisation is approved under section 3ZZVC, any evidence obtained because of the exercise of powers under that authorisation is not inadmissible in any proceeding only because the evidence was obtained before the approval.

3ZZVE Restoration of online account

If:

- (a) a magistrate orders the cessation of taking control of the online account to which an emergency authorisation relates; and
- (b) as a result of the execution of the authorisation, the holder of the account cannot operate the account;

the law enforcement officer who applied for the authorisation must take all reasonable steps to ensure the holder of the account is able to operate the account.

3ZZVF Relationship of this Division to parliamentary privileges and immunities

To avoid doubt, this Division does not affect the law relating to the powers, privileges and immunities of any of the following:

- (a) each House of the Parliament;
- (b) the members of each House of the Parliament;
- (c) the committees of each House of the Parliament and joint committees of both Houses of the Parliament.

Division 4—Assistance orders

3ZZVG Person with knowledge of an online account to provide assistance

- (1) If an account takeover warrant or emergency authorisation is in force, a law enforcement officer may apply to a magistrate for an order (the *assistance order*) requiring a specified person to provide any information or assistance that is reasonable and necessary to allow the law enforcement officer to take control of an online account that is the subject of the warrant or authorisation.

Grant of assistance order

- (2) The magistrate may grant the assistance order if the magistrate is satisfied that:
- (a) there are reasonable grounds for suspecting that taking control of the account is necessary, in the course of the investigation to which the account takeover warrant relates, for the purpose of enabling evidence to be obtained of the commission of the alleged relevant offence, or any of the alleged relevant offences, in respect of which the warrant is issued; and
 - (b) the specified person is:
 - (i) reasonably suspected of having committed the alleged relevant offence, or any of the alleged relevant offences, in respect of which the warrant is issued; or
 - (ii) the holder of the account; or
 - (iii) an employee of the holder of the account; or
 - (iv) a person engaged under a contract for services by the holder of the account; or
 - (v) a person who uses or has used the account; or
 - (vi) a person who is or was a system administrator for the electronic service to which the account relates; and
 - (c) the specified person has relevant knowledge of:
 - (i) the account; or

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- (ii) the electronic service to which the account relates; or
- (iii) measures applied to protect account-based data to which the account relates.

(2A) In determining whether the assistance order should be granted, the magistrate must have regard to whether the specified person is, or has been, subject to:

- (a) another order under this section; or
- (b) an order under section 3LA of this Act; or
- (c) an order under section 64A or 64B of the *Surveillance Devices Act 2004*;

so far as that matter is known to the magistrate.

(2B) Subsection (2B) does not limit the matters to which the magistrate may have regard.

Duration of assistance order

(2C) If an assistance order is granted in relation to a computer that is the subject of an account takeover warrant, the order ceases to be in force when the warrant ceases to be in force.

(2D) If an assistance order is granted in relation to a computer that is the subject of an emergency authorisation, the order ceases to be in force when the emergency authorisation ceases to be in force.

Protection from civil liability

(2E) A person is not subject to any civil liability in respect of an act done by the person:

- (a) in compliance with an assistance order; or
- (b) in good faith in purported compliance with an assistance order.

Offence

(3) A person commits an offence if:

- (a) the person is subject to an order under this section; and

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- (b) the person is capable of complying with a requirement in the order; and
- (c) the person omits to do an act; and
- (d) the omission contravenes the requirement.

Penalty: Imprisonment for 10 years or 600 penalty units, or both.

Additional use of information etc.

- (4) If information or assistance is provided under this section in connection with an investigation into one or more alleged relevant offences, this Act does not, by implication, prevent the information or assistance from being used in connection with the execution of a section 3E warrant that relates to that investigation.

Division 5—Restrictions on use and disclosure of information

3ZZVH Unauthorised use or disclosure of protected information

- (1) A person commits an offence if:
- (a) the person uses or discloses information; and
 - (b) the information is protected information.

Penalty: Imprisonment for 2 years.

- (2) A person commits an offence if:
- (a) the person uses or discloses any information; and
 - (b) the information is protected information; and
 - (c) the use or disclosure of the information endangers the health or safety of any person or prejudices the effective conduct of an investigation into a relevant offence.

Penalty: Imprisonment for 10 years.

Exceptions

- (3) Subsections (1) and (2) do not apply if the use or disclosure was:
- (a) in connection with the administration or execution of this Part; or
 - (b) in connection with the functions of the Australian Federal Police under section 8 of the *Australian Federal Police Act 1979*; or
 - (c) in connection with the functions of the ACC under section 7A of the *Australian Crime Commission Act 2002*; or
 - (d) in connection with preventing, investigating or prosecuting an offence; or
 - (e) by a person who believes on reasonable grounds that the use or disclosure is necessary to help prevent or reduce the risk of serious violence to a person or substantial damage to property; or

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- (f) for the purposes of any legal proceedings arising out of or otherwise related to this Part or of any report of any such proceedings; or
- (g) for the purposes of obtaining legal advice in relation to this Part; or
- (h) in accordance with any requirement imposed by law; or
- (i) in connection with the performance of functions or duties, or the exercise of powers, under this Part; or
- (j) in connection with the performance of functions or duties, or the exercise of powers, by:
 - (i) a law enforcement officer; or
 - (ii) the Director-General (within the meaning of the *Australian Security Intelligence Organisation Act 1979*), an ASIO employee (within the meaning of that Act) or an ASIO affiliate (within the meaning of that Act); or
 - (iii) the agency head (within the meaning of the *Intelligence Services Act 2001*), or a staff member (within the meaning of that Act), of an agency (within the meaning of that Act); or
- (k) for the purposes of the admission of evidence in a proceeding that is not a criminal proceeding.

Note: A defendant, except for an IGIS official, bears an evidential burden in relation to a matter in this subsection (see subsection 13.3(3) of the *Criminal Code*). For IGIS officials, see section 34C of the *Inspector-General of Intelligence and Security Act 1986*.

- (4) Subsections (1) and (2) do not apply if the disclosure was made by a person to an Ombudsman official (whether in connection with a complaint made to the Ombudsman or in any other circumstances).

Note: A defendant, except for an IGIS official, bears an evidential burden in relation to a matter in this subsection (see subsection 13.3(3) of the *Criminal Code*). For IGIS officials, see section 34C of the *Inspector-General of Intelligence and Security Act 1986*.

- (5) Subsections (1) and (2) do not apply if the person uses or discloses the information for the purpose of an IGIS official exercising a power, or performing a function or duty, as an IGIS official.

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Note: A defendant, except for an IGIS official, bears an evidential burden in relation to a matter in this subsection (see subsection 13.3(3) of the *Criminal Code*). For IGIS officials, see section 34C of the *Inspector-General of Intelligence and Security Act 1986*.

3ZZVJ Dealing with records obtained under, or relating to, account takeover warrants etc.

The chief officer of the Australian Federal Police or the ACC:

- (a) must ensure that every record or report comprising protected information is kept in a secure place that is not accessible to people who are not entitled to deal with the record or report; and
- (b) must cause to be destroyed any record or report referred to in paragraph (a):
 - (i) as soon as practicable after the making of the record or report if the chief officer is satisfied that no civil or criminal proceeding to which the material contained in the record or report relates has been, or is likely to be, commenced and that the material contained in the record or report is not likely to be required in connection with an activity or purpose referred to in subsection 3ZZVH(2), (3), (4) or (5); and
 - (ii) within the period of 5 years after the making of the record or report, and within each period of 5 years thereafter, unless, before the end of that period, the chief officer is satisfied in relation to the material contained in the record or report of a matter referred to in subparagraph (i) and certifies to that effect.

3ZZVK Protection of account takeover technologies and methods

- (1) In a proceeding, a person may object to the disclosure of information on the ground that the information, if disclosed, could reasonably be expected to reveal details of account takeover technologies or methods.

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- (2) If the person conducting or presiding over the proceeding is satisfied that the ground of objection is made out, the person may order that the person who has the information not be required to disclose it in the proceeding.
- (3) In determining whether or not to make an order under subsection (2), the person conducting or presiding over the proceeding must take into account whether disclosure of the information:
 - (a) is necessary for the fair trial of the defendant; or
 - (b) is in the public interest.
- (4) Subsection (2) does not affect a provision of another law under which a law enforcement officer cannot be compelled to disclose information or make statements in relation to the information.
- (5) If the person conducting or presiding over a proceeding is satisfied that publication of any information disclosed in the proceeding could reasonably be expected to reveal details of account takeover technologies or methods, the person must make any orders prohibiting or restricting publication of the information that the person considers necessary to ensure that those details are not revealed.
- (6) Subsection (5) does not apply to the extent that the person conducting or presiding over the proceeding considers that the interests of justice require otherwise.
- (7) In this section:
 - account takeover technologies or methods*** means:
 - (a) technologies or methods relating to the use of:
 - (i) a computer; or
 - (ii) a telecommunications facility operated or provided by the Commonwealth or a carrier; or
 - (iii) any other electronic equipment; or
 - (iv) a data storage device;
 - for the purpose of taking control of an online account; or

- (b) technologies or methods relating to adding, copying, deleting or altering account-based data, if doing so is necessary to achieve the purpose mentioned in paragraph (a); or
- (c) technologies or methods relating to adding, copying, deleting or altering account credentials to which an online account relates, if doing so is necessary to achieve the purpose mentioned in paragraph (a);

where the technologies or methods have been, or are being, deployed in giving effect to an account takeover warrant or emergency authorisation.

proceeding includes a proceeding before a court, tribunal or Royal Commission.

Division 6—Reporting and record keeping

3ZZVL Chief officers' annual reports to the Minister, and the Ombudsman or the Inspector-General of Intelligence and Security

- (1AA) As soon as practicable after 30 June in each year:
- (a) the chief officer of the Australian Federal Police must submit a report to the Minister and the Ombudsman in accordance with this section; and
 - (b) the chief officer of the ACC must submit a report to the Minister and the Inspector-General of Intelligence and Security in accordance with this section.
- (1) The report must set out:
- (a) the number of applications for account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the previous 12 months, and the dates on which those applications were made; and
 - (b) the number of account takeover warrants issued during the previous 12 months in response to applications made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, and the dates on which those warrants were issued; and
 - (c) if one or more applications for account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the previous 12 months were refused:
 - (i) the number of those refusals; and
 - (ii) the dates on which those refusals occurred; and
 - (d) if one or more applications for variations of account takeover warrants were made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the previous 12 months:
 - (i) the number of those applications; and

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- (ii) the dates on which those applications were made; and
- (e) if one or more variations of account takeover warrants were made during the previous 12 months in response to applications made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires:
 - (i) the number of those variations; and
 - (ii) the dates on which those variations were made; and
- (f) if one or more applications for variations of account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the previous 12 months were refused:
 - (i) the number of those refusals; and
 - (ii) the dates on which those refusals occurred; and
- (g) if one or more account takeover warrants issued in response to applications made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, were revoked during the previous 12 months:
 - (i) the number of those revocations; and
 - (ii) the dates on which those revocations occurred; and
- (h) for each account takeover warrant that:
 - (i) was issued in response to an application made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires; and
 - (ii) ceased to be in force during the previous 12 months; the following information:
 - (iii) the date the warrant ceased to be in force;
 - (iv) whether the warrant expired or was revoked;
 - (v) whether or not the warrant was executed;
 - (vi) if the warrant was executed—the information listed in subsection (2);
 - (vii) if the warrant was not executed—the reason why the warrant was not executed; and
- (i) the number of applications for emergency authorisations made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the previous

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12 months, and the dates on which those applications were made; and

- (j) the number of emergency authorisations given during the previous 12 months in response to applications made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, and the dates on which those authorisations were given; and
- (k) if one or more applications for emergency authorisations made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the previous 12 months were refused:
 - (i) the number of those refusals; and
 - (ii) the dates on which those refusals occurred; and
- (l) if one or more applications for approval of the giving of emergency authorisations were made by or on behalf of appropriate authorising officers of the Australian Federal Police or the ACC, as the case requires, during the previous 12 months:
 - (i) the number of those applications; and
 - (ii) the dates on which those applications were made; and
- (m) if the giving of one or more emergency authorisations were approved during the previous 12 months in response to applications made by or on behalf of appropriate authorising officers of the Australian Federal Police or the ACC, as the case requires:
 - (i) the number of those approvals; and
 - (ii) the dates on which those approvals were given; and
- (n) if one or more applications for approval of the giving of emergency authorisations made by or on behalf of appropriate authorising officers of the Australian Federal Police or the ACC, as the case requires, during the previous 12 months were refused:
 - (i) the number of those refusals; and
 - (ii) the dates on which those refusals occurred.

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- (2) The following information is listed for the purposes of subparagraph (1)(h)(vi):
- (a) the name of the executing officer;
 - (b) the names of any other law enforcement officers involved in executing the warrant;
 - (c) the period during which the warrant was executed;
 - (d) the target account;
 - (e) if the holder of the target account is known to the executing officer—the holder;
 - (f) if one or more users of the target account (other than the holder of the target account) are known to the executing officer—those users;
 - (g) details of the benefit of the execution of the warrant to the investigation of a relevant offence;
 - (h) details of how information obtained under the warrant was used;
 - (i) details of the communication of information obtained under the warrant to persons other than:
 - (i) if the warrant was issued in response to an application made by a law enforcement officer of the Australian Federal Police—law enforcement officers of the Australian Federal Police; or
 - (ii) if the warrant was issued in response to an application made by a law enforcement officer of the ACC—law enforcement officers of the ACC;
 - (j) details of the compliance with the conditions (if any) to which the warrant was subject.
- (3) For the purposes of paragraph (2)(d), the target account may be specified by identifying one or more matters and things that are sufficient to identify the account.

3ZZVM Chief officers' annual reports to the Minister

- (1) As soon as practicable, and in any event within 3 months, after the end of each financial year, the chief officer of the Australian

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Federal Police or the ACC must submit a report to the Minister that sets out:

- (a) the number of applications for account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the financial year; and
- (b) the number of account takeover warrants issued during the financial year in response to applications made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires; and
- (c) if one or more applications for account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the financial year were refused—the number of those refusals; and
- (d) the number of urgent applications for account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the financial year; and
- (e) the number of account takeover warrants issued during the financial year in response to urgent applications made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires; and
- (f) if one or more urgent applications for account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the financial year were refused—the number of those refusals; and
- (g) if one or more variations of account takeover warrants were granted during the financial year in response to applications made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires—the number of those variations; and
- (h) if one or more applications for variations of account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the financial year were refused—the number of those refusals; and

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- (i) the number of applications for emergency authorisations made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the financial year; and
- (j) the number of emergency authorisations given during the financial year in response to applications made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires; and
- (k) if one or more applications for emergency authorisations made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the financial year were refused—the number of those refusals; and
- (l) if one or more applications for approval of the giving of emergency authorisations were made by or on behalf of appropriate authorising officers of the Australian Federal Police or the ACC, as the case requires, during the financial year—the number of those applications; and
- (m) if the giving of one or more emergency authorisations were approved during the financial year in response to applications made by or on behalf of appropriate authorising officers of the Australian Federal Police or the ACC, as the case requires—the number of those approvals; and
- (n) if one or more applications for approval of the giving of emergency authorisations made by or on behalf of appropriate authorising officers of the Australian Federal Police or the ACC, as the case requires, during the financial year were refused—the number of those refusals; and
- (o) the types of relevant offences in respect of which account takeover warrants or emergency authorisations were sought by law enforcement officers of the Australian Federal Police or the ACC, as the case requires, during the financial year; and
- (p) the number of arrests that were made during the financial year on the basis (wholly or partly) of information obtained under account takeover warrants issued, or emergency authorisations given, in response to applications made by law

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- enforcement officers of the Australian Federal Police or the ACC, as the case requires; and
- (q) the number of prosecutions for relevant offences that were commenced during the financial year in which information obtained under account takeover warrants or emergency authorisations was given in evidence, and the number of those prosecutions in which a person was found guilty.
- (2) The Minister must cause a copy of the report to be tabled in each House of the Parliament within 15 sitting days of that House after the Minister receives it.
- (3) A copy of a report given to the Minister under this section must, at the same time as it is given to the Minister, be given to:
- (a) if the report relates to the Australian Federal Police—the Ombudsman; and
 - (b) if the report relates to the ACC—the Inspector-General of Intelligence and Security.

3ZZVN Keeping documents connected with account takeover warrants

The chief officer of the Australian Federal Police or the ACC must cause the following to be kept:

- (a) a copy of each application for an account takeover warrant that was made by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires;
- (b) a copy of each account takeover warrant that was issued in response to an application made by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires;
- (c) each written application for an emergency authorisation made by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires;
- (d) a copy of each emergency authorisation that was given in response to an application made by a law enforcement officer

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- of the Australian Federal Police or the ACC, as the case requires;
- (e) a copy of each application made by or on behalf of an appropriate authorising officer for approval of the giving of an emergency authorisation to a law enforcement officer of the Australian Federal Police or the ACC, as the case requires;
 - (f) a copy of each section 3ZZVG assistance order that was made in response to an application made by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires;
 - (g) a copy of each application for a section 3ZZVG assistance order that was made by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires;
 - (h) if an application for a variation of an account takeover warrant was made by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires—a copy of the application;
 - (i) if an account takeover warrant that was varied in response to an application made by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires—a copy of the variation;
 - (j) if an account takeover warrant issued in response to an application made by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires, was revoked—a copy of the revocation;
 - (k) each written record made under subsection 3ZZUN(5);
 - (l) a copy of each report given to the Minister and the Ombudsman or the Inspector-General of Intelligence and Security, as the case requires, under section 3ZZVL.

3ZZVP Register of applications for account takeover warrants and emergency authorisations

- (1) The chief officer of the Australian Federal Police or the ACC must cause to be kept a register of:

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- (a) applications for account takeover warrants made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires; and
 - (b) applications for emergency authorisations made by law enforcement officers of the Australian Federal Police or the ACC, as the case requires.
- (2) The register is to specify, for each account takeover warrant sought by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires:
 - (a) the date the warrant was issued or refused; and
 - (b) the date of the application for the warrant; and
 - (c) whether the application for the warrant was a formal application or an urgent application; and
 - (d) the name of the magistrate who issued or refused to issue the warrant; and
 - (e) the name of the applicant for the warrant; and
 - (f) if the warrant was issued:
 - (i) the name of the executing officer; and
 - (ii) the alleged relevant offence, or alleged relevant offences, in respect of which the warrant was issued; and
 - (iii) the period during which the warrant is in force; and
 - (iv) details of any variations or extensions of the warrant; and
 - (v) whether the warrant has expired or been revoked.
- (3) The register is to specify, for each emergency authorisation sought by a law enforcement officer of the Australian Federal Police or the ACC, as the case requires:
 - (a) the date the authorisation was given or refused; and
 - (b) the name of the appropriate authorising officer who gave or refused to give the authorisation; and
 - (c) if the authorisation was given:
 - (i) the name of the law enforcement officer to whom the authorisation was given; and

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- (ii) the alleged relevant offence, or alleged relevant offences, in respect of which the authorisation was given; and
 - (iii) the date on which the application for approval of the giving of the authorisation was made; and
 - (iv) whether that application for approval of the giving of the authorisation was successful or not.
- (4) A register kept under this section is not a legislative instrument.

Division 7—Inspections

3ZZVQ Appointment of inspecting officers

The Ombudsman may, by writing, appoint members of the Ombudsman's staff to be inspecting officers for the purposes of this Part.

3ZZVR Inspection of records by the Ombudsman

- (1) The Ombudsman must, from time to time and at least once every 12 months, inspect the records of the Australian Federal Police to determine the extent of compliance with this Part by:
 - (a) the Australian Federal Police; and
 - (b) law enforcement officers of the Australian Federal Police.
- (2) For the purpose of an inspection under this section, the Ombudsman:
 - (a) may, after notifying the chief officer of the Australian Federal Police, enter at any reasonable time premises occupied by the Australian Federal Police; and
 - (b) is entitled to have full and free access at all reasonable times to all records of the Australian Federal Police that are relevant to the inspection; and
 - (c) may require a member of staff of the Australian Federal Police to give the Ombudsman any information that the Ombudsman considers necessary, so long as:
 - (i) the information is in the member's possession, or the member has access to the information; and
 - (ii) the information is relevant to the inspection; and
 - (d) may, despite any other law, make copies of, and take extracts from, records of the Australian Federal Police.
- (3) The chief officer of the Australian Federal Police must ensure that members of its staff give the Ombudsman any assistance the

Ombudsman reasonably requires to enable the Ombudsman to perform functions under this section.

3ZZVS Power to obtain relevant information

- (1) If the Ombudsman has reasonable grounds to believe that a law enforcement officer of the Australian Federal Police is able to give information relevant to an inspection under this Division of the records of the Australian Federal Police, subsections (2) and (3) have effect.
- (2) The Ombudsman may, by writing given to the law enforcement officer, require the officer to give the information to the Ombudsman:
 - (a) by writing signed by the officer; and
 - (b) at a specified place and within a specified period.
- (3) The Ombudsman may, by writing given to the law enforcement officer, require the officer to attend:
 - (a) before a specified inspecting officer; and
 - (b) at a specified place; and
 - (c) within a specified period or at a specified time on a specified day;to answer questions relevant to the inspection.
- (4) If the Ombudsman:
 - (a) has reasonable grounds to believe that a law enforcement officer of the Australian Federal Police is able to give information relevant to an inspection under this Division of the records of the Australian Federal Police; and
 - (b) does not know the officer's identity;the Ombudsman may, by writing given to the chief officer of the Australian Federal Police, require the chief officer, or a person nominated by the chief officer, to attend:
 - (c) before a specified inspecting officer; and
 - (d) at a specified place; and

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- (e) within a specified period or at a specified time on a specified day;
to answer questions relevant to the inspection.
- (5) The place, and the period or the time and day, specified in a requirement under this section, must be reasonable having regard to the circumstances in which the requirement is made.

3ZZVT Offence

A person commits an offence if:

- (a) the person is required under section 3ZZVS to attend before an inspecting officer, to give information or to answer questions; and
- (b) the person refuses or fails to do so.

Penalty: Imprisonment for 6 months.

3ZZVU Ombudsman to be given information and access despite other laws

- (1) Despite any other law, a person is not excused from giving information, answering a question, or giving access to a document, as and when required under this Division, on the ground that giving the information, answering the question, or giving access to the document, as the case may be:
 - (a) would contravene a law; or
 - (b) would be contrary to the public interest; or
 - (c) might tend to incriminate the person; or
 - (d) would disclose one of the following:
 - (i) a legal advice given to a Minister, a Department or a prescribed authority;
 - (ii) a communication between an officer of a Department or of a prescribed authority and another person or body, being a communication protected against disclosure by legal professional privilege.
 - (2) However, if the person is an individual:
-

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- (a) the information, the answer, or the fact that the person has given access to the document, as the case may be; and
 - (b) any information or thing (including a document) obtained as a direct or indirect consequence of giving the information, answering the question or giving access to the document;

is not admissible in evidence against the person except in a proceeding by way of a prosecution for an offence against section 3ZZVH of this Act or Part 7.4 or 7.7 of the *Criminal Code*.
- (3) If, at general law, an individual would otherwise be able to claim the privilege against self-exposure to a penalty (other than a penalty for an offence) in relation to giving information, answering a question, or giving access to a document, as and when required under this Division, the individual is not excused from giving the information, answering the question, or giving access to the document, as the case may be, on that ground.

Note: A body corporate is not entitled to claim the privilege against self-exposure to a penalty.
- (4) Nothing in section 3ZZVH or in any other law prevents a law enforcement officer of the Australian Federal Police from:
 - (a) giving information to an inspecting officer (whether orally or in writing and whether or not in answer to a question); or
 - (b) giving access to a record of the Australian Federal Police to an inspecting officer;

for the purposes of an inspection under this Division of the records of the Australian Federal Police.
- (5) Nothing in section 3ZZVH or in any other law prevents a law enforcement officer from making a record of information, or causing a record of information to be made, for the purposes of giving the information to a person as permitted by subsection (4).
- (6) The fact that a person is not excused under subsection (1) or (3) from giving information, answering a question or giving access to a document does not otherwise affect a claim of legal professional privilege that anyone may make in relation to that information, answer or document.

Section 3ZZVV

(7) In this section:

prescribed authority has the same meaning as in the *Ombudsman Act 1976*.

3ZZVV Delegation by Ombudsman

- (1) The Ombudsman may, by writing, delegate to an APS employee responsible to the Ombudsman all or any of the Ombudsman's functions or powers under this Division, other than section 3ZZVX.
- (2) A delegate must, on request by a person affected by the exercise of any power delegated to the delegate, produce the instrument of delegation, or a copy of the instrument, for inspection by the person.

3ZZVW Ombudsman not to be sued

The Ombudsman, an inspecting officer, or a person acting under an inspecting officer's direction or authority, is not liable to an action, suit or proceeding for or in relation to an act done, or omitted to be done, in good faith in the performance or exercise, or the purported performance or exercise, of a function or power conferred by this Division.

3ZZVX Report on inspection

- (1) The Ombudsman must make a written report to the Minister at 12 monthly intervals on the results of each inspection under section 3ZZVR.
- (2) The report must not include information which, if made public, could reasonably be expected to:
 - (a) prejudice an investigation or prosecution; or
 - (b) compromise any law enforcement agency's operational activities or methodologies.

Section 3ZZVX

- (3) The Minister must cause a copy of the report to be tabled in each House of the Parliament within 15 sitting days of that House after the Minister receives the report.

Division 8—Miscellaneous

3ZZVY Minor defects in connection with account takeover warrant

- (1) If:
 - (a) information is purportedly obtained under an account takeover warrant; and
 - (b) there is a defect or irregularity in relation to the warrant; and
 - (c) but for that defect or irregularity, the warrant would be a sufficient authority for obtaining the information;then:
 - (d) obtaining the information is taken to be as valid; and
 - (e) the information obtained may be dealt with, or given in evidence in any proceeding;as if the warrant did not have that defect or irregularity.
- (2) A reference in subsection (1) to a defect or irregularity in relation to the warrant is a reference to a defect or irregularity (other than a substantial defect or irregularity):
 - (a) in, or in connection with the issue of, a document purporting to be that warrant; or
 - (b) in connection with the execution of that warrant or the purported execution of a document purporting to be that warrant.

3ZZVZ Evidentiary certificates

- (1) A law enforcement officer may issue a written certificate signed by the officer setting out any facts the officer considers relevant with respect to:
 - (a) anything done by the law enforcement officer, or by a person assisting or providing technical expertise to the law enforcement officer, in connection with the execution of an account takeover warrant; or
 - (b) anything done by the law enforcement officer in connection with:
-

Section 3ZZWA

- (i) the communication by a person to another person; or
 - (ii) the making use of; or
 - (iii) the making of a record of; or
 - (iv) the custody of a record of;
- information obtained under an account takeover warrant.
- (2) A certificate issued under subsection (1) is admissible in evidence in any proceedings as prima facie evidence of the matters stated in the certificate.

3ZZWA Compensation for property loss or serious damage

- (1) If a person suffers:
- (a) loss of or serious damage to property; or
 - (b) personal injury;
- in the course of, or as a direct result of, the execution of an account takeover warrant, the Commonwealth is liable to pay to the person compensation as agreed between the Commonwealth and the person or, in default of agreement, as determined by action against the Commonwealth in:
- (c) the Federal Court of Australia; or
 - (d) the Supreme Court of a State or Territory.
- (2) Subsection (1) does not apply if the person suffered the loss, damage or injury in the course of, or as a direct result of, engaging in any criminal activity.

Part IA—General

4AAA Commonwealth laws conferring non-judicial functions and powers on officers

Application

- (1) This section sets out the rules that apply if, under a law of the Commonwealth relating to criminal matters, a function or power that is neither judicial nor incidental to a judicial function or power, is conferred on one or more of the following persons:
- (aa) a Judge of the Federal Court of Australia;
 - (ab) a Judge of the Federal Circuit and Family Court of Australia (Division 2);
 - (a) a State or Territory judge;
 - (b) a magistrate;
 - (c) a Justice of the Peace or other person:
 - (i) employed in a State or Territory court; and
 - (ii) authorised to issue search warrants, or warrants of arrest.

Note 1: **Magistrate** is defined in section 16C of the *Acts Interpretation Act 1901*.

Note 2: **Justice of the Peace** is defined in section 2B of the *Acts Interpretation Act 1901*.

Functions and powers conferred personally

- (2) The function or power is conferred on the person only in a personal capacity and not, in the case of a Judge of the Federal Court of Australia, Judge of the Federal Circuit and Family Court of Australia (Division 2), State or Territory judge or magistrate, as a court or a member of a court.

Function or power need not be accepted

- (3) The person need not accept the function or power conferred.

Protection and immunity provided

- (3A) A Judge of the Federal Court of Australia or a Judge of the Federal Circuit and Family Court of Australia (Division 2) performing a conferred function, or exercising a conferred power, has the same protection and immunity as a Justice of the High Court has in relation to proceedings in the High Court.
- (4) A State or Territory judge or magistrate performing a conferred function, or exercising a conferred power, has the same protection and immunity as if he or she were performing that function, or exercising that power, as, or as a member of, a court (being the court of which the judge or magistrate is a member).
- (5) A person referred to in paragraph (1)(c) performing a conferred function, or exercising a conferred power, has the same protection and immunity as he or she would have in performing functions and powers as part of the person's employment with a State or Territory court, as the case may be.

This section applies regardless of when Commonwealth law made

- (6) This section applies whether the law conferring a function or power was made before, on or after, the commencement of this section.

Contrary intention

- (6A) Despite subsection (1), a rule set out in this section does not apply if the contrary intention appears.

A law of the Commonwealth relating to criminal matters

- (7) In this section, a reference to ***a law of the Commonwealth relating to criminal matters*** includes a reference to this Act.

Section 4AAB

4AAB Arrangements for conferral of non-judicial functions and powers

Governor-General may make arrangements

- (1) The Governor-General may make arrangements with:
- (a) the Governor of a State (excluding the Northern Territory); and
 - (b) the Chief Minister for the Australian Capital Territory; and
 - (c) the Administrator of the Northern Territory;
- for the performance of functions, and the exercise of powers, that are neither judicial nor incidental to a judicial function or power, conferred by a law of the Commonwealth relating to criminal matters on:
- (e) a State or Territory judge; or
 - (f) a magistrate; or
 - (g) a Justice of the Peace or other person:
 - (i) employed in a State or Territory court; and
 - (ii) authorised to issue search warrants, or warrants of arrest.

Note 1: **Magistrate** is defined in section 16C of the *Acts Interpretation Act 1901*.

Note 2: **Justice of the Peace** is defined in section 2B of the *Acts Interpretation Act 1901*.

Lack of arrangement does not affect validity of exercise of power or performance of function

- (2) The validity of the performance of a function, or the exercise of a power, is not affected by the absence of an arrangement under this section covering the performance of the function or exercise of the power.

This section applies regardless of when Commonwealth law made

- (3) This section applies to functions or powers conferred by laws made before, on or after the commencement of this section.

A law of the Commonwealth relating to criminal matters

- (4) In this section, a reference to ***a law of the Commonwealth relating to criminal matters*** includes a reference to this Act.

4A Meaning of certain words

In a law of the Commonwealth, unless the contrary intention appears:

committed for trial, in relation to a person, means committed to prison with a view to the person being tried before a judge and jury, or admitted to bail upon a recognizance to appear and be so tried.

indictment includes an information and a presentment.

4AA Penalty units

- (1) In a law of the Commonwealth or a Territory Ordinance, unless the contrary intention appears:

penalty unit means the amount of \$330 (subject to indexation under subsection (3)).

- (1A) If the amount of a penalty unit is indexed under subsection (3), the Minister must, by notifiable instrument, publish the amount of a penalty unit. However, a failure by the Minister to do so does not invalidate the indexation.

- (2) In this section:

Territory Ordinance means an ordinance that:

- (a) was made under an Act providing for the acceptance, administration or government of a Territory; and
- (b) has not become an enactment of the Australian Capital Territory;

and includes a regulation made under such an ordinance.

Section 4AA

Indexation of penalty unit

- (3) On 1 July 2026 and each third 1 July following that day (an ***indexation day***), the dollar amount mentioned in subsection (1) is replaced by the amount worked out using the following formula:

$$\frac{\text{Indexation factor for the indexation day}}{\times} \frac{\text{Dollar amount immediately before the indexation day}}$$

- (4) The ***indexation factor*** for an indexation day is the number worked out using the following formula:

$$\frac{\text{Index number for the reference quarter}}{\text{Index number for the base quarter}}$$

where:

base quarter means the March quarter 3 years before the reference quarter.

index number, for a quarter, means the All Groups Consumer Price Index number (being the weighted average of the 8 capital cities) published by the Australian Statistician for that quarter.

March quarter means a quarter ending on 31 March.

reference quarter means the March quarter immediately before the indexation day.

- (5) An indexation factor is to be calculated to 3 decimal places (rounding up if the fourth decimal place is 5 or more).
- (6) Amounts worked out under subsection (3) are to be rounded to the nearest whole dollar (rounding 50 cents upwards).
- (7) Calculations under subsection (4):
- (a) are to be made using only the index numbers published in terms of the most recently published index reference period; and
 - (b) are to be made disregarding index numbers that are published in substitution for previously published index numbers

(except where the substituted numbers are published to take account of changes in the index reference period).

Application of indexed penalty unit

- (8) If the dollar amount mentioned in subsection (1) is increased in accordance with subsection (3), the increased amount only applies to offences committed on or after the indexation day.

4AB Conversion of pecuniary penalties expressed in dollar amounts to penalty units

- (1) A reference in a law of the Commonwealth or in a Territory Ordinance to a pecuniary penalty of D dollars, where D is a number, is taken to be a reference to a pecuniary penalty of P penalty units, where P is:
- (a) if $D \div 100$ is a whole number—that whole number; or
 - (b) if $D \div 100$ is not a whole number—the next highest whole number.
- (2) Subsection (1) does not apply to a reference to the maximum amount of a penalty that is not imposed by a court, or by a service tribunal under the *Defence Force Discipline Act 1982*.
- (3) Subsection (1) does not apply to:
- (a) section 76 of the *Competition and Consumer Act 2010*; or
 - (c) a provision of a law of the Commonwealth prescribed for the purposes of this subsection.
- (4) In this section:

penalty includes a fine.

Territory Ordinance has the same meaning as in section 4AA.

4B Pecuniary penalties—natural persons and bodies corporate

- (1) A provision of a law of the Commonwealth relating to indictable offences or summary offences shall, unless the contrary intention

Section 4B

appears, be deemed to refer to bodies corporate as well as to natural persons.

- (2) Where a natural person is convicted of an offence against a law of the Commonwealth punishable by imprisonment only, the court may, if the contrary intention does not appear and the court thinks it appropriate in all the circumstances of the case, impose, instead of, or in addition to, a penalty of imprisonment, a pecuniary penalty not exceeding the number of penalty units calculated using the formula:

$$\text{Term of Imprisonment} \times 5$$

where:

Term of Imprisonment is the maximum term of imprisonment, expressed in months, by which the offence is punishable.

- (2A) Where a natural person is convicted of an offence against a law of the Commonwealth in respect of which a court may impose a penalty of imprisonment for life, the court may, if the contrary intention does not appear and the court thinks it appropriate in all the circumstances of the case, impose, instead of, or in addition to, a penalty of imprisonment, a pecuniary penalty not exceeding 2,000 penalty units.
- (3) Where a body corporate is convicted of an offence against a law of the Commonwealth, the court may, if the contrary intention does not appear and the court thinks fit, impose a pecuniary penalty not exceeding an amount equal to 5 times the amount of the maximum pecuniary penalty that could be imposed by the court on a natural person convicted of the same offence.
- (3A) Where an Act (whether enacted before or after the commencement of this subsection) confers power to make an instrument (including rules, regulations or by-laws but not including a law of a Territory) and specifies the maximum pecuniary penalty that can be imposed for offences created by such an instrument, then:

- (a) unless the contrary intention appears, the specified penalty is taken to be the maximum penalty that the instrument can prescribe for such offences by natural persons; and
 - (b) where a body corporate is convicted of such an offence—the specifying of that penalty is not to be treated as an indication of a contrary intention for the purposes of applying subsection (3).
- (4) Where under a law of the Commonwealth any forfeiture, penalty or reparation is paid to a person aggrieved, it is payable to a body corporate where the body corporate is the person aggrieved.

4C Offences under 2 or more laws

- (1) Where an act or omission constitutes an offence:
 - (a) under 2 or more laws of the Commonwealth; or
 - (b) both under a law of the Commonwealth and at common law;the offender shall, unless the contrary intention appears, be liable to be prosecuted and punished under either or any of those laws of the Commonwealth or at common law, but shall not be liable to be punished twice for the same act or omission.
- (2) Where an act or omission constitutes an offence under both:
 - (a) a law of the Commonwealth and a law of a State; or
 - (b) a law of the Commonwealth and a law of a Territory;and the offender has been punished for that offence under the law of the State or the law of the Territory, as the case may be, the offender shall not be liable to be punished for the offence under the law of the Commonwealth.
- (3) Where an act or omission constitutes an offence against a law of a Territory, the validity of that law is not affected merely because the act or omission also constitutes an offence against a law of the Commonwealth.

Section 4D

4D Penalties

- (1) Except so far as the contrary intention appears, a penalty, whether pecuniary or otherwise, set out at the foot of any provision of an Act as described in a paragraph of subsection (1A) indicates:
 - (a) if the provision expressly creates an offence—that the offence is punishable on conviction by a penalty not exceeding the penalty so set out; or
 - (b) in any other case—that contravention of the provision is an offence against the provision, punishable on conviction by a penalty not exceeding the penalty so set out.
- (1A) Subsection (1) applies to a penalty set out:
 - (a) at the foot of a section of an Act; or
 - (b) at the foot of a subsection of an Act, but not at the foot of the section containing the subsection; or
 - (c) at the foot of a clause of any Schedule to an Act; or
 - (d) at the foot of a subclause of any Schedule to an Act, but not at the foot of the clause containing the subclause.
- (1B) Subsection (1) does not affect the operation of subsection 4B(2), (2A) or (3).
- (2) Subsection (1) applies to any instrument made under an Act (including rules, regulations or by-laws but not including a law of a Territory) as if the instrument were an Act and as if each such rule, regulation or by-law were a section of an Act.

4E Pecuniary penalties

A pecuniary penalty for an offence against a law of the Commonwealth may, unless the contrary intention appears, be recovered in any court of summary jurisdiction.

4F Effect of alterations in penalties

- (1) Where a provision of a law of the Commonwealth increases the penalty or maximum penalty for an offence, the penalty or

maximum penalty as increased applies only to offences committed after the commencement of that provision.

- (2) Where a provision of a law of the Commonwealth reduces the penalty or maximum penalty for an offence, the penalty or maximum penalty as reduced extends to offences committed before the commencement of that provision, but the reduction does not affect any penalty imposed before that commencement.

4G Indictable offences

Offences against a law of the Commonwealth punishable by imprisonment for a period exceeding 12 months are indictable offences, unless the contrary intention appears.

4H Summary offences

Offences against a law of the Commonwealth, being offences which:

- (a) are punishable by imprisonment for a period not exceeding 12 months; or
 - (b) are not punishable by imprisonment;
- are summary offences, unless the contrary intention appears.

4J Certain indictable offences may be dealt with summarily

- (1) Subject to subsection (2), an indictable offence (other than an offence referred to in subsection (4)) against a law of the Commonwealth, being an offence punishable by imprisonment for a period not exceeding 10 years, may, unless the contrary intention appears, be heard and determined, with the consent of the prosecutor and the defendant, by a court of summary jurisdiction.
- (2) Subsection (1) does not apply in relation to an indictable offence where, under a law of the Commonwealth other than this Act, that offence may be heard and determined by a court of summary jurisdiction.

Section 4J

- (3) Subject to subsection (6), where an offence is dealt with by a court of summary jurisdiction under subsection (1), the court may impose:
 - (a) where the offence is punishable by imprisonment for a period not exceeding 5 years—a sentence of imprisonment for a period not exceeding 12 months or a fine not exceeding 60 penalty units, or both; or
 - (b) where the offence is punishable by imprisonment for a period exceeding 5 years but not exceeding 10 years—a sentence of imprisonment for a period not exceeding 2 years or a fine not exceeding 120 penalty units, or both.
- (4) A court of summary jurisdiction may, if it thinks fit, upon the request of the prosecutor, hear and determine any proceeding in respect of an indictable offence against a law of the Commonwealth if the offence relates to property whose value does not exceed \$5,000.
- (5) Subject to subsection (6), where an offence is dealt with by a court of summary jurisdiction under subsection (4), the court may impose a sentence of imprisonment for a period not exceeding 12 months or a fine not exceeding 60 penalty units, or both.
- (6) A court of summary jurisdiction shall not impose under subsection (3) or (5):
 - (a) a sentence of imprisonment for a period exceeding the maximum period that could have been imposed had the offence been tried on indictment;
 - (b) a fine exceeding the maximum fine that could have been imposed had the offence been so tried; or
 - (c) both a sentence of imprisonment and a fine if the offence is punishable on trial on indictment by a sentence of imprisonment or a fine, but not both.
- (7) This section does not apply to an offence against:
 - (b) Division 80 (other than Subdivision CA) of the *Criminal Code* (treason, urging violence and advocating terrorism or genocide); or

- (c) Division 82 of the *Criminal Code* (sabotage); or
- (d) Division 91 of the *Criminal Code* (espionage); or
- (e) Division 92 of the *Criminal Code* (foreign interference).

4JA Some indictable offences punishable by fine only may be dealt with summarily

- (1) A court of summary jurisdiction may hear and determine an indictable offence if:
 - (a) the offence is not punishable by imprisonment; and
 - (b) the pecuniary penalty for the offence is not more than 600 penalty units for an individual or 3,000 penalty units for a body corporate; and
 - (c) the defendant and prosecution consent.
- (2) If the defendant is convicted, the court may impose a pecuniary penalty of:
 - (a) not more than 60 penalty units for an individual or 300 penalty units for a body corporate if the offence would be punishable on indictment by a pecuniary penalty of not more than 300 penalty units for an individual or 1,500 penalty units for a body corporate; or
 - (b) not more than 120 penalty units for an individual or 600 penalty units for a body corporate if the offence would be punishable on indictment by a pecuniary penalty of not more than 600 penalty units for an individual or 3,000 penalty units for a body corporate.

However, the court may not impose a pecuniary penalty greater than the penalty that could have been imposed if the offence had been prosecuted on indictment.

- (3) This section has effect subject to any contrary intention indicated by the law creating the offence.
- (4) Without limiting subsection (3), this section does not apply to an indictable offence:

Section 4K

- (a) created by a law that provides that the offence may be heard and determined by a court of summary jurisdiction; or
- (b) described in subsection 4J(4) (about offences relating to property valued at \$5,000 or less).

4K Continuing and multiple offences

- (1) Where, under a law of the Commonwealth, an act or thing is required to be done within a particular period or before a particular time, then, unless the contrary intention appears, the obligation to do that act or thing continues, notwithstanding that the period has expired or the time has passed, until the act or thing is done.
- (2) Where a refusal or failure to comply with a requirement referred to in subsection (1) is an offence against a law of the Commonwealth, a person commits an offence in respect of each day during which the person refuses or fails to comply with that requirement, including the day of a conviction for any such offence or any later day.
- (3) Charges against the same person for any number of offences against the same provision of a law of the Commonwealth may be joined in the same information, complaint or summons if those charges are founded on the same facts, or form, or are part of, a series of offences of the same or a similar character.
- (4) If a person is convicted of 2 or more offences referred to in subsection (3), the court may impose one penalty in respect of both or all of those offences, but that penalty shall not exceed the sum of the maximum penalties that could be imposed if a separate penalty were imposed in respect of each offence.

4L Specified defences not to preclude other defences

Where a provision of a law of the Commonwealth provides a defence to a particular offence, the provision does not, unless the contrary intention appears, prevent the use of any defence that is otherwise available.

4M Children under 10

A child under 10 years old cannot be liable for an offence against a law of the Commonwealth.

4N Children over 10 but under 14

- (1) A child aged 10 years or more but under 14 years old can only be liable for an offence against a law of the Commonwealth if the child knows that his or her conduct is wrong.
- (2) The question whether a child knows that his or her conduct is wrong is one of fact. The burden of proving this is on the prosecution.

6 Accessory after the fact

Any person who receives or assists another person, who has, to his or her knowledge, committed any offence against a law of the Commonwealth, in order to enable him or her to escape punishment or to dispose of the proceeds of the offence commits an offence.

Penalty: Imprisonment for 2 years.

9 Seizure and condemnation of forfeitable goods

- (1) Any constable may, without warrant, seize any articles which are forfeited or which he or she has reasonable ground to believe are forfeited under any law of the Commonwealth, and take them before a court of summary jurisdiction.
- (2) Where articles are taken before a court of summary jurisdiction under subsection (1), the court shall inquire into the matter and:
 - (a) if the court is satisfied that the articles are forfeited—shall order that the articles be condemned; or
 - (b) if the court is not so satisfied—shall order that the articles be delivered to such person as the court is satisfied is entitled to the articles.

Section 9A

- (2A) A court of summary jurisdiction may, before inquiring into a matter under subsection (2), require notice of the inquiry to be given to such persons as the court thinks fit.
- (3) Where any prosecution is pending, an order for the condemnation or the delivery to any persons of any articles relating thereto shall not be made until the prosecution is determined.
- (4) All articles that are condemned as forfeited must be transferred to the Official Trustee to be dealt with under section 9A.

9A Forfeited articles to be dealt with by Official Trustee

Where articles are transferred to the Official Trustee under subsection 9(4), the Official Trustee must, subject to any direction by the Minister administering the *Proceeds of Crime Act 2002* given in a particular case:

- (a) sell or otherwise dispose of the articles; and
- (b) apply the proceeds of the sale or disposition in payment of the Official Trustee's remuneration and other costs, charges and expenses of the kind referred to in section 9B payable to or incurred by it in connection with the sale or disposition; and
- (c) credit the remainder of those proceeds to the Confiscated Assets Account as required by section 296 of the *Proceeds of Crime Act 2002*.

9B Costs etc. payable to Official Trustee

- (1) The regulations may make provision in relation to:
 - (a) the costs, charges and expenses incurred in connection with; and
 - (b) the Official Trustee's remuneration in respect of; the performance or exercise by the Official Trustee of functions, duties or powers under section 9A.

Section 13

- (2) An amount equal to each amount of remuneration that the Official Trustee receives under the regulations is to be paid to the Commonwealth.
- (3) Where there are no regulations in relation to a matter referred to in subsection (1):
 - (a) the regulations referred to in section 288 of the *Proceeds of Crime Act 2002* apply, so far as they are applicable, and with appropriate changes, in relation to the matter; and
 - (b) a reference in subsection (1) or (2) to regulations is taken to be a reference to the regulations referred to in section 288 of the *Proceeds of Crime Act 2002*.

13 Institution of proceedings in respect of offences

Unless the contrary intention appears in the Act or regulation creating the offence, any person may:

- (a) institute proceedings for the commitment for trial of any person in respect of any indictable offence against the law of the Commonwealth; or
- (b) institute proceedings for the summary conviction of any person in respect of any offence against the law of the Commonwealth punishable on summary conviction.

15 Remand of defendant

Where a person is charged, before a court of summary jurisdiction, with an offence against the law of the Commonwealth, if, from the absence of witnesses or from any other reasonable cause, it becomes necessary or advisable to defer the hearing of the case, the court before whom the accused person appears or is brought, may:

- (a) by warrant from time to time remand the defendant to some gaol, lock-up, or other place of custody for such period as the court shall deem necessary to be there kept until the time appointed for continuing the hearing; or
- (b) order the discharge of the defendant upon his or her entering into a recognizance conditioned for his or her appearance at the time and place appointed for continuing the hearing.

Section 15AA

15AA Bail not to be granted in certain cases

- (1) Despite any other law of the Commonwealth, a bail authority must not grant bail to a person covered by subsection (2) or (2A), in relation to an offence against a law of the Commonwealth, unless the bail authority is satisfied that exceptional circumstances exist to justify bail.

Note: For persons under 18 years of age, see subsection (3AA).

Persons covered by this section

- (2) This subsection covers a person (the **defendant**) charged with, or convicted of, any of the following offences:
- (a) a terrorism offence;
 - (b) an offence against a law of the Commonwealth, if:
 - (i) a physical element of the offence is that the defendant engaged in conduct that caused the death of a person; and
 - (ii) the fault element for that physical element is that the defendant intentionally engaged in that conduct (whether or not the defendant intended to cause the death, or knew or was reckless as to whether the conduct would result in the death);
 - (c) an offence against a provision of Division 80 (other than Subdivision CA) (treason, urging violence and advocating terrorism or genocide) or Division 91 (espionage) of the *Criminal Code* if:
 - (i) the death of a person is alleged to have been caused by conduct that is a physical element of the offence; or
 - (ii) conduct that is a physical element of the offence carried a substantial risk of causing the death of a person;
 - (d) an ancillary offence against a provision of Division 80 (other than Subdivision CA) (treason, urging violence and advocating terrorism or genocide) or Division 91 (espionage) of the *Criminal Code* if, had the defendant engaged in conduct that is a physical element of the primary offence to which the ancillary offence relates, there would have been a

substantial risk that the conduct would have caused the death of a person;

- (e) an offence against subsection 92.2(1) or 92.3(1) (intentional or reckless offence of foreign interference), if:
 - (i) the death of a person is alleged to have been caused by conduct that is a physical element of the offence; or
 - (ii) conduct that is a physical element of the offence carried a substantial risk of causing the death of a person.

(2A) This subsection covers the following persons:

- (a) a person who is subject to a control order within the meaning of Part 5.3 of the *Criminal Code* (terrorism);
 - (b) a person who the bail authority is satisfied has made statements or carried out activities supporting, or advocating support for, terrorist acts within the meaning of that Part.
- (3) To avoid doubt, the express reference in paragraph (2)(d) to an ancillary offence does not imply that references in paragraphs (2)(a), (b) or (c) to an offence do not include references to ancillary offences.

Entering reasons in court records if court grants bail

- (3AAA) If the bail authority is a court and it grants bail, the court must:
- (a) state its reasons; and
 - (b) cause those reasons to be entered in the court's records.

Determining exceptional circumstances in relation to persons under 18 years of age

- (3AA) In determining whether exceptional circumstances exist to justify granting bail to a person who is under 18 years of age, without limiting the matters the bail authority may have regard to, the bail authority must have regard to:
- (a) the protection of the community as the paramount consideration; and
 - (b) the best interests of the person as a primary consideration.

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Appealing decisions of bail authority

- (3A) Despite any law of the Commonwealth, the Director of Public Prosecutions, or a person covered by subsection (2) or (2A), may appeal against a decision of a bail authority:
- (a) to grant bail to a person covered by subsection (2) or (2A) on the basis that the bail authority is satisfied that exceptional circumstances exist; or
 - (b) to refuse to grant bail to a person covered by subsection (2) or (2A) on the basis that the bail authority is not satisfied that exceptional circumstances exist.
- (3B) An appeal under subsection (3A):
- (a) may be made to a court that would ordinarily have jurisdiction to hear and determine appeals (however described) from directions, orders or judgments of the bail authority referred to in subsection (3A), whether the jurisdiction is in respect of appeals relating to bail or appeals relating to other matters; and
 - (b) is to be made in accordance with the rules or procedures (if any) applicable under a law of the Commonwealth, a State or a Territory in relation to the exercise of such jurisdiction.

Staying decisions to grant bail if decision appealed

- (3C) If:
- (a) a bail authority decides to grant bail to a person covered by subsection (2) or (2A); and
 - (b) immediately after the decision is made, the Director of Public Prosecutions notifies the bail authority that he or she intends to appeal against the decision under subsection (3A);
- the decision to grant bail is stayed with effect from the time of the notification.
- (3D) A stay under subsection (3C) ends:
- (a) when a decision on the appeal is made; or
 - (b) when the Director of Public Prosecutions notifies:
 - (i) the bail authority; or

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- (ii) if an appeal has already been instituted in a court—the court;
that he or she does not intend to proceed with the appeal; or
 - (c) 72 hours after the stay comes into effect;
- whichever occurs first.

Relationship with laws of States and Territories

- (4) To avoid doubt, except as provided by subsections (1), (3AA), (3A), (3B), (3C) and (3D), this section does not affect the operation of a law of a State or a Territory.

Note: These provisions indirectly affect laws of the States and Territories because they affect section 68 of the *Judiciary Act 1903*.

Definitions

- (5) In this section:

ancillary offence has the meaning given in the *Criminal Code*.

primary offence has the meaning given in the *Criminal Code*.

15AAA Bail not to be granted to various persons charged with, or convicted of, certain Commonwealth child sex offences

- (1) Despite any other law of the Commonwealth, a bail authority must not grant bail to a person who:
 - (a) is charged with, or convicted of, an offence described in column 1 of an item in the table in section 16AAA (except items 1AA to 1H of that table); or
 - (b) is charged with, or convicted of, an offence described in column 1 of an item in the table in subsection 16AAB(2) and who has previously been convicted of a child sexual abuse offence;unless the bail authority is satisfied by the person that circumstances exist to grant bail.

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- (2) In addition to any other matters, in determining whether the bail authority is satisfied that circumstances exist to grant bail to a person, the bail authority must take into account such of the following matters as are relevant and known to the bail authority:
 - (a) whether the bail authority considers that the person would be likely to fail to appear at any proceedings for the offence if the person were granted bail;
 - (b) whether the bail authority considers that the person would be likely to commit a further offence if the person were granted bail;
 - (c) whether the bail authority considers that the person would be likely to put at risk the safety of the community or cause a person to suffer any harm if the person were granted bail;
 - (d) whether the bail authority considers that the person would be likely to conceal, fabricate or destroy evidence or intimidate a witness if the person were granted bail;
 - (e) whether the person was aged 18 years or over when the offence was committed;
 - (f) if the person has pleaded guilty to the charge in respect of the offence or been convicted of the offence—whether the bail authority considers that the person would not be likely to undertake a rehabilitation program, or not be likely to comply with any bail conditions relating to rehabilitation or treatment, while released on bail.
- (3) If the bail authority is a court and it grants bail, the court must:
 - (a) state its reasons; and
 - (b) cause those reasons to be entered in the court's records.
- (4) Despite any law of the Commonwealth, the Director of Public Prosecutions or the person may appeal against a decision of a bail authority:
 - (a) to grant bail to the person despite subsection (1) on the basis that the bail authority is satisfied that circumstances exist to grant bail; or

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- (b) to refuse to grant bail to the person on the basis that the bail authority is not satisfied that circumstances exist to grant bail.
- (5) An appeal under subsection (4):
 - (a) may be made to a court that would ordinarily have jurisdiction to hear and determine appeals (however described) from directions, orders or judgments of the bail authority referred to in subsection (4), whether the jurisdiction is in respect of appeals relating to bail or appeals relating to other matters; and
 - (b) is to be made in accordance with the rules or procedures (if any) applicable under a law of the Commonwealth, a State or a Territory in relation to the exercise of such jurisdiction.
- (6) If:
 - (a) a bail authority decides to grant bail to the person; and
 - (b) immediately after the decision is made, the Director of Public Prosecutions notifies the bail authority that he or she intends to appeal against the decision mentioned in subsection (4);the decision to grant bail is stayed with effect from the time of the notification.
- (7) A stay under subsection (6) ends:
 - (a) when a decision on the appeal is made; or
 - (b) when the Director of Public Prosecutions notifies:
 - (i) the bail authority; or
 - (ii) if an appeal has already been instituted in a court—the court;that he or she does not intend to proceed with the appeal; or
 - (c) 72 hours after the stay comes into effect;whichever occurs first.
- (8) To avoid doubt, except as provided by subsections (1), (4), (5), (6) and (7), this section does not affect the operation of a law of a State or a Territory.

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Note: These provisions indirectly affect laws of the States and Territories because they affect section 68 of the *Judiciary Act 1903*.

15AB Matters to be considered in certain bail applications

- (1) In determining whether to grant bail to a person charged with, or convicted of, an offence against a law of the Commonwealth or the Northern Territory, or in determining conditions to which bail granted to such a person should be subject, a bail authority:
 - (a) must take into consideration the potential impact of granting bail on:
 - (i) any person against whom the offence is, or was, alleged to have been committed; and
 - (ii) any witness, or potential witness, in proceedings relating to the alleged offence, or offence; and
 - (b) must not take into consideration any form of customary law or cultural practice as a reason for:
 - (i) excusing, justifying, authorising, requiring or lessening the seriousness of the alleged criminal behaviour to which the alleged offence relates, or the criminal behaviour to which the offence relates; or
 - (ii) aggravating the seriousness of the alleged criminal behaviour to which the alleged offence relates, or the criminal behaviour to which the offence relates.
- (2) If a person referred to in subparagraph (1)(a)(i) or (ii) is living in, or otherwise located in, a remote community, the bail authority must also take into consideration that fact in considering the potential impact of granting bail on that person.
- (3) In paragraph (1)(b):

criminal behaviour includes:

 - (a) any conduct, omission to act, circumstance or result that is, or forms part of, a physical element of the offence in question; and
 - (b) any fault element relating to such a physical element.

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- (3A) Paragraph (1)(b) does not apply in relation to an offence against the following:
- (a) section 22 of the *Aboriginal and Torres Strait Islander Heritage Protection Act 1984*;
 - (b) sections 15A, 15C, 17B, 22A, 27A, 74AA, 142A, 142B, 207B, 354A, 355A and 470 of the *Environment Protection and Biodiversity Conservation Act 1999*;
 - (c) section 48 of the *Aboriginal Land and Waters (Jervis Bay Territory) Act 1986*;
 - (d) sections 69 and 70 of the *Aboriginal Land Rights (Northern Territory) Act 1976*;
 - (e) section 30 of the *Aboriginal Land (Lake Condah and Framlingham Forest) Act 1987*;
 - (f) sections 33, 34 and 35 of the *Northern Territory Aboriginal Sacred Sites Act 1989* (NT);
 - (h) section 4 of the *Aboriginal Land Act 1978* (NT);
 - (i) sections 111, 112 and 113 of the *Heritage Act 2011* (NT);
 - (j) any other law prescribed by the regulations that relates to:
 - (i) entering, remaining on or damaging cultural heritage; or
 - (ii) damaging or removing a cultural heritage object.
- (4) To avoid doubt, except as provided by subsections (1), (2) and (3A), this section does not affect:
- (a) any other matters that a bail authority must, must not or may take into consideration in determining whether to grant bail or in determining conditions to which bail should be subject; or
 - (b) the operation of a law of a State or a Territory.

Note: Subsections (1) and (2) indirectly affect laws of the States and Territories because they affect section 68 of the *Judiciary Act 1903*.

Section 15A

15A Enforcement of fines etc.

- (1) A law of a State or Territory relating to the enforcement or recovery of a fine imposed on an offender applies to a person convicted in the State or Territory of an offence against a law of the Commonwealth. The law applies:
 - (a) so far as it is not inconsistent with a law of the Commonwealth; and
 - (b) with the modifications (if any) made by or under this section.
- (1AA) If a law of a State or Territory requires or permits a person or authority other than a court to take action to impose a penalty described in subsection (1AB) for failure to pay a fine, the law applies under subsection (1) as if the law did not require or permit the person or authority to take the action but instead:
 - (a) allowed any person to apply to a court of summary jurisdiction of the State or Territory for an order imposing the penalty; and
 - (b) allowed the court to make the order; and
 - (c) provided for the order to have the same effect that the taking of the action by the person or authority has under the law without the modifications made by or under this subsection; and
 - (d) were subject to any prescribed modifications consequential on the other modifications described in this subsection, or facilitating the operation of the law with those modifications.
- (1AB) Subsection (1AA) applies in relation to any of the following penalties:
 - (e) community service by a person who failed to pay a fine;
 - (f) detention or imprisonment of a person who failed to pay a fine;
 - (g) a penalty that is similar to a penalty described in paragraph (e) or (f);
 - (h) a penalty prescribed by the regulations.

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- (1AC) Jurisdiction is conferred on a court of summary jurisdiction of a State or Territory to make orders described in subsection (1AA).
- (1ACB) To avoid doubt, if a court makes an order imposing a penalty for failure to pay a fine, whether or not the penalty is described in subsection (1AB), a person or authority other than a court may take action to enforce the penalty without making an application under paragraph (1AA)(a), even if the penalty is imposed as an alternative penalty.
- (1AD) If a law of a State or Territory requires or permits a court or a court officer to:
- (a) refer a matter to a person or organisation; or
 - (b) notify a person or organisation; or
 - (c) provide information to a person or organisation;
- in relation to the enforcement or recovery of a fine imposed by the court, the law applies under subsection (1) in relation to a federal court in the same way as it applies to a court of the State or Territory.
- (1A) Where there is a law of a State or Territory with respect to the enforcement or recovery of fines ordered to be paid by offenders (including a law described in subsection (1AA)) that applies in relation to fines ordered to be paid by offenders convicted by courts of summary jurisdiction:
- (a) subsection (1) operates to require that law to apply and be applied to persons who are convicted summarily of federal offences by a federal court in the same manner as that law would apply and be applied if the federal court were a court of summary jurisdiction; and
 - (b) that subsection does not operate in relation to any law of that State or Territory that applies in relation to fines ordered to be paid by offenders convicted by superior courts.
- (1B) If a law of a State or Territory:
- (a) is with respect to the enforcement or recovery of fines ordered to be paid by offenders (including a law described in subsection (1AA)); and

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- (b) applies in relation to fines ordered to be paid by offenders convicted on indictment;
subsection (1) operates to require that law to apply and be applied in the same manner to persons who are convicted on indictment of federal offences by a federal court.
- (2) Without limiting the generality of subsection (1), in the application to a person convicted of a federal offence of any State or Territory laws with respect to the enforcement or recovery of fines, a requirement that the amount of a fine be paid to a State or Territory office or officer is to be treated as a requirement that the amount of the fine be paid in accordance with the law of the Commonwealth.
- (3) Where a court imposes a sentence or sentences of imprisonment on a person in respect of a failure to pay a fine or fines imposed for a federal offence or offences, the court must direct that the sentence, or all the sentences, commence to be served from the earliest practicable day despite the fact that the person may, on that day, already be serving another sentence of imprisonment for a federal, State or Territory offence.
- (4) Despite subsection (3), a court may, where it is of the opinion that, in all the circumstances of the case, it is more appropriate to do so, direct that a period of imprisonment imposed on a person in respect of a failure to pay a fine imposed in respect of a federal offence commence to be served during, or at the end of, a period of imprisonment imposed for a similar failure in respect of another federal offence.
- (5) In this section:
- federal offence*** means an offence against the law of the Commonwealth.
- modifications*** includes additions, omissions and substitutions.

15B Time for commencement of prosecutions

- (1) Subject to subsection (1B), a prosecution of an individual for an offence against any law of the Commonwealth may be commenced as follows:
 - (a) if the maximum penalty which may be imposed for the offence in respect of an individual is, or includes, a term of imprisonment of more than 6 months in the case of a first conviction—at any time;
 - (b) in any other case—at any time within one year after the commission of the offence.
- (1A) A prosecution of a body corporate for an offence against any law of the Commonwealth may be commenced as follows:
 - (a) if the maximum penalty which may be imposed for the offence in respect of a body corporate is, or includes, a fine of more than 150 penalty units in the case of a first conviction—at any time;
 - (b) in any other case—at any time within one year after the commission of the offence.
- (1B) A prosecution of an individual for an offence that is taken to have been committed because of section 11.2 or 11.2A of the *Criminal Code*, or against another law of the Commonwealth dealing with aiding and abetting, in relation to an offence committed by a body corporate may be commenced as follows:
 - (a) if the maximum penalty which may be imposed for the principal offence in respect of a body corporate is, or includes, a fine of more than 150 penalty units in the case of a first conviction—at any time;
 - (b) in any other case—at any time within one year after the commission of the offence by the individual.
- (2) Notwithstanding any provision in any law of the Commonwealth passed before the commencement of this Act and providing any shorter time for the commencement of the prosecution, any prosecution for an offence against the law may be commenced at any time within one year after the commission of the offence.

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- (3) Where by any law of the Commonwealth any longer time than the time provided by this section is provided for the commencement of a prosecution in respect of an offence against that law, a prosecution in respect of the offence may be commenced at any time within that longer time.

15C Form of indictments, information and summonses

- (1) At the hearing of any indictment, information or summons, the court may make such amendment in the indictment, information or summons as appears to it to be desirable or to be necessary to enable the real question in dispute to be determined.
- (2) If in any such case the court considers that the defendant has been misled by the form in which the indictment, information or summons has been made out, it may adjourn the hearing of the case for such period as it thinks fit and may make such order as to the costs of the adjournment as it thinks proper.
- (3) The power of the court under subsection (1) shall not be exercised in cases where the court considers that the required amendments cannot be made without injustice to the defendant.

15E Privilege of Parliament not affected

Nothing in this Act shall derogate from any power or privilege of either House of the Parliament or of the members or committees of either House of Parliament as existing at the commencement of this Act.

15F Civil rights not affected

Nothing in this Act shall affect the right of any person aggrieved by any act or omission which is punishable as an offence against this Act to institute civil proceedings in any court in respect of such act or omission.